

JEFFREY S. GRAY # 5852
Utah County Attorney
CHAD E. GRUNANDER # 9968
RYAN MCBRIDE # 13079
LAUREN HUNT # 14682
DAVID STURGILL # 7995
CHRISTOPHER D. BALLARD # 8497
Deputy Utah County Attorneys
100 East Center, Suite 2100
Provo, Utah 84606
Telephone: (801) 851-8026
Email: dcourt@utahcounty.gov

IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH

STATE OF UTAH,
Plaintiff,

v.

TYLER JAMES ROBINSON,
Defendant.

**STATE’S RESPONSE TO
DEFENDANT’S MOTION TO
CLOSE PORTIONS OF THE APRIL
17, 2026 EVIDENTIARY HEARING**

Case No. 251403576

Judge Tony F. Graf, Jr.

The State provides the following response to Defendants’ Motion to Close Portions of the April 17, 2026 Evidentiary Hearing (Dkt. 425). Defendant does not acknowledge, or therefore apply, the controlling legal standard. The State nevertheless does not oppose Defendant’s requests to close portions of the hearing that will discuss evidence of: (1) violations of the Court’s decorum orders; and (2) publicized personal information and the effect of that publication on the individuals whose information is at issue. The remaining portions of the hearing should remain open.

ARGUMENT

I. Defendant does not dispute that the hearing at issue is presumptively public.

Defendant does not identify or apply the legal standard that should govern a request to close a pre-trial proceeding in a criminal case like a hearing on a motion to exclude media cameras and microphones from the courtroom. Mot. at 2-6. Instead, Defendant incorrectly assumes that the standard is analogous to the standard for restricting access to court documents, and then relies on his prior arguments explaining why, in his view, his motion to exclude media cameras and microphones should not be public. *Id.* But the rules governing access to court *documents* do not govern access to court *proceedings*. See Utah R. Jud. Admin. 4-202.02 (governing access to “a court record”); 4-202.01 (defining “record” to include items like “documents” or “papers” that are “reproducible”).

Whether a court proceeding may be closed depends on “the precise nature of the proceeding in question” and, preliminarily, whether a presumptive right of public access attaches to that type of proceeding. *Kearns-Tribune Corp. v. Lewis*, 685 P.2d 515, 519 (Utah 1984). For example, it is well-established that the public has a constitutional “right of access to criminal *trials*.” *Id.* at 518. And the Utah Supreme Court has extended that presumption of public access to certain pre-trial criminal proceedings. See *id.* at 512 (preliminary hearings); *Society of Pro. Journalists, Utah Chapter v. Bullock*, 743 P.2d 1166, 1178 (Utah 1987) (competency proceedings). But the Utah Court of Appeals has refused to recognize a presumptive right of public access to juvenile court proceedings, given the

nature of purpose of the juvenile court. *See In re N.H.B.*, 769 P.2d 844, 851 (Utah App. 1989).

Defendant does not argue that a pre-trial proceeding on a motion like Defendant's—to close portions of an evidentiary hearing on a motion exclude media cameras and microphones from the courtroom—should not be presumptively public. Mot. at 2-6. Nor is the State aware of any controlling case addressing that issue. Defendant has therefore waived any argument that the hearing on his motion is not presumptively public.

Regardless, the Utah Supreme Court has recognized generally “the importance of public access to the criminal *process*” and “endorse[d] the presumption that significant criminal pretrial proceedings will be open to the public.” *Soc'y of Pro. Journalists*, 743 P.2d at 1177 (emphasis added). “In addition to kindling public misperception and eroding public confidence, closure of significant pretrial proceedings perpetuates general ignorance and cuts off public knowledge necessary to a full understanding of the criminal justice system.” *Id.* (quoting *State v. Williams*, 459 A.2d 641 (N.J. 1983)). The Court should therefore presume, like Defendant, that the hearing Defendant has requested is presumptively public.

II. Defendant bears the burden to demonstrate that closure is necessary.

Before a court can close a presumptively public criminal proceeding, it must follow the five steps “set forth in *Kearns-Tribune*, 685 P.2d at 524.” *Soc'y of Pro. Journalists*, 743 P.2d at 1178.

- (i) a closure hearing must be held, and that hearing must be open to the greatest extent possible;

(ii) if allegedly prejudicial information must be disclosed during the hearing on the merits, the court may close that hearing only after first attempting unsuccessfully to procure a voluntary nondisclosure agreement among the parties;

(iii) the court may close only that portion of the hearing on the merits as is necessary to protect any countervailing interests, such as the accused's fair trial right;

(iv) if closure is deemed necessary, the transcript of any closed proceeding should be released as soon as it is possible to do so without prejudice to the interests that justified closure;

(v) the order of closure resulting from the closure hearing must be supported by written findings and conclusions.

Id. (citing *Kearns-Tribune*, 685 P.2d at 524).

As the party seeking closure, Defendant bears the burden of demonstrating that closure is necessary. *See Kearns-Tribune*, 685 P.2d at 523. To overcome the presumption of public access, Defendant must demonstrate that an open hearing will create a "realistic likelihood prejudice." *Id.* The court must evaluate the likelihood of prejudice to Defendant's right to a fair trial in light of the availability and efficacy of the various means available for selecting impartial jurors. *Id.*

While the caselaw on closure of judicial proceedings discusses the burden of proof only in terms of prejudice to a defendant's right to a fair trial, it does not appear to foreclose other considerations like personal privacy. For example, the *Kearns-Tribune* court held that a court may close only "that portion of the closure hearing that the court finds to be necessary to protect *the countervailing interests*, such as the defendant's right to a fair trial." *Id.* at 524 (emphasis added). For purposes of this motion, the State does not dispute

that personal privacy seems to qualify as a sufficient “countervailing interest[]” that could justify closure. *Id.*

III. Closure is necessary only for portions of the hearing that will discuss (1) violations of the decorum orders; and (2) personal privacy and safety concerns.

Defendant asks to close portions of the hearing that will (1) discuss prior media coverage, (2) perhaps reference portions of the closed portions of the December 11, 2025 hearing, and (3) reference information that creates personal privacy and safety concerns. Mot. at 2-6. As explained below, the Court should close only those portions of the hearing that address (1) media reports that violated the decorum orders, and (2) information that implicates personal privacy and safety concerns. Defendant has not satisfied his burden with respect to portions of the hearing that will discuss already public reports.

A. Only portions of the hearing that address reports that violated decorum orders should be closed; the fact that other reports are already public favors public access.

Defendant first contends that some prior media coverage has violated Utah law and this Court’s decorum orders and that additional discussion of this already public information risks reemphasizing reports that Defendant characterizes as “harmful and prejudicial.” Mot. at 2-3, 5.

The State disputes that any media coverage has violated Utah law. The State also observes that the media coverage has not all been unfavorable to Defendant. Rather, many electronic media outlets and various other internet sources have used this case to advance various conspiracy theories. *See, e.g.,* David Gilbert, *Why Conspiracy Theories Took Hold*

When Charlie Kirk Died, Wired, October 29, 2025, www.youtube.com/watch?v=M_DCrfVp3uU.

Defendant has not shown that it is necessary to close the evidentiary hearing to discuss media reports that are already public, other than those that Defendant alleges violated the Court's decorum orders. Any violations of the decorum orders should not have occurred in the first place, and republicizing those reports would amount to additional violations of those orders. The State therefore agrees that portions of the hearing discussing decorum order violations should be closed.

But Defendant has not shown that it is necessary to close the hearing to discuss evidence about the remaining media reports that are already public. On the contrary, the fact that information is already public favors maintaining public access. *See State v. Allgier*, 2011 UT 47, ¶ 17, 258 P.3d 589 (holding that already public nature of information contained in court filing "greatly diminished" any interest in protecting it).

Allgier provides essential guidance on this issue. There, the Utah Supreme Court held that the defendant's interest in a fair capital trial and sentencing proceeding did not require further restricting public access to a letter from Allgier's fellow inmate, even though the contents were highly prejudicial and likely inadmissible, because, among other things, the information in the letter was already public. *See id.* ¶¶ 14-21. The supreme court affirmed the trial court's grant of public access even though the letter stated that Allgier had confessed to capital murder and demonstrated his future dangerousness.

Allgier was accused of aggravated murder and escape after he disarmed, shot, and killed the corrections officer who had transported him to the University of Utah Hospital

for an appointment. *Id.* ¶ 3. While his case was pending, Allgier’s fellow inmate wrote a letter to the trial court stating that Allgier had admitted to him that Allgier shot the officer three times—once each in the stomach, chest, and head. *Id.* ¶ 4. The inmate also wrote that he feared Allgier because Allgier had threatened to kill the inmate and his mother if the inmate revealed Allgier’s admissions. *Id.*

The Utah Supreme Court affirmed the district court’s decision to grant public access to the letter despite Allgier’s objection that doing so would impair his right to a fair capital trial. *Id.* ¶¶ 5-6, 16, 18. Allgier faced the death penalty not only when the letter came to light, but also throughout the appeals process regarding access to the letter. *See* Docket of Third District Case No. 071904711 at 31 (March 22, 2010 Notice of Intent to Seek Death Penalty), 78 (Oct. 3, 2012 Plea Hearing where State agreed to sentence of life without parole) (attached as Exhibit 1).

The *Allgier* Court held that the trial court properly weighed the competing interests and struck the balance in favor of allowing public access to the undisputably prejudicial letter. *See id.* ¶¶ 17-21. The court considered and rejected Allgier’s assertions that the letter should remain private because potential jurors “would be tainted by the sensitive and inflammatory information within the Letter, especially because the Letter would likely be inadmissible as evidence.” *Id.* ¶ 16. Instead, the trial court properly refused to restrict public access to the letter for two reasons. *Id.* ¶¶ 16-21. First, “given the amount and type of prejudicial information already in the public domain” allowing public access “would not undermine Mr. Allgier’s right to a fair trial.” *Id.* ¶ 16. Second, “Allgier’s right to a fair trial would still be sufficiently protected by reasonable alternatives to sealing the Letter.” *Id.* ¶

18. Those alternatives included “the regular, time-honored processes for selecting jurors” like “‘an enlarged venire,’ a ‘thorough and searching voir dire,’ and ‘a detailed jury questionnaire.’” *Id.* ¶ 19. Indeed, the court concluded that these long-established tools of jury selection would be sufficient to protect the right to a fair trial even in circumstances where the balancing of the competing interests weighs in favor of denying public access. *See id.* ¶ 20. “These reasonable alternatives to sealing the Letter would provide sufficient protection to Mr. Allgier’s right to a fair trial in this case *regardless of whether the respective interests otherwise weighed in favor of or against* sealing the Letter.” *Id.* (emphasis added).

So too here. The fact that the media reports Defendant wishes to discuss in a closed hearing are already public favors allowing public access to the portions of the hearing discussing those already-public reports, especially where the Court possesses a robust toolchest to discover and address any potential prejudice when it comes time to select the jury in this case. *See id.* at ¶¶ 17-21; *see also Nebraska Press Ass’n v. Stuart*, 427 U.S. 539, 565 (1976) (“[P]retrial publicity, even if pervasive and concentrated, cannot be regarded as leading automatically and in every kind of criminal case to an unfair trial.”). Defendant therefore has not shown that the competing interests favor denying public access to the portions of the hearing discussing media reports, other than those constituting decorum-order violations.

B. Any references to the December 11 hearing appear to be only to the open portions of that hearing.

Defendant also asks the Court to close portions of the hearing that “may” discuss “comments and events that occurred in the closed setting on December 11, 2026. Mot. at 5. But as far as the State can tell, all references to the December 11 hearing in the motion to exclude cameras and microphones refer to events that occurred during the open portion of that hearing when the camera was turned on. The State therefore does not believe that any need to reference the December 11 proceedings constitutes grounds for closing any portion of the upcoming hearing.

B. The Court should close the hearing if necessary to protect personal privacy and safety.

Finally, Defendant asks the Court to close portions of the hearing that will discuss private information that, in his view, was improperly publicized, and the effect of that allegedly improper publication on “the particular individuals whose information is at issue.” Mot. at 6. The State agrees that this portion of the hearing should be nonpublic. As the State has argued in the past, valid concerns about individual safety and privacy are sufficient grounds to restrict public access. *See, e.g.,* Utah R. Jud. Admin. 4-401.01(2)(B)(ii) (personal safety) & (2)(B)(iv) (personal privacy).

CONCLUSION

For the foregoing reasons, the Court should close only those portions of the hearing that the State has identified. The hearing should otherwise remain public.

Dated March 11, 2026.

Utah County Attorney's Office

s/ Christopher D. Ballard

Christopher D. Ballard

Deputy Utah County Attorney

Counsel for Plaintiff

CERTIFICATE OF SERVICE

I certify that on March 11, 2026, I filed the foregoing **STATE'S RESPONSE TO DEFENDANT'S MOTION TO CLOSE PORTIONS OF THE APRIL 17, 2026 EVIDENTIARY HEARING** through the court's electronic filing system, which served a copy on all counsel of record. I also emailed a copy to counsel for the interested news media as follows:

C. Michael Judd
mjudd@parsonsbehle.com

Jeffrey J. Hunt
jhunt@parrbrown.com

David C. Reymann
dreymann@parrbrown.com

Carissa A. Uresk
curesk@parrbrown.com

s/ Christopher D. Ballard
Christopher D. Ballard

EXHIBIT 1

EXHIBIT 1

THIRD JUDICIAL DISTRICT - SALT LAKE COUNTY DISTRICT COURT
SALT LAKE COUNTY, STATE OF UTAH
APPEALED: CASE # 20111054

STATE OF UTAH vs. CURTIS ALLGIER

CASE NUMBER 071904711 State Felony

CHARGES

Charge 1 - 76-5-202 - AGGRAVATED MURDER - Capital
Offense Date: June 25, 2007
Location: 590 SOUTH WAKARA WAY
Plea: October 03, 2012 Guilty
Disposition: October 03, 2012 Guilty

Charge 2 - 76-5-102.8 - DISARMING A PEACE OFFICER - 1st Degree Felony
Offense Date: June 25, 2007
Location: 590 SOUTH WAKARA WAY
Plea: October 03, 2012 Guilty
Disposition: October 03, 2012 Guilty

Charge 3 - 76-8-309(2) - AGGRAVATED ESCAPE - 1st Degree Felony (amended to) -
1st Degree Felony
Offense Date: June 25, 2007
Location: 590 SOUTH WAKARA WAY
Plea: October 03, 2012 Guilty
Disposition: October 03, 2012 Guilty

Charge 4 - 76-6-302 - AGGRAVATED ROBBERY - 1st Degree Felony
Offense Date: June 25, 2007
Location: 590 SOUTH WAKARA WAY
Plea: October 03, 2012 Guilty
Disposition: October 03, 2012 Guilty

Charge 5 - 76-5-202 - ATTEMPTED - AGGRAVATED MURDER - 1st Degree Felony
(amended to) - 1st Degree Felony
Offense Date: June 25, 2007
Location: 590 SOUTH WAKARA WAY
Plea: October 03, 2012 No Contest
Disposition: October 03, 2012 No Contest

Charge 6 - 76-5-202 - ATTEMPTED - AGGRAVATED MURDER - 1st Degree Felony
(amended to) - 1st Degree Felony
Offense Date: June 25, 2007
Location: 590 SOUTH WAKARA WAY
Plea: October 03, 2012 No Contest
Disposition: October 03, 2012 No Contest

Charge 7 - 76-5-202 - ATTEMPTED - AGGRAVATED MURDER - 1st Degree Felony
(amended to) - 1st Degree Felony
Offense Date: June 25, 2007
Location: 590 SOUTH WAKARA WAY
Plea: October 03, 2012 No Contest
Disposition: October 03, 2012 No Contest

Charge 8 - 76-10-503 - PURCH/POSS DANGEROUS WEAPON - 2nd Degree Felony
Offense Date: June 25, 2007
Location: 590 SOUTH WAKARA WAY
Plea: October 03, 2012 Guilty
Disposition: October 03, 2012 Guilty

CURRENT ASSIGNED JUDGE
RANDALL SKANCHY

PARTIES

Plaintiff - STATE OF UTAH
Represented by: ROBERT STOTT
Represented by: SIMARJIT GILL
Represented by: VINCENT MEISTER

Defendant - CURTIS ALLGIER
Represented by: RICHARD GALE
Represented by: RUSSEL-PAUL H KAWAI
Represented by: DAVID CORBETT
Represented by: STEVE CHRISTENSEN

Other Party - LDA

DEFENDANT INFORMATION
Defendant Name: CURTIS ALLGIER
Offense Tracking Number: 30210231
Date of Birth: August 25, 1979
Law Enforcement Agency: SALT LAKE CITY PD
LEA Case Number: 07-113810
Prosecuting Agency: SALT LAKE COUNTY
Agency Case Number: 07012169
Violation Date: 06-25-2007
Sheriff Number: 305157

ACCOUNT SUMMARY

Total Revenue Amount Due:	1,609.14
Amount Paid:	1,609.14
Amount Credit:	0.00
Balance:	0.00

REVENUE DETAIL - TYPE: AUDIO TAPE COPY

Amount Due:	10.00
Amount Paid:	10.00
Amount Credit:	0.00
Balance:	0.00

REVENUE DETAIL - TYPE: AUDIO TAPE COPY

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Balance: 0.00

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Balance: 0.00

CASE NOTE

DAO 07012169 Homicide assigned to Judge Himonas for Prelim

PROCEEDINGS

06-28-2007 Filed: Information
06-28-2007 Case filed by laniv
06-28-2007 Filed: From an Information
06-28-2007 Judge SHEILA K. MCCLEVE assigned.
06-28-2007 Note: CASE FILED BY DET. SLC PD DEFT IN JAIL WILL FAX WARRANT

TO THE JAIL.

06-29-2007 INITIAL APPEARANCE scheduled on July 02, 2007 at 09:00 AM with Judge ARRAIGNMENT ARR

06-29-2007 Note: Bail - NO BAIL

06-29-2007 Filed order: Addendum to Minute Entry and Order (dated June 27, 2007)
Judge ROBERT K. HILDER
Signed June 29, 2007

06-29-2007 Filed order: Minute entry and order dated 6/27/07
Judge ROBERT K. HILDER
Signed June 27, 2007

06-29-2007 Note: Homicide assigned to Judge Himonas for Preliminary Hearing

07-02-2007 Minute Entry - Minutes for Initial Appearance
Judge: ROBERT K HILDER
PRESENT
Clerk: lindav
Prosecutor: MEISTER, VINCENT B
Defendant Present
Defendant's Attorney(s): NICK FALCONE
Defendant's Attorney(s): MICHAEL PETERSEN
Video
Tape Number: CD 99 A Tape Count: 9:09

INITIAL APPEARANCE
The Information is read.
Advised of charges and penalties.
Defendant appearing in custody.

APPOINTMENT OF COUNSEL
Court finds the defendant indigent and appoints Legal Defender Office to represent the defendant.
Appointed Counsel:
Name: Legal Defender Office
City:
Phone:
Affidavit of indigency has been completed by the defendant

SCHEDULING CONFERENCE is scheduled.
Date: 7/13/2007
Time: 09:00 a.m.
Location: To Be Determined
Before Judge: DENO HIMONAS
Third District Court
450 South State
Salt Lake City, UT 84111

07-02-2007 Fee Account created Total Due: 10.00

07-02-2007 AUDIO TAPE COPY Payment Received: 10.00

07-02-2007 Fee Account created Total Due: 10.00

07-02-2007 AUDIO TAPE COPY Payment Received: 10.00
Note: 20.00 cash tendered. 10 change given.

07-02-2007 Fee Account created Total Due: 10.00

07-02-2007 AUDIO TAPE COPY Payment Received: 10.00

07-02-2007 Fee Account created Total Due: 10.00

07-02-2007 AUDIO TAPE COPY Payment Received: 10.00

07-02-2007 SCHEDULING CONFERENCE scheduled on July 13, 2007 at 09:00 AM in

FOURTH FLOOR-S44 with Judge DENO HIMONAS

07-02-2007 Filed: Appearance of Counsel

07-02-2007 Filed: Formal Request for Discovery Pursuant to Rule 16 of the Rules of Criminal Procedure

07-02-2007 Filed: Affidavit of Indigency - Approved by Judge Hilder.

07-02-2007 Note: SCHEDULING CONFERENCE calendar modified.

07-03-2007 Note: Bail remain "NO BAIL"

07-11-2007 Filed: Media Request for Still Photography in Courtroom

07-12-2007 Minute Entry - Minutes for TELEPHONE CONFERENCE
Judge: DENO HIMONAS
PRESENT
Clerk: krisu
TELEPHONE CONFERENCE
Prosecutor: MEISTER, VINCENT B
Defendant not present
Defendant's Attorney(s): BRENNON L FUELLING
Defendant's Attorney(s): MICHAEL A PETERSON
Video
Tape Number: S44 Tape Count: 2:19
HEARING
Vince Meister and Brennon Fuelling (for portion) appeared in person and Michael Peterson appeared by telephone for a conference. Court and counsel discussed, primarily, transporting the defendant for the 7/13/07 hearing.

07-12-2007 Filed order: Transportation Order
Judge DENO HIMONAS
Signed July 12, 2007

07-13-2007 Filed order: Amended Information
Judge DENO HIMONAS
Signed July 13, 2007

07-13-2007 Minute Entry - Minutes for SCHEDULING CONFERENCE
Judge: DENO HIMONAS
PRESENT
Clerk: krisl
Reporter: SUDWEEKS, JODI
Prosecutor: VINCENT B MEISTER
Prosecutor: ROBERT L STOTT
Defendant Present
Defendant's Attorney(s): MICHAEL A PETERSON
Defendant's Attorney(s): RALPH DELLAPIANA
Defendant's Attorney(s): BRENNON L FUELLING
Video
Tape Count: 9:12
HEARING
COUNT: 9:12
Counsel stipulate to a continuance due to discovery issues. Defendant waives his rights to a speedy trial and a preliminary hearing. Scheduling conference continued to:
SCHEDULING CONF is scheduled.
Date: 09/07/2007
Time: 09:00 a.m.
Location: Fourth Floor - S44
Before Judge: DENO HIMONAS
Third District Court

450 South State
SLC, UT 84114-1860

07-13-2007 SCHEDULING CONF scheduled on September 07, 2007 at 09:00 AM in FOURTH FLOOR-S44 with Judge DENO HIMONAS

07-13-2007 Charge 5 amended to 1st Degree Felony

07-13-2007 Charge 6 amended to 1st Degree Felony

07-13-2007 Charge 7 amended to 1st Degree Felony

07-16-2007 Ruling Entry - MINUTE ENTRY - DISCLOSURE
Judge: DENO HIMONAS
Court makes the following disclosures for purposes of the record in this matter. See complete Entry in File. Copy sent to all parties.

07-16-2007 Filed: First Supplemental Response to Request for Discovery

08-15-2007 Filed return: Subpoena duces tecum
Party Served: Arby's restaurant
Service Type: Personal
Service Date: August 13, 2007
Garnishee:

08-31-2007 Filed: Response to Request for Discovery

08-31-2007 Filed: State's Motion Limiting Disclosure of Witnesses' Personal Information
Filed by: STATE OF UTAH

09-05-2007 Filed: Stipulation to Order Limiting Disclosure of Witness Information

09-05-2007 Filed order: Order Limiting Disclosure of Witnesses Information
Judge SHEILA K. MCCLEVE
Signed September 05, 2007

09-06-2007 Filed order: Order (waiving Mr. Allgier's appearance at the 9/7/07 hearing)
Judge DENO HIMONAS
Signed September 06, 2007

09-06-2007 Filed: Waiver and Statement of Defendant

09-06-2007 Cancelled: PRELIMINARY HEARING scheduled on February 20, 2008 at 09:00 AM in FOURTH FLOOR-S44 with Judge DENO HIMONAS

09-06-2007 Rescheduled: PRELIMINARY HEARING rescheduled to February 21, 2008 at 09:00 AM in FOURTH FLOOR-S44 with Judge DENO HIMONAS

09-06-2007 Rescheduled: PRELIMINARY HEARING rescheduled to February 20, 2008 at 09:30 AM in FOURTH FLOOR-S44 with Judge DENO HIMONAS

09-06-2007 Cancelled: PRELIMINARY HEARING scheduled on February 21, 2008 at 09:30 AM in FOURTH FLOOR-S44 with Judge DENO HIMONAS

09-07-2007 Minute Entry - Minutes for SCHEDULING CONFERENCE
Judge: DENO HIMONAS
PRESENT
Clerk: krisl
Reporter: SUDWEEKS, JODI
Prosecutor: ROBERT L STOTT
Prosecutor: VINCENT B MEISTER
Defendant not present
Defendant's Attorney(s): MICHAEL A PETERSON
Video
Tape Count: 9:00
HEARING
Counsel previously waived the defendant's appearance for today's hearing. Preliminary hearing dates have been set for February 20-21.

PRELIMINARY HEARING is scheduled.

Date: 2/20/2008
Time: 09:30 a.m.
Location: Fourth Floor - S44
Before Judge: DENO HIMONAS
Third District Court
450 South State
SLC, UT 84114-1860

PRELIMINARY HEARING.

Date: 2/21/2008
Time: 09:30 a.m.
Location: Fourth Floor - S44
Before Judge: DENO HIMONAS
Third District Court
450 South State
SLC, UT 84114-1860

10-26-2007 Filed order: Order Vacating Previous No Contact Order
Judge ROBERT K. HILDER
Signed October 26, 2007

01-04-2008 Filed: Supplemental Discovery Request

01-08-2008 Filed return: Subpoena Duces Tecum - Arby's
Party Served: Richard Wells
Service Type: Personal
Service Date: January 07, 2008
Garnishee:

01-11-2008 Filed: Motion to Continue
Filed by: CURTIS ALLGIER

01-17-2008 Filed: First Supplemental Response to Request for Discovery

01-18-2008 Filed: State's Objection to Defendant's Motion for Continuance

01-18-2008 Minute Entry - Minutes for MOTION TO CONTINUE
Judge: DENO HIMONAS

PRESENT

Clerk: krisl
Reporter: HARMON, MILO
Prosecutor: STOTT, ROBERT L
Defendant not present
Defendant's Attorney(s): PETERSON, MICHAEL A
Video
Tape Count: *****

HEARING

Counsel stipulate to waiving the defendant's appearance today & on the 28th of January. Motion to continue will be heard on 1/28/08 at 10:30 am.

MOTION TO CONTINUE.

Date: 1/28/2008
Time: 10:30 a.m.
Location: Fourth Floor - S44
Before Judge: DENO HIMONAS
Third District Court
450 South State
SLC, UT 84114-1860

01-18-2008 Cancelled: HEARING scheduled on January 28, 2008 at 10:30 AM in FOURTH FLOOR-S44 with Judge DENO HIMONAS

01-18-2008 Modified: HEARING scheduled on January 28, 2008 at 10:30 AM in FOURTH FLOOR-S44 with Judge DENO HIMONAS

01-18-2008 MOTION TO CONTINUE scheduled on January 28, 2008 at 10:30 AM in FOURTH FLOOR-S44 with Judge DENO HIMONAS

01-25-2008 Minute Entry - Minutes for INCOURT NOTE
Judge: DENO HIMONAS
PRESENT
Clerk: wendypg
TELEPHONE CONFERENCE
Defendant not present
Video
Tape Count: 1:20
Telephone Conference in Chambers - M. Peterson and Laura Miller. Parties advised Judge Himonas will be assigned to hear Motion to Withdraw. Judge advises that he will address briefing schedule at hearing on Motion to Continue currently set for
1/28/08. Judge further advises that he is contemplating appointing separate counsel to advise defendant re: Motion to Withdraw.

01-25-2008 Note: INCOURT NOTE minutes modified.

01-25-2008 Filed order: Minute Entry
Judge ROBERT K. HILDER
Signed January 25, 2008

01-25-2008 Filed: Notice and Motion to Withdraw As Court-Appointed Counsel

01-28-2008 Minute Entry - Minutes for MOTION HEARING
Judge: DENO HIMONAS
PRESENT
Clerk: wendypg
Reporter: WARNICK, SUZANNE
Prosecutor: MEISTER, VINCENT B
Defendant Present
Defendant's Attorney(s): PETERSON, MICHAEL A
Video
Tape Count: *****
HEARING
Defendant transported for a hearing regarding Motion to Continue and Motion to Withdraw as Court Appointed Counsel. M. Peterson addresses the court. State responds. Court appoints Ken Brown and his office to represent defendant regarding LDA's Motion to Withdraw.
Briefing schedule for new motions addressed.
Court grants Motion to Continue due to the conflict - February Preliminary hearing date stricken, continued without date until issue of conflict resolved.
Defendant waives all speedy trial rights.
Court orders Ken Brown, Mike Holje and Mark Moffat be granted same visitation/contact privileges as were allowed by LDA. State to prepare the order.
Parties address potential sealed/confidential issues. Counsel to draft the appropriate motion.
Court continues to the following date:
MOTION HEARING.
Date: 03/07/2008
Time: 02:00 p.m.
Location: Fourth Floor - S44

Before Judge: DENO HIMONAS
Third District Court
450 South State
SLC, UT 84114-1860

- 01-28-2008 MOTION HEARING scheduled on March 07, 2008 at 02:00 PM in FOURTH FLOOR-S44 with Judge DENO HIMONAS
- 01-28-2008 Cancelled: PRELIMINARY HEARING scheduled on February 20, 2008 at 09:30 AM in FOURTH FLOOR-S44 with Judge DENO HIMONAS
Reason: Stipulation of counsel
- 01-28-2008 Cancelled: PRELIMINARY HEARING scheduled on February 21, 2008 at 09:30 AM in FOURTH FLOOR-S44 with Judge DENO HIMONAS
Reason: Stipulation of counsel
- 01-29-2008 Filed: Motion for Limited Intervention of the Deseret Morning News and Request for Notice of Motions to Close or Seal Judicial Proceedings or Records
Filed by: DESERET NEWS
- 01-29-2008 Filed order: Order
Judge DENO HIMONAS
Signed January 29, 2008
- 01-31-2008 Minute Entry - Minutes for INCOURT NOTE
Judge: DENO HIMONAS
PRESENT
Clerk: wendypg
TELEPHONE CONFERENCE
Defendant not present
Video
Tape Count: -----
TELEPHONE CONFERENCE - - Parties present, Vince Meister and Bob Stott for the State, Michael Peterson and Ken Brown for Defendant and David Reymann representing Deseret News. Hearing to review Deseret News Motion for Limited Intervention. Motion re:
Intervention may be moot; however, media has made a written request for notice of any attempt to seal or closure and court orders parties to give media notice of any such attempt.
- 02-01-2008 Filed: Transcript of Motion to Continue and Motion for Legal Defenders Association to Withdraw from Representation hearing dated 1-28-08, Suzanne Warnick, Court Reporter
- 02-04-2008 Filed: Second Supplemental Response to Request for Discovery
- 02-11-2008 Filed: Affidavit of Michael A. Peterson
- 02-11-2008 Filed: Affidavit of Karen Stam
- 02-11-2008 Filed: Supplemental Memorandum in Support of Motion to Withdraw as Court-Appointed Counsel
- 02-15-2008 Fee Account created Total Due: 61.50
- 02-15-2008 REPORTER FEES Payment Received: 61.50
Note: REPORTER FEES
- 02-21-2008 Filed: Defendant's Acknowledgment of a Conflict between the Salt Lake Legal Defender Association and himself and Request for Appointed Counsel Under Rule 8 of the Utah Rules of Criminal Procedure
- 02-25-2008 Filed: State's Response to Defense Counsel's Motion to Withdraw as Court Appointed Counsel
- 03-07-2008 Minute Entry - Minutes for MOTION HEARING
Judge: DENO HIMONAS
PRESENT
Clerk: wendypg

Reporter: YOUNG, BRAD
Prosecutor: MEISTER, VINCENT B
Defendant Present
Defendant's Attorney(s): PETERSON, MICHAEL A
Video
Tape Count: *****

HEARING

Defendant transported for a Motion hearing. Defense co-counsel R. Dellapiana present. Salt Lake County representative present - D. Burton-Lee. K. Brown and M. Moffat present.
Court reviews with parties reassignment of Brown and Moffat - pending adequate funding. Moffat responds.
Defense counsel Peterson and DA. Meister present argument regarding LDA's Motion to Withdraw. Brown presents argument.
Court orders LDA prepare a further brief regarding communications. Salt Lake County, Burton-Lee, to meet with Brown and Moffat regarding funding.
Hearing continued to the following date:

MOTION HEARING.

Date: 05/09/2008
Time: 02:00 p.m.
Location: Fourth Floor - S44
Before Judge: DENO HIMONAS
Third District Court
450 South State
SLC, UT 84114-1860

- 03-07-2008 MOTION HEARING scheduled on May 09, 2008 at 02:00 PM in FOURTH FLOOR-S44 with Judge DENO HIMONAS
- 03-18-2008 Filed: Defendant's Reply to State's Response to Motion to Withdraw as Court Appointed Counsel
- 04-02-2008 Filed: email - from Ken Brown dated 3/5/08, (distributed to all sides)
- 04-14-2008 Filed: State's Supplemental Memorandum in Response to Defense Motion to Withdraw as Court Appointed Counsel
- 05-09-2008 Minute Entry - Minutes for MOTION HEARING
Judge: DENO HIMONAS

PRESENT

Clerk: wendypg
Reporter: YOUNG, BRAD
Prosecutor: STOTT, ROBERT L
Defendant Present
Defendant's Attorney(s): PETERSON, MICHAEL A
Video
Tape Count: *****

HEARING

Defendant transported for a Motion Hearing. Other parties present : Jeff Thorn from the Civil Division, Kenneth Brown and Mark Moffatt for defendant (per conflict)
R. Dellapiana, B. Fuelling and H. Brereton as LDA co-counsel. Patrick Anderson present on behalf of the Legal Defenders Office.
Parties address the court regarding conflict issues. P. Anderson represents David Mack is able to act as Lead Counsel on behalf of LDA.
Court will take the matter under advisement.

LAW AND MOTION is scheduled.

Date: 06/20/2008

Time: 01:30 p.m.

Location: Fourth Floor - S44

Before Judge: DENO HIMONAS

Third District Court

450 South State

SLC, UT 84114-1860

05-09-2008 Cancelled: LAW AND MOTION scheduled on June 20, 2008 at 01:30 PM in FOURTH FLOOR-S44 with Judge DENO HIMONAS

05-09-2008 Modified: LAW AND MOTION scheduled on June 20, 2008 at 01:30 PM in FOURTH FLOOR-S44 with Judge DENO HIMONAS

05-09-2008 STATUS HEARING scheduled on June 20, 2008 at 01:30 PM in FOURTH FLOOR-S44 with Judge DENO HIMONAS

05-16-2008 Fee Account created Total Due: 10.50

05-16-2008 REPORTER FEES Payment Received: 10.50

Note: REPORTER FEES

05-30-2008 ***** SEALED ***** Filed: Letter from Brent Mayon Cobb

06-02-2008 Note: ***Copy of letter of Brent Mayon Cobb provided to Vincent Meister (DA), Michael Peterson (LDA), Kenneth Brown & Mark Moffat, and Mark Field (AOC).***

06-20-2008 Minute Entry - Minutes for STATUS REVIEW

Judge: DENO HIMONAS

PRESENT

Clerk: wendypg

Reporter: YOUNG, BRAD

Prosecutor: MEISTER, VINCENT B

Defendant Present

Defendant's Attorney(s): PETERSON, MICHAEL A

Video

Tape Count: *****

HEARING

Defendant transported for a Status Review.

Court reviews with parties the letter received . Defense responds, moves to have letter sealed. Court orders letter be sealed at this time.

Defense counsel to prepare an appropriate motion regarding having letter remain under seal - circulate to the State and media - State respond, submit to the court (briefing schedule reviewed) Hearing on this matter continued to 8/22 ,

Mr. Brown addresses the court regarding communications with County.

Court reviews with parties counsel assignment. Mr. Dellapiana addresses the court regarding his relationship to the deceased. Qualifications reviewed.

Recess - Mr. Brown meet with defendant.

Court addresses parties regarding attorney conflict. Parties respond. Mr. Brown submits to the court (after having met with defendant during recess) that defendant is not waiving any conflict that exists, but that communications in and of themselves

do not present conflict. Court further reviews with R. Dellapiana regarding qualifications as counsel to serve on this case. Also D. Mack qualifications reviewed.

State responds.

Court rules, denies the motion of LDA to withdraw on this case. Court reappoints new LDA to represent defendant.

Scheduling conference set.
Also present for the State: Bob Stott. Other defense
counsel present: Kenneth Brown, Ralph Dellapiana, David
Mack

SCHEDULING CONFERENCE is scheduled.

Date: 07/11/2008
Time: 08:30 a.m.
Location: Fourth Floor - S44
Before Judge: DENO HIMONAS
Third District Court
450 South State
SLC, UT 84114-1860

REVIEW HEARING.

Date: 08/22/2008
Time: 02:00 p.m.
Location: Fourth Floor - S44
Before Judge: DENO HIMONAS
Third District Court
450 South State
SLC, UT 84114-1860

06-20-2008 SCHEDULING CONFERENCE scheduled on July 11, 2008 at 08:30 AM in
FOURTH FLOOR-S44 with Judge DENO HIMONAS

06-20-2008 Cancelled: REVIEW HEARING scheduled on August 22, 2008 at 02:00
PM in FOURTH FLOOR-S44 with Judge DENO HIMONAS

06-30-2008 Filed: Transcript of Scheduling Conference dated 7-13-07, Jodi
Sudweeks, Court Reporter

06-30-2008 Filed: Transcript of Scheduling Conference dated 9-7-07, Jodi
Sudweeks, Court Reporter

07-01-2008 Filed: Transcript of Motion hearing dated 1-18-08, Milo Harmon,
Court Reporter

07-01-2008 Filed: Transcript of Telephone Conference dated 1-25-08, Milo
Harmon, Court Reporter

07-08-2008 Filed: Transcript of Motion hearing dated 3-7-08, Brad Young,
Court Reporter

07-08-2008 Filed: Transcript of Motion hearing dated 5-9-08, Brad Young,
Court Reporter

07-08-2008 Filed: Transcript of Status Conference hearing dated 6-20-08,
Brad Young, Court Reporter

07-09-2008 Filed: Motion to Seal "The Cobb Letter"
Filed by: CURTIS ALLGIER

07-10-2008 Filed: Motion to Disqualify Judge
Filed by: CURTIS ALLGIER

07-10-2008 Filed: Affidavit in Support of Motion to Disqualify Judge and
Certificate

07-11-2008 Minute Entry - Minutes for SCHEDULING CONFERENCE
Judge: DENO HIMONAS
Clerk: wendypg
Reporter: SPROUSE, SUSAN
Prosecutor: MEISTER, VINCENT B
Defendant's Attorney(s): DELLAPIANA, RALPH
Video
Tape Count: *****
HEARING

Defendant transported for a scheduling conference. Defense has filed a Motion to Disqualify - addresses the court. State will file a response. No further action at this time until a ruling on the Motion. Case is set for a Review on 8/22.

07-11-2008 Ruling Entry - RULING

Judge: DENO HIMONAS

Before me is the Defendant's Motion to Disqualify Judge (the "Motion"). While there is no actual bias here, and while I seriously question whether the Motion raises even the possible appearance of bias, I see no reason to create an issue where one need not exist. This case is now assigned to me only for purposes of preliminary hearing, and no dates have been set for this hearing. Consequently, there is absolutely no prejudice to either side by having another judge assigned to the preliminary hearing.

For the foregoing reasons, I grant the Motion and transfer the file to the Presiding Judge for reassignment.

Date: _____

Judge DENO HIMONAS

07-11-2008 Cancelled: REVIEW HEARING scheduled on August 22, 2008 at 02:00 PM in FOURTH FLOOR-S44 with Judge DENO HIMONAS

Reason: Case transferred to another court

07-14-2008 Filed order: Minute Entry

Judge ROBERT K. HILDER

Signed July 11, 2008

07-17-2008 SCHEDULING CONFERENCE scheduled on August 11, 2008 at 01:30 PM in THIRD FLOOR - S32 with Judge ROBIN W REESE

07-18-2008 Minute Entry - Minutes for TELEPHONE CONFERENCE

Judge: ROBIN W. REESE

PRESENT

Clerk: marlened

TELEPHONE CONFERENCE

Prosecutor: STOTT, ROBERT L

Defendant not present

Defendant's Attorney(s): MACK, DAVID P. S

HEARING

C/O SCHEDULE CASE FOR FOR SCHEDULING CONFERENCE

SCHEDULING CONFERENCE is scheduled.

Date: 08/11/2008

Time: 01:30 p.m.

Location: Third Floor - S32

Before Judge: ROBIN W. REESE

Third District Court

450 South State

SLC, UT 84114-1860

07-30-2008 Filed: Stipulation

07-30-2008 Filed: MEDIA INTERVENORS' MOTION FOR ATTORNEYS' EYES ONLY ACCESS TO "COBB LETTER"

07-30-2008 Filed: MOTION FOR LIMITED INTERVENTION OF THE UTAH HEADLINERS CHAPTER OF THE SOCIETY OF PROFESSIONAL JOURNALISTS

07-31-2008 Filed: MOTION FOR LIMITED INTERVENTION OF THE SALT LAKE TRIBUNE AND REQUEST FOR NOTICE OF MOTIONS TO CLOSE OR SEAL JUDICIAL PROCEEDINGS ON RECORDS

07-31-2008 Filed: JOINDER OF THE SALT LAKE TRIBUNE IN MOTION FOR ATTORNEYS' EYES ONLY ACCESS TO "COBB LETTER"

08-01-2008 Filed: MEMORANDUM IN SUPPORT OF MEDIA INTERVENORS' MOTION FOR

ATTORNEYS' EYES ONLY ACCESS TO "COBB LETTER"

08-07-2008 Filed: Motion to compel discovery and request for hearing

08-12-2008 Filed: Defendant's answer to media intervenors' motion for eyes-only access to "cobb Letter"

08-13-2008 Filed: THIRD SUPPLEMENTAL RESPONSE TO REQUEST FOR DISCOVERY

08-14-2008 Minute Entry - Minutes for TELEPHONE CONFERENCE
Judge: SHEILA K. MCCLEVE

PRESENT
Clerk: nicolelb
Prosecutor: ROBERT L STOTT
Other Attorneys: JEFFREY J HUNT
Other Attorneys: DAVID C REYMANN
Defendant not present
Defendant's Attorney(s): RALPH DELLAPIANA
Defendant's Attorney(s): DAVID P. S MACK
Video
Tape Number: 8/14/08 Tape Count: Off

HEARING
TAPE: 8/14/08 COUNT: Off
Hearing is set on Motion for Eyes-Only Access to "Cobb Letter". Mr. Hunt to prepare Order Granting Motion for Limited Intervention of the Utah Headliners Chapter of the Society of Professional Journalists.

08-14-2008 MOTION HEARING (1 HOUR) scheduled on September 23, 2008 at 11:00 AM in FOURTH FLOOR-S41 with Judge SHEILA K. MCCLEVE

08-14-2008 Filed: SUBPOENA DUCES TECUM - SLC POLICE DEPARTMENT

08-14-2008 Filed: SUBPOENA DUCES TECUM - MURRAY CITY POLICE DEPARTMENT

08-14-2008 Filed: SUBPOENA DUCES TECUM - WEST VALLEY CITY POLICE DEPARTMENT

08-14-2008 Filed: SUBPOENA DUCES TECUM - TAYLORSVILLE CITY POLICE DEPARTMENT

08-15-2008 Fee Account created Total Due: 344.00

08-15-2008 REPORTER FEES Payment Received: 344.00
Note: REPORTER FEES

08-18-2008 Filed: Subpoena Duces Tecum - Arby's

08-19-2008 Minute Entry - Minutes for Review Hearing
Judge: ROBIN W. REESE

PRESENT
Clerk: marlened
Prosecutor: VINCENT B MEISTER
Prosecutor: ROBERT L STOTT
Defendant Present
Defendant's Attorney(s): HEATHER A BRERETON
Defendant's Attorney(s): RALPH DELLAPIANA
Defendant's Attorney(s): BRENNON L FUELLING
Defendant's Attorney(s): DAVID P. S MACK
Video
Tape Number: TAPE Tape Count: 2:00

HEARING
ON STIPULATION, C/O SCHEDULE CASE FOR 4-DAY PRELIMINARY HEARING
4-DAY PRELIMINARY HEARING is scheduled.
Date: 01/27/2009
Time: 09:00 a.m.

Location: Third Floor - S32
Before Judge: ROBIN W. REESE
Third District Court
450 South State
SLC, UT 84114-1860

4-DAY PRELIMINARY HEARING.

Date: 01/28/2009
Time: 09:00 a.m.
Location: Third Floor - S32
Before Judge: ROBIN W. REESE
Third District Court
450 South State
SLC, UT 84114-1860

4-DAY PRELIMINARY HEARING.

Date: 01/29/2009
Time: 09:00 a.m.
Location: Third Floor - S32
Before Judge: ROBIN W. REESE
Third District Court
450 South State
SLC, UT 84114-1860

4-DAY PRELIMINARY HEARING.

Date: 01/30/2009
Time: 09:00 a.m.
Location: Third Floor - S32
Before Judge: ROBIN W. REESE
Third District Court
450 South State
SLC, UT 84114-1860

09-03-2008 Filed: Reply memorandum in support of media intervenors' motion for attorneys eyest only access to "cobb letter"

09-05-2008 Filed: request to submit for decision

09-05-2008 Filed order: order granting motion for limited intervention of the desert morning news, the salt lake tribune, and the utah headliners chapter of the society of professional journalists

Judge SHEILA K. MCCLEVE
Signed August 25, 2008

09-23-2008 Minute Entry - Minutes for MOTION HEARING

Judge: SHEILA K. MCCLEVE

PRESENT

Clerk: nicolelb
Reporter: SPROUSE, SUSAN
Prosecutor: ROBERT L STOTT
Other Attorneys: JEFFREY J HUNT
Other Attorneys: DAVID C REYMANN
Defendant Present
Defendant's Attorney(s): HEATHER A BRERETON
Defendant's Attorney(s): RALPH DELLAPIANA
Defendant's Attorney(s): DAVID P. S MACK

Video

Tape Number: 9/23/08 Tape Count: 11:08

HEARING

TAPE: 9/23/08 COUNT: 11:08

Parties argue Media Intervenors' Motion for Attorneys Eyes Only Access to "Cobb Letter". (Jeffrey Hunt)
COUNT: 11:13
Ralph Dellapiana (response)
COUNT: 11:21
Jeffrey Hunt (rebuttal)
COUNT: 11:27
Court grants Motion for Eyes Only Access. Mr. Hunt to prepare order.

09-30-2008 Filed order: Order
Judge SHEILA K. MCCLEVE
Signed September 30, 2008

11-19-2008 Filed: Media Intervenors' motion to unseal "the cobb letter" (oral argument requested)

11-20-2008 Filed: media intervenors' consolidated memorandum in support of motion to unseal "the cobb letter" and in opposition to defendant's motion to seal "the cobb letter"

11-25-2008 Filed: L etter from defendant forwarded to counsel

11-26-2008 Filed: FOURTH SUPPLEMENTAL RESPONSE TO REQUEST FOR DISCOVERY

12-30-2008 Filed: State's Motion to Compel Buccal (Mouth) Swabs of the Defendant for the Purpose of Obtaining Saliva Samples
Filed by: STATE OF UTAH

01-05-2009 SCHEDULING CONF scheduled on January 12, 2009 at 12:00 PM in FOURTH FLOOR-S41 with Judge SHEILA K. MCCLEVE

01-05-2009 MOTION HEARING scheduled on February 27, 2009 at 09:00 AM in FOURTH FLOOR-S41 with Judge SHEILA K. MCCLEVE

01-07-2009 ***** SEALED ***** Filed: Defendant's Answer to Media Intervenors' Motion to Unseal the "Cobb Letter"

01-12-2009 Minute Entry - Minutes for SCHEDULING CONFERENCE
Judge: SHEILA K. MCCLEVE
PRESENT
Clerk: nicolelb
Reporter: MCDANIEL, VICKY
Prosecutor: VINCENT B MEISTER
Prosecutor: ROBERT L STOTT
Defendant Present
Defendant's Attorney(s): RALPH DELLAPIANA
Defendant's Attorney(s): BRENNON L FUELLING
Defendant's Attorney(s): DAVID P. S MACK
Video
Tape Number: 1/12/09 Tape Count: 12:16
HEARING
TAPE: 1/12/09 COUNT: 12:16
LDA files Notice of Conflict and Motion to Withdraw as Court-Appointed Counsel. State to respond by Friday 1/16/09. LDA to prepare order on Court's previous ruling granting in part and denying earlier Motion to Withdraw.
LDA files Motion for Double-Cuff Order. State will not object provided defense complies with Sheriff's policy which requires medical verification of defendant's need. Court takes under advisement pending LDA's compliance with policy. Parties instructed
to contact Judge Reese regarding motion to continue preliminary hearing. Court will contact Brown & Moffat to ask Mr. Brown to represent Mr. Allgier regarding potential conflict. Matter set for hearing on Motion to Withdraw.
MOTION TO WITHDRAW is scheduled.

Date: 01/29/2009
Time: 10:00 a.m.
Location: Fourth Floor - S41
Before Judge: SHEILA K. MCCLEVE
Third District Court
450 South State
SLC, UT 84114-1860

01-12-2009 Minute Entry - Minutes for Review Hearing
Judge: ROBIN W. REESE

PRESENT
Clerk: marlened
Prosecutor: MEISTER, VINCENT B
Defendant not present
Defendant's Attorney(s): FUELLING, BRENNON L
Video
Tape Number: TAPE Tape Count: 1:51

HEARING
ON STIPULATION, COURT ORDERED CASE SET FOR SCHEDULING
CONFERENCE - PRELIMINARY HEARING DATES TO BE CANCELLED
SCHEDULING CONFERENCE is scheduled.

Date: 01/30/2009
Time: 09:00 a.m.
Location: Third Floor - S32
Before Judge: ROBIN W. REESE
Third District Court
450 South State
SLC, UT 84114-1860

01-12-2009 SCHEDULING CONFERENCE scheduled on January 30, 2009 at 09:00 AM
in THIRD FLOOR - S32 with Judge ROBIN W REESE

01-13-2009 Filed: Notice of Conflict and Motion to Withdraw as Court-
Appointed Counsel
Filed by: SALT LAKE LEGAL DEFENDERS

01-13-2009 Filed: Motion for Double-Cuff Order
Filed by: SALT LAKE LEGAL DEFENDERS et al.

01-13-2009 MOTION TO WITHDRAW scheduled on January 29, 2009 at 10:00 AM in
FOURTH FLOOR-S41 with Judge SHEILA K. MCCLEVE

01-13-2009 Note: Court spoke with Kenneth Brown regarding possible
conflict with LDA and notified on hearing date. Clerk faxed
Notice of Conflict and Motion to Withdraw and Minute Entry to
Mr. Brown's office.

01-15-2009 Filed: State's Answer to Defense's Motion to Withdraw as Court-
Appointed Counsel

01-29-2009 Minute Entry - Minutes for MOTION TO WITHDRAW
Judge: SHEILA K. MCCLEVE

PRESENT
Clerk: nicolelb
Prosecutor: ROBERT L STOTT
Prosecutor: VINCENT B MEISTER
Defendant not present
Defendant's Attorney(s): HEATHER A BRERETON
Defendant's Attorney(s): DAVID P. S MACK
Defendant's Attorney(s): RALPH DELLAPIANA
Video
Tape Number: 1/29/08 Tape Count: 10:17

HEARING

TAPE: 1/29/08 COUNT: 10:17

Deft not present. Defense to look into medical issues to support double cuff motion. Defense advises they will file amended motion to withdraw by 2/2/09. State to respond by 2/9/09. State withdraws motion for cheek swab. Matter set for hearing.

MOTION TO WITHDRAW.

Date: 02/11/2009

Time: 03:00 p.m.

Location: Fourth Floor - S41

Before Judge: SHEILA K. MCCLEVE

Third District Court

450 South State

SLC, UT 84114-1860

01-30-2009 Minute Entry - Minutes for SCHEDULING CONFERENCE

Judge: ROBIN W. REESE

PRESENT

Clerk: marlened

Prosecutor: ROBERT L STOTT

Prosecutor: VINCENT B MEISTER

Defendant Present

Defendant's Attorney(s): RALPH DELLAPIANA

Defendant's Attorney(s): DAVID P. S MACK

Defendant's Attorney(s): BRENNON L FUELLING

Defendant's Attorney(s): HEATHER A BRERETON

Video

Tape Number: TAPE Tape Count: 9:34

HEARING

STATE'S MOTION FOR SCHEDULING A PRELIMINARY HEARING

DEFT OBJECTED TO SCHEDULE A PRELIMINARY HEARING DATE AT THIS TIME

COURT ORDERED PRELIMINARY HEARING BE SCHEDULED

-COURT ORDERED STATE TO SUBMIT WITNESS LIST BY 2/6/09

-DEFT TO SUBMIT WITNESS LIST BY 2/27/09

-COURT ORDERED BOTH PARTIES TO EXCHANGE WITNESS LISTS

4-DAY PRELIMINARY HEARING is scheduled.

Date: 10/20/2009

Time: 09:00 a.m.

Location: Third Floor - S32

Before Judge: ROBIN W. REESE

Third District Court

450 South State

SLC, UT 84114-1860

4-DAY PRELIMINARY HEARING.

Date: 10/21/2009

Time: 09:00 a.m.

Location: Third Floor - S32

Before Judge: ROBIN W. REESE

Third District Court

450 South State

SLC, UT 84114-1860

4-DAY PRELIMINARY HEARING.

Date: 10/22/2009
Time: 09:00 a.m.
Location: Third Floor - S32
Before Judge: ROBIN W. REESE
Third District Court
450 South State
SLC, UT 84114-1860

4-DAY PRELIMINARY HEARING.

Date: 10/23/2009
Time: 09:00 a.m.
Location: Third Floor - S32
Before Judge: ROBIN W. REESE
Third District Court
450 South State
SLC, UT 84114-1860

- 01-30-2009 Cancelled: 4-DAY PRELIMINARY HEARING scheduled on October 20, 2009 at 09:00 AM in THIRD FLOOR - S32 with Judge ROBIN W REESE
- 01-30-2009 Cancelled: 4-DAY PRELIMINARY HEARING scheduled on October 21, 2009 at 09:00 AM in THIRD FLOOR - S32 with Judge ROBIN W REESE
- 01-30-2009 Cancelled: 4-DAY PRELIMINARY HEARING scheduled on October 22, 2009 at 09:00 AM in THIRD FLOOR - S32 with Judge ROBIN W REESE
- 01-30-2009 Cancelled: 4-DAY PRELIMINARY HEARING scheduled on October 23, 2009 at 09:00 AM in THIRD FLOOR - S32 with Judge ROBIN W REESE
- 01-30-2009 MOTION TO WITHDRAW scheduled on February 11, 2009 at 03:00 PM in FOURTH FLOOR-S41 with Judge SHEILA K. MCCLEVE
- 02-02-2009 Filed: Supplemental Notice of Conflict and Motion to Withdraw as Court-Appointed Counsel
- 02-02-2009 Filed by: DAVID P. S MACK
- 02-02-2009 Filed: Fifth Supplemental Response to Request for Discovery
- 02-02-2009 Filed: Request to Submit for Decision: (1) Defendant's Motion to Seal "The Cobb Letter" and (2) Media Intervenors' Motion to Unseal "The Cobb Letter"
- 02-02-2009 Filed: Media Intervenors' Ex Parte Application for Leave to File Overlength Reply Memorandum in Support of Motion to Unseal "The Cobb Letter"
- 02-02-2009 ***** SEALED ***** Filed: Media Intervenors' Reply Memorandum in Support of Motion to Unseal "The Cobb Letter" (Filed Seal Pursuant to Court Order)
- 02-05-2009 Filed: State's objection to defendant's finding of fact and conclusions of law and order regarding notice of conflict and motion to withdraw as court-appointed counsel
- 02-05-2009 Filed: STATE'S ANSWER TO DEFENSE'S SUPPLEMENTAL NOTICE OF CONFLICT AND MOTION TO WITHDRAW AS COURT-APPOINTED COUNSEL
- 02-11-2009 Filed: sixth supplemental response to request for discovery
- 02-11-2009 Minute Entry - Minutes for MOTION

Judge: SHEILA K. MCCLEVE

PRESENT

Clerk: jennifaj
Prosecutor: VINCENT B MEISTER
Prosecutor: ROBERT L STOTT
Defendant Present
Defendant's Attorney(s): HEATHER A BRERETON
Defendant's Attorney(s): RALPH DELLAPIANA
Defendant's Attorney(s): BRENNON L FUELLING
Defendant's Attorney(s): DAVID P. S MACK
Video

Tape Number: s41 Tape Count: 3:15:24

HEARING

Counsel argues on issue of double cuffing. State to get a corrected report from the jail addressing the double cuffing question not cuffing in front as current report has done, with in the week.

Defense may as well submit a doctors report with in the same time. Court will rule on cuffing issue as soon as reports are received.

counsel argues on previous order denying defense motion to withdraw, defense to supply annotated partial findings and conclusions. Court takes matter under advisement

counsel argues on 2nd amended motion to withdraw, court takes under advisement

- 02-11-2009 Filed: seventh supplemental response to request for discovery
- 02-13-2009 Filed: states's answer to defendant's requests for appointed counsel under rule 8 of the utah rules of criminal procedure
- 02-13-2009 Filed: notice of citation to clarify issues regarding reference "confidential communication"
- 02-18-2009 Filed: Letter from defendant - copies forwarded to attorneys.
- 02-19-2009 Filed: STATE'S ANSWER TO DEFENDANT'S NOTICE OF CITATIONS TO CLARIFY ISSUE REGARDING REFERENCE "CONFIDENTIAL COMMUNICATION"
- 02-19-2009 Note: MOTION minutes modified.
- 02-22-2009 Filed: Transcript, original, of motion to withdraw hearing held February 11, 2009; 107 pages plus word index; Susan Sprouse, Official Court Reporter
- 02-22-2009 Filed: Copy, single page, of title sheet for transcript of motion to withdraw proceedings heard February 11, 2009; Susan Sprouse, Official Court Reporter
- 02-23-2009 Filed: objectio nto state's proposed findings of fact and conclusions of law and order regarding notice of conflict and motion to withdraw as court-appointed counsel
- 02-25-2009 Filed order: ruling
Judge SHEILA K. MCCLEVE
Signed February 24, 2009
- 02-25-2009 Filed order: findings of fact and conclusions of law
Judge SHEILA K. MCCLEVE
Signed February 24, 2009
- 02-25-2009 Filed order: memorandum decision re: defense motion to withdraw as court-appointed counsel
Judge SHEILA K. MCCLEVE
Signed February 25, 2009
- 02-27-2009 Minute Entry - Minutes for MOTION HEARING
Judge: SHEILA K. MCCLEVE

PRESENT

Clerk: nicolelb
Reporter: SUDWEEKS, JODI
Prosecutor: VINCENT B MEISTER
Prosecutor: ROBERT L STOTT
Other Attorneys: JEFFREY J HUNT
Other Attorneys: DAVID C REYMANN
Defendant Present
Defendant's Attorney(s): HEATHER A BRERETON
Defendant's Attorney(s): RALPH DELLAPIANA
Video

Tape Number: 2/27/09 Tape Count: 9:53

HEARING

TAPE: 2/27/09 COUNT: 9:53
The parties indicated they had received the Court's ruling denying defense counsel's motion to withdraw. Defense counsel are in the process of determining whether to take an interlocutory appeal of the Court's ruling on their motion. Neither did defense counsel argue nor could the Court find that any prejudice would result to the defendant by proceeding with the hearing on Intervenor's motion. Intervenor's motion to unseal the Cobb letter was argued. The procedural arguments were made in open court.
The substantive arguments regarding the content of the letter were made on the record in the closed courtroom and the Court ordered the record of the substantive portion to be sealed. The Court took the Intervenor's motion under advisement and indicated it would rule on the motion by March 18th at 10:00 am which is the next court setting on the case. The court assured the parties that if the court were to grant the Intervenor's motion, the court would keep the record sealed long enough to allow the defense counsel time to file a motion to stay the unsealing and determine whether to take an interlocutory appeal on the Court's ruling. The Court also indicated to the parties that both Judge Reese and Judge McCleve would be able to reschedule and hear the preliminary hearing before October and as soon as possible once these motions will have been determined.

RULING/STATUS CONFERENCE is scheduled.

Date: 03/18/2009
Time: 10:00 a.m.
Location: Fourth Floor - S41
Before Judge: SHEILA K. MCCLEVE
Third District Court
450 South State
SLC, UT 84114-1860

- 03-03-2009 RULING/STATUS CONFERENCE scheduled on March 18, 2009 at 10:00 AM in FOURTH FLOOR-S41 with Judge SHEILA K. MCCLEVE
- 03-03-2009 Note: MOTION HEARING minutes modified.
- 03-11-2009 Filed: State's motion to reschedule the preliminary hearing
- 03-11-2009 Filed: eighth supplemental response to request for discovery
- 03-12-2009 Fee Account created Total Due: 218.00
- 03-12-2009 REPORTER FEES Payment Received: 218.00
Note: REPORTER FEES
- 03-12-2009 ***** SEALED ***** Filed order: Memorandum decision re: motion to unseal "the Cobb Letter"
- 03-18-2009 Ruling Entry - SCHEDULE
Judge: ROBIN W. REESE
COURT ORDERED CASE SET FOR SCHEDULING HEARING
- 03-18-2009 SCHEDULING HEARING scheduled on March 23, 2009 at 02:30 PM in THIRD FLOOR - S32 with Judge ROBIN W REESE
- 03-18-2009 Minute Entry - Minutes for RULING/STATUS CONFERENCE
Judge: SHEILA K. MCCLEVE
PRESENT
Clerk: nicolelb
Reporter: SUDWEEKS, JODI
Prosecutor: VINCENT B MEISTER
Prosecutor: ROBERT L STOTT
Other Attorneys: JEFFREY J HUNT

Defendant Present
Defendant's Attorney(s): HEATHER A BRERETON
Defendant's Attorney(s): RALPH DELLAPIANA
Video
Tape Number: S41 Tape Count: 10:21

HEARING

TAPE: S41 COUNT: 10:21
The court verified with counsel for defendant that they are still considering whether to file a petition for interlocutory appeal on its rulings thus far. The court indicated that it had received a motion from plaintiff to change the date of the preliminary hearing to an earlier date than scheduled, that Judge Reese, who is assigned to do the preliminary hearing, would hear that motion and that plaintiff would need to request a setting with Judge Reese for the motion. Having entered a memorandum decision on the motion to unseal the "Cobb Letter" on March 12, the court outlined the procedure it took to assure defendant his due process right to file a petition for interlocutory appeal regarding that ruling. The court explained having spoken with the State Court Public Information Officer by telephone indicating that only the court's order could be published. The court then prepared a sealed copy of the decision with only the court's order taped on top of the sealed envelope containing the decision. The court underlined pertinent portions of the order for the PIO and wrote an instruction at the top of the order. The court indicated it would include that one page document containing the instruction as part of the record. The court found that the PIO's mistaken release of sealed information in the decision and subsequent quick recall by the media of stories based on the information was so slight in time and public exposure that it did not interfere with defendant's due process right to appeal the order of the court to unseal the "Cobb Letter".

03-19-2009 Filed: Copy of order with handwritten instruction to Public Information Officer

03-23-2009 Minute Entry - Minutes for SCHEDULING CONFERENCE
Judge: ROBIN W. REESE

PRESENT

Clerk: marlened
Reporter: YOUNG, BRAD
Prosecutor: ROBERT L STOTT
Prosecutor: VINCENT B MEISTER
Defendant Present
Defendant's Attorney(s): DAVID P. S MACK
Defendant's Attorney(s): RALPH DELLAPIANA
Video
Tape Number: TAPE Tape Count: 2:29

HEARING

DEFENDANT WAIVES SPEEDY TRIAL
COURT GAVE COUNSEL EARLIER DATES FOR PRELIMINARY HEARING -
COUNSEL TO NOTIFY JUDGE BY 3/27/09

04-06-2009 Fee Account created Total Due: 353.00

04-06-2009 REPORTER FEES Payment Received: 353.00

Note: REPORTER FEES

04-07-2009 Filed: Supreme Court of Utah-Letter to Counsel-Petition for Interlocutory Appeal was filed on March 31, 2009-Case number 20090261-SC should be reflected on any future filings-20090261-SC

04-14-2009 Filed: Transcript of Ruling on March 18, 2007 by Jodi Sudweeks, RPR, CSR

04-14-2009 Filed: Transcript of Motion Hearing on February 27, 2009 by Jodi Sudweeks, RPR, CSR.

04-23-2009 Fee Account created Total Due: 59.00

04-23-2009 REPORTER FEES Payment Received: 59.00
Note: REPORTER FEES

04-23-2009 Fee Account created Total Due: 10.50

04-23-2009 REPORTER FEES Payment Received: 10.50
Note: REPORTER FEES

04-23-2009 Fee Account created Total Due: 218.00

04-23-2009 REPORTER FEES Payment Received: 218.00
Note: REPORTER FEES

06-12-2009 Minute Entry - Minutes for TELEPHONE CONFERENCE
Judge: ROBIN W. REESE
PRESENT
Clerk: marlened
TELEPHONE CONFERENCE
Prosecutor: ROBERT L STOTT
Prosecutor: VINCENT B MEISTER
Defendant not present
Defendant's Attorney(s): RALPH DELLAPIANA
Defendant's Attorney(s): DAVID P. S MACK
Tape Number: S-32 Tape Count: 11:33-11:38
HEARING
COUNT: 11:00
JUDGE ROBIN REESE, AND PAUL MAUGHAN PRESENT IN CHAMBERS
ROBERT STOTT AND VINCE MEISTER WERE PRESENT - RALPH DELLAPIANA AND DAVID MACK WERE ON THE SPEAKER PHONE
DISCUSSION REGARDING MEMO
(MEMO PLACED IN SEALED CONFIDENTIAL ENVELOPE)

07-13-2009 Filed order: Reassignment Order
Judge ROBERT K. HILDER
Signed July 13, 2009

07-13-2009 Judge PAUL G MAUGHAN assigned.

08-12-2009 Filed: Supreme Court letter to Mr. Mack regarding the interlocutory appeal. 20090261

08-12-2009 Filed: Supreme Court - Order - permission to appeal an interlocutory order is granted. 20090261 SC

08-18-2009 Filed: Designation of Record

08-18-2009 Filed: Certificate

08-20-2009 **** PROTECTED **** Filed: Motion to Stay Proceedings in Trial Court

08-26-2009 Filed: State's Response to Defendant's Motion to Stay Proceedings In Trial Court

08-27-2009 Fee Account created Total Due: 10.00

08-27-2009 AUDIO TAPE COPY Payment Received: 10.00

09-02-2009 Filed: Notice of Objection to Release of Recording of June 12, 2009 Conference

09-02-2009 Filed: Notice to Submit for Decision

09-02-2009 Filed: Motion to Seal Recorded Conference of June 12, 2009

09-02-2009 Filed by: DAVID P. S MACK
Filed: Motion for in Camera Hearing to Establish and Confirm Ground Rules Regarding Future Proceedings

09-03-2009 Filed by: DAVID P. S MACK
Filed: Motion to Seal E-Mail of June 10, 2009

09-09-2009 Filed by: HEATHER A BRERETON
Filed: TRANSCRIPT for Hearing of 09-23-2008

09-10-2009 Note: Court received transcript - Motion Hearing - 9/23/08

09-11-2009 Filed: Minute Entry (media to be served copies of motions to seal record so that they have opportunity to respond)

09-11-2009 Filed: Minute Entry (Motion to Stay Proceedings pending Appeal is denied)

09-29-2009 Filed: Notice to Submit for Decision

10-05-2009 Minute Entry - Minutes for Review Hearing
Judge: ROBIN W. REESE
PRESENT
Clerk: marlened
Prosecutor: MEISTER, VINCENT B
Defendant not present
Defendant's Attorney(s): MACK, DAVID P. S
Video
Tape Number: S-32 Tape Count: 3:42-3:58
HEARING
ON DEFENDANT'S MOTION TO RESCHEDULE BECAUSE CO-COUNSEL WILL BE LEAVING OFFICE - NOT OBJECTED TO BY STATE / COURT
ORDERED MOTION GRANTED - SET CASE FOR SCHEDULING CONFERENCE
-COURT ORDERED MR MACK TO SUBMIT A MOTION AND AGREEMENT OR NOT OBJECTING BY STATE TO BE IN WRITING SIGNED BY BOTH COUNSEL
-ALSO A SIGNED WAIVER BY DEFENDANT - WAIVING SPEEDY TRIAL
SCHEDULING CONFERENCE is scheduled.
Date: 10/20/2009
Time: 09:00 a.m.
Location: Third Floor - S32
Before Judge: ROBIN W. REESE
Third District Court
450 South State
SLC, UT 84114-1860

10-05-2009 SCHEDULING CONFERENCE scheduled on October 20, 2009 at 09:00 AM in THIRD FLOOR - S32 with Judge ROBIN W REESE

10-05-2009 Cancelled: 4-DAY PRELIMINARY HEARING scheduled on October 20, 2009 at 09:00 AM in THIRD FLOOR - S32 with Judge ROBIN W REESE
Reason: ATD requested continuance.

10-07-2009 Filed order: Minute Entry
Judge PAUL G MAUGHAN
Signed October 06, 2009

10-08-2009 Filed: Supreme Court of Utah-Order-Appellant's Motion to Stay Proceedings pending resolution of his Interlocutory Appeal is DENIED

10-20-2009 Minute Entry - Minutes for SCHEDULING CONFERENCE
Judge: ROBIN W. REESE
PRESENT
Clerk: marlened
Prosecutor: VINCENT B MEISTER
Defendant not present

Defendant's Attorney(s): DAVID P. S MACK
Defendant's Attorney(s): RALPH DELLAPIANA
Defendant's Attorney(s): HEATHER A BRERETON
Video

Tape Number: S-32 Tape Count: 9:29

HEARING

DEFENDANT NOT PRESENT - REFUSED TO BE TRANSPORTED
ON DEFENDANT'S MOTION - STIPULATED TO BY STATE - COURT
ORDERED RESCHEDULE PRELIMINARY HEARING
-DEFENDANT TO SUBMIT A SIGNED WAIVED OF SPEEDY TRIAL

4-DAY PRELIMINARY HEARING is scheduled.

Date: 03/30/2010
Time: 09:00 a.m.
Location: Third Floor - S32
Before Judge: ROBIN W. REESE
Third District Court
450 South State
SLC, UT 84114-1860

4-DAY PRELIMINARY HEARING.

Date: 03/31/2010
Time: 09:00 a.m.
Location: Third Floor - S32
Before Judge: ROBIN W. REESE
Third District Court
450 South State
SLC, UT 84114-1860

4-DAY PRELIMINARY HEARING.

Date: 04/01/2010
Time: 09:00 a.m.
Location: Third Floor - S32
Before Judge: ROBIN W. REESE
Third District Court
450 South State
SLC, UT 84114-1860

4-DAY PRELIMINARY HEARING.

Date: 04/02/2010
Time: 09:00 a.m.
Location: Third Floor - S32
Before Judge: ROBIN W. REESE
Third District Court
450 South State
SLC, UT 84114-1860

- 10-20-2009 Cancelled: 4-DAY PRELIMINARY HEARING scheduled on March 30, 2010 at 09:00 AM in THIRD FLOOR - S32 with Judge ROBIN W REESE
- 10-20-2009 Cancelled: 4-DAY PRELIMINARY HEARING scheduled on March 31, 2010 at 09:00 AM in THIRD FLOOR - S32 with Judge ROBIN W REESE
- 10-20-2009 Cancelled: 4-DAY PRELIMINARY HEARING scheduled on April 01, 2010 at 09:00 AM in THIRD FLOOR - S32 with Judge ROBIN W REESE
- 10-20-2009 Cancelled: 4-DAY PRELIMINARY HEARING scheduled on April 02, 2010 at 09:00 AM in THIRD FLOOR - S32 with Judge ROBIN W REESE
- 10-20-2009 Filed: MOTION TO CONTINUE PRELIMINARY HEARING
- 10-21-2009 Filed: Media Intervenors' Ex Parte Application for Leave to File Overlength Memorandum in Opposition to Defendant's Motions to Seal Court Records

10-21-2009 Filed: Media Intervenors' Memorandum in Opposition to Defendant's Motions to Seal Court Records (Oral Argument Requested)

10-23-2009 Filed: WAIVER OF SPEEDY TRIAL

10-29-2009 Filed order: Order Granting Media Intervenors' Ex Parte Application for Leave to File Overlength Memorandum in Opposition to Defendant's Motions to Seal Court Records
Judge PAUL G MAUGHAN
Signed October 27, 2009

12-01-2009 Filed: TRANSCRIPT for Hearing of 01-12-2009

12-14-2009 Note: Record Indexed. Cert/copy of record index and record, files-2, transcripts - 13, envelopes - 5, sent to Merilyn @ Supreme Court. 20090261 SC

01-03-2010 Judge ROBERT FAUST assigned.

01-04-2010 Judge PAUL G MAUGHAN assigned.

01-11-2010 Note: Letters mailed to the court on 10-27-09, 11-13-09, 11-18-09 along with the attachments were mailed back to the defendant. Due to them being Ex parte communication, they were received by the clerk, but not presented to the court and not filed.

02-24-2010 Filed: Motion for Toxicological Testing of Blood
Filed by: DAVID P. S MACK

02-24-2010 Filed: Subpoena Duces Tecum to West Valley City Police

02-26-2010 Filed: Subpoena Duces Tecum to Salt Lake City Police

02-26-2010 Filed: Subpoena Duces Tecum to Salt Lake City Police Department

03-01-2010 Filed: MOTION FOR DOUBLE-CUFF ORDER

03-03-2010 Filed: Subpoena Duces Tecum on Return (Served U of U Orthopaedic Center)

03-03-2010 Filed: Subpoena Duces Tecum on Return (Served U of U Orthopaedic Center)

03-03-2010 Filed: Motion to Transfer Deft to Another Jail

03-03-2010 Filed: Affidavit of Curtis Allgier

03-03-2010 Filed: Subpoena Deces Tecum

03-05-2010 MOTION HEARING-DOUBLE CUFF scheduled on March 24, 2010 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

03-08-2010 Filed: Subpoena Duces Tecum - KSL Channel 5 News

03-08-2010 Filed: Subpoena Duces Tecum to KUTV 2 News

03-08-2010 Filed: Subpoena Duces Tecum - Salt Lake City Police Department Crim Lab

03-08-2010 Filed: Subpoena Duces Tecum - Salt Lake City Police Department - Evidence Department

03-08-2010 Filed: Subpoena Duces Tecum - Salt Lake County Sherriff's

03-09-2010 Filed: Subpoena Duces Tecum - Dr. Michael B. Strong

03-15-2010 Filed: Subpoena on Return (Officer William Merritt)

03-15-2010 Filed: Subpoena on Return (Served Officer Chad Evans)

03-15-2010 Filed: Subpoena on Return (Served Wendy Yajahira)

03-15-2010 Filed: Subpoena on Return (Served SLC Fire Dept)

03-15-2010 Filed: Subpoena Duces Tecum - Salt Lake county Shelly

03-15-2010 Filed: Subpoena - Maria Padilla

03-15-2010 Filed return: Subpoena Duces Tecum on Return - Leaving with Barbara England - New Dept
Party Served: KSL Channel 5 New
Service Type: Personal
Service Date: March 05, 2010
Garnishee:

03-15-2010 Filed return: Subpoena Duces Tecum - Leaving with Taylor - News Dept

Party Served: KUTV 2 NEWS
Service Type: Personal
Service Date: March 05, 2010
Garnishee:

03-15-2010 Filed return: Subpoena Duces Tecum - Leaving with Griffiths
Party Served: Salt Lake City Police Dept
Service Type: Personal
Service Date: March 05, 2010
Garnishee:

03-15-2010 Filed return: Subpoena Duces Tecum - Leaving with Griffiths
Party Served: Salt Lake City Police Dept
Service Type: Personal
Service Date: March 05, 2010
Garnishee:

03-15-2010 Filed return: Subpoena Duces Tecum - Leavintg with Shelly
Party Served: Salt Lake County Sherriff's
Service Type: Personal
Service Date: March 12, 2010
Garnishee:

03-15-2010 Filed return: Subpoena Duces Tecum - Leaving with Shelly -
Records Dept
Party Served: Salt Lake County Sheriff's
Service Type: Personal
Service Date: March 12, 2010
Garnishee:

03-15-2010 Filed return: Subpoena Duces Tecum - Leaving with Shelly -
Records Dept
Party Served: Salt Lake County Sheriff's
Service Type: Personal
Service Date: March 12, 2010
Garnishee:

03-15-2010 Filed return: Subpoena Duces Tecum - Leaving with Shelly -
Records Dept
Party Served: Salt Lake County Sheriff's
Service Type: Personal
Service Date: March 12, 2010
Garnishee:

03-15-2010 Filed return: Subpoena Duces Tecum - Leaving with Shelly -
Records Dept
Party Served: Salt Lake County Sherriff's
Service Type: Personal
Service Date: March 12, 2010
Garnishee:

03-15-2010 Filed return: Subpoena Duces Tecum - Leaving with Shelly -
Records Dept
Party Served: Salt Lake County Sherriff's
Service Type: Personal
Service Date: March 12, 2010
Garnishee:

03-15-2010 Filed return: Subpoena Duces Tecum on Return - Leaving with
Shelly - Records Dept
Party Served: Salt Lake County Sherriff's
Service Type: Personal
Service Date: March 12, 2010

Garnishee:

03-16-2010 Filed return: Subpoena - Dr. Michael B. Strong
Party Served: Amanda Keller, Secretary
Service Type: Personal
Service Date: March 08, 2010

Garnishee:

03-16-2010 Filed: Subpoena on Return (Served Jerome Beasley)
03-16-2010 Filed: Subpoena on Return (Served Officer Darren Sipes)
03-16-2010 Filed: Subpoena on Return (Served Officer Amanda Capps)
03-16-2010 Filed: Subpoena on Return (Served Officer Barry Larsen)
03-16-2010 Filed: Subpoena on Return (Served Officer David Malley)
03-16-2010 Filed: Subpoena on Return (Served Officer Brent Dangerfield)
03-16-2010 Filed: Subpoena on Return (Served Sgt D. Wendleboth)
03-16-2010 Filed: Subpoena on Return (Served Officer Scott Smalley)
03-16-2010 Filed: Subpoena on Return (Served Officer Marcos Garaycochea)
03-16-2010 Filed: Subpoena on Return (Served Deputy Lowery)
03-16-2010 Filed: Subpoena on Return (Served Sgt Joe Cyr)
03-16-2010 Filed: Subpoena on Return (Served Officer Nicholas Deland)
03-16-2010 Filed: Subpoena on Return (Served Officer Rick Farnsworth)
03-18-2010 Filed: SUBPOENA - UTAH HIGHWAY SAFETY OFFICE - ATTN: SGT. KEITH DOCKSTADER
03-18-2010 Filed: SUBPOENA - UTAH HIGHWAY SAFETY OFFICE, ATTN: SGT KEITH DOCKSTRADER
03-19-2010 Filed: Response to Subpoena Duces Tecum
03-19-2010 Filed: Subpoena - Giovanni Castillo
03-19-2010 Filed: Subpoena - Marvin Hollis
03-19-2010 Filed: Subpoena - Barry Larsen (Retired Officer with SLCPD #H37)
03-19-2010 Filed: Subpoena - Jeff Mousley
03-22-2010 Filed: Subpoena on Return (Served Dr Todd Wilcox)
03-22-2010 Filed: Letter from Salt Lake County Sherriff's Office advising the court that the defendant has been granted permission by Chief Deputy Rollin Cook to mary on 4-20-2010.
03-22-2010 Filed: Motion to Strike Defendant's Motion to Transfer Defendant to Another Jail
Filed by: VINCENT B MEISTER
03-22-2010 Filed: State's Response to Defendant's Motion for Double-Cuff Order
03-22-2010 Filed: Notice of Intent to Seek the Death Penaltry
03-23-2010 Filed return: Subpoena - Leaving with Dave harman
Party Served: Salt Lake City Fire Department
Service Type: Personal
Service Date: March 22, 2010

Garnishee:

03-23-2010 Filed: Ninth Supplemental Response to Request for Discovery
03-24-2010 Filed return: Supoena on Return - Served Marti
Party Served: Salt Lake City Fire Department
Service Type: Personal
Service Date: March 24, 2010

Garnishee:

03-24-2010 Filed: SUBPOENA - SALT LAKE CITY FIRE DEPARTMENT ATTN: MARTI
03-24-2010 Minute Entry - Minutes for MOTION HRG-DOUBLE CUFF
Judge: PAUL G. MAUGHAN
PRESENT

Clerk: cheril
Prosecutor: MEISTER, VINCENT B
Defendant Present
Defendant's Attorney(s): HEATHER A BRERETON
Defendant's Attorney(s): RUDY J BAUTISTA
Video
Tape Number: DVR W37 Tape Count: 9:09-9:49

HEARING

Parties present to address Defense Motion to Allow the Defendant to be Double Cuffed at the time of Preliminary Hearing.
Counsel is advised to speak with Judge Reese who will be handling the Preliminary Hearing.
Defense Motion for Release to another jail is denied at this time because of jurisdiction.

03-26-2010 Filed: MOTION FOR HANDCUFFING ORDER FOR PRELIMINARY HEARING
03-26-2010 Filed: MOTION FOR DOUBLE-CUFF ORDER
03-26-2010 Filed: TENTH SUPPLEMENTAL RESPONSE TO REQUEST FOR DISCOVERY
03-26-2010 Filed: Second Amended Information
03-26-2010 Ruling Entry - MOTION
Judge: ROBIN W. REESE
ON DEFENDANT'S HANDCUFFING ORDER - COURT ORDERED THE MOTION CAN'T BE ACCEPTED. THERE IS NO MAILING CERTIFICATE TO VERIFY DELIVERY TO PLAINTIFF'S COUNSEL (DAVID MACK'S SECRETARY NOTIFIED)
03-30-2010 Filed order: ORDER TO TRANSPORT
Judge L A DEVER
Signed March 30, 2010
03-30-2010 Charge 76-5-202 Severity F1 was amended to 76-5-202 severity CA
03-30-2010 Minute Entry - Minutes for Preliminary Hearing
Judge: ROBIN W. REESE

PRESENT

Clerk: marlened
Prosecutor: ROBERT L STOTT
Prosecutor: VINCENT B MEISTER
Defendant Present
Defendant's Attorney(s): DAVID P S MACK
Defendant's Attorney(s): RALPH DELLAPIANA
Defendant's Attorney(s): HEATHER A BRERETON
Defendant's Attorney(s): RUDY BAUTISTA
Video
Tape Number: S-32 Tape Count: 9:31

HEARING

COUNT: 9:31
COURT REPORTER - KATIE HARMON
COUNT: 9:31
SECOND AMENDED INFORMATION FILED
COUNT: 9:49
WITNESSES SWORN AND EXCLUDED FROM COURTROOM
COUNT: 9:51
DANIEL M JORGENSEN SW & EX - BEHALF OF STATE
COUNT: 9:53
EVIDENCE - STATE EXHIBIT #M OFFICE EQUIPMENT LIST, MARKED OFFERED AND RECEIVED.

COUNT: 9:55
EVIDENCE - STATE EXHIBIT #1 PHOTOGRAPH - STEPHEN ANDERSON'S
CLEAN ID BADGE, MARKED OFFERED AND RECEIVED.
COUNT: 10:08
LARRY BENZON SW & EX - BEHALF OF STATE
COUNT: 10:09
EVIDENCE - STATE EXHIBIT #3 UTAH CORRECTIONS DEPARTMENT -
TRAVEL ORDER FOR DEFENDANT, MARKED OFFERED AND RECEIVED.
COUNT: 10:23
MARK GIBSON SW & EX - BEHALF OF STATE
COUNT: 10:34
SCOTT JENACK SW & EX - BEHALF OF STATE
COUNT: 11:29
EVIDENCE STATE EXHIBIT #N DR NICHOLAS MAST - 1102 STATEMENT
DEFENDANT OBJECTED - COURT ORDERED STATE EXHIBIT #N MARKED
OFFERED AND RECEIVED.
COUNT: 11:33
JANIEL ERICKSON SW & EX - BEHALF OF STATE
COUNT: 11:39
EVIDENCE - STATE EXHIBIT #57 AERIAL VIEW OF TRISH TOWERS
HOUSE WITH FULL VIEW OF CUL-DE-SAC, MARKED OFFERED AND
RECEIVED.
COUNT: 11:42
EVIDENCE - STATE EXHIBIT #25 PHOTO - DRIVER SIDE VIEW OF
FORD EXPLORER, MARKED OFFERED AND RECEIVED.
COUNT: 11:43
EVIDENCE - STATE EXHIBIT #55 AERIAL VIEW OF TRISH TOWERS
HOUSE WITH A FULL VIEW OF YELLOW CAR OUT FRONT, MARKED
OFFERED AND RECEIVED.
COUNT: 11:45
EVIDENCE - STATE EXHIBIT #5 PHOTO - TRISH TOWER'S HOUSE
(FRONT OF HOUSE), MARKED OFFERED AND RECEIVED.
COUNT: 11:50
EVIDENCE - STATE EXHIBIT #21 PHOTO - SIDE VIEW OF ARBY'S
PHOTO SHOWS BACK OF FORD EXPLORER, MARKED OFFERED AND
RECEIVED.
COUNT: 11:57
EVIDENCE - STATE EXHIBIT #20 PHOTO - SIDE VIEW OF ARBY'S.
PHOTO SHOWS DRIVE-UP MENU, MARKED OFFERED AND RECEIVED.
COUNT: 1:30
DR STEWART WILLOCK SW & EX - BEHALF OF STATE
COUNT: 1:36
EVIDENCE - STATE EXHIBIT #49 PHOTO - U OF U ORTHOPEDIC
CENTER SURGERY ENTRANCE, MARKED OFFERED AND RECEIVED.
COUNT: 1:40
TRISHA TOWER SW & EX - BEHALF OF STATE
COUNT: 1:51
EVIDENCE - STATE EXHIBIT #6 PHOTO - A BROWN DRESSER INSIDE
TRISH TOWER'S HOUSE, MARKED OFFERED AND RECEIVED.
COUNT: 1:54
EVIDENCE - STATE EXHIBIT #8 PHOTO - TRISH TOWER'S HOUSE
(FRONT OF HOUSE BUT SHOWING DOWN THE SIDE OF HOUSE) MARKED
OFFERED AND RECEIVED.
COUNT: 1:59
EVIDENCE - STATE EXHIBIT #9 PHOTO - TRISH TOWER'S HOUSE
(CLOSE UP ON PHOTO OF THE SIDE OF THE HOUSE) MARKED OFFERED
AND RECEIVED.

COUNT: 2:00
EVIDENCE - STATE EXHIBIT #10 PHOTO - TRISH TOWER'S HOUSE (THE SIDE WALK ON THE SIDE OF THE HOUSE) MARKED OFFERED AND RECEIVED.
EVIDENCE - STATE EXHIBIT #11 PHOTO - TRISH TOWER'S HOUSE (BACK DOOR) MARKED OFFERED AND RECEIVED.
COUNT: 2:01
EVIDENCE - STATE EXHIBIT #12 PHOTO - TRISH TOWER'S HOUSE (BACKYARD) MARKED OFFERED AND RECEIVED.
COUNT: 2:02
EVIDENCE - STATE EXHIBIT #7 PHOTO - DEFENDANT'S PHOTO HANGING ON WALL AND A CALENDAR OF JUNE 2007 INSIDE TRISH TOWER'S HOUSE, MARKED OFFERED AND RECEIVED.
COUNT: 2:05
EVIDENCE - STATE EXHIBIT #13 PHOTO - BLACK BAG (BACK) MARKED OFFERED AND RECEIVED.
COUNT: 2:05
EVIDENCE - STATE EXHIBIT #14 PHOTO - TWO SUPER SAVER FOODS GROCERY SACKS, MARKED OFFERED AND RECEIVED.
COUNT: 2:05
EVIDENCE - STATE EXHIBIT #15 PHOTO - BLACK BAG (FRONT OF BAG WITH SLOTS FOR PHOTOS) MARKED OFFERED AND RECEIVED.
COUNT: 2:11
EVIDENCE - STATE EXHIBIT #39 PHOTO OF DEFENDANT. DEFENDANT HAS BLOOD ON SHIRT AND IS MISSING A SHOE, MARKED OFFERED AND RECEIVED.
COUNT: 2:50
RUSSELL TOWER SW & EX - BEHALF OF STATE
COUNT: 3:11
GREG SHAVER SW & EX - BEHALF OF STATE
COUNT: 3:16
EVIDENCE - STATE EXHIBIT #16 PHOTO - AERIAL PHOTO OF 1-15 TO 2-15. NORTH TO SOUTH VIEW, MARKED OFFERED AND RECEIVED.
EVIDENCE - STATE EXHIBIT #17 PHOTO - AERIAL PHOTOS OF 1-15 TO 2-15. SOUTH TO NORTH VIEW, MARKED OFFERED AND RECEIVED.
EVIDENCE - STATE EXHIBIT #18 PHOTO - AERIAL CLOSE-UP PHOTO OF FREEWAY WITH DEPUTY SHAVERS, MARKED OFFERED AND RECEIVED.
EVIDENCE - STATE EXHIBIT #19 PHOTO - AERIAL CLOSER-UP PHOTO OF FREEWAY WITH DEPUTY SHAVERS, MARKED OFFERED AND RECEIVED.
COUNT: 3:18
EVIDENCE - STATE EXHIBIT #51 PHOTO - A SET OF SPIKE STRIPS IN A BOX
COUNT: 3:19
EVIDENCE - STATE EXHIBIT #52 PHOTO - A SET OF SPIKE STRIPS ON THE GROUND, MARKED OFFERED AND RECEIVED.
EVIDENCE - STATE EXHIBIT #53 PHOTO - A SET OF SPIKE STRIPS SPREAD OUT ACROSS THE CEMENT, MARKED OFFERED AND RECEIVED.
COUNT: 3:20
EVIDENCE - STATE EXHIBIT #54 PHOTO - A SPIKE LAYING ON THE GROUND, MARKED OFFERED AND RECEIVED.
COUNT: 3:53
COURT ORDERED CONTINUED TO 3/31/10 AT 9:00 A.M.

03-30-2010 Charge 3 amended to 1st Degree Felony
03-31-2010 Minute Entry - Minutes for Preliminary Hearing
Judge: ROBIN W. REESE
PRESENT

Clerk: marlened
Prosecutor: ROBERT L STOTT
Prosecutor: VINCENT B MEISTER
Defendant Present
Defendant's Attorney(s): DAVID P S MACK
Defendant's Attorney(s): RALPH DELLAPIANA
Defendant's Attorney(s): HEATHER A BRERETON
Defendant's Attorney(s): RUDY BAUTISTA
Video

Tape Number: S-32 Tape Count: 9:30

HEARING

COUNT: 9:30
COURT REPORTER - BRAD YOUNG
COUNT: 9:30
PETER SAUERS SW & EX - BEHALF OF STATE
COUNT: 9:50
EVIDENCE - STATE EXHIBIT #18 AERIAL CLOSE-UP PHOTO OF
FREEWAY WITH DEPUTY SHAVERS - ALREADY RECEIVED - NEW ILLUSTRATION
COUNT: 10:32
EVIDENCE - STATE EXHIBIT #23 PHOTO - BACK OF THE FORD
EXPLORER AND VIEW OF THE PASSENGER SIDE, MARKED OFFERED AND
RECEIVED.
COUNT: 10:33
EVIDENCE - STATE EXHIBIT #22 PHOTO - FRONT OF THE FORD
EXPLORER, MARKED OFFERED AND RECEIVED.
COUNT: 10:33
EVIDENCE - STATE EXHIBIT #24 PHOTO - FORD EXPLORER MISSING
TIRE, MARKED OFFERED AND RECEIVED.
COUNT: 10:35
ALEJANDRO GOMEZ (WITH INTERPRETER) SW & EX - BEHALF OF
STATE
COUNT: 10:48
EVIDENCE - STATE EXHIBIT #27 PHOTO - INSIDE OF ARBY'S. ON
THE FLOOR IS A ORANGE CONE WITH #12, ARBY'S HAT SUNGLASSES
AND PRESCRIPTION GLASSES, MARKED OFFERED AND RECEIVED.
COUNT: 10:55
EVIDENCE - STATE EXHIBIT #29 PHOTO - THE BACK OF ALEJANDRO
GOMEZ'S HEAD, MARKED OFFERED AND RECEIVED.
COUNT: 11:25
ERIC FULLERTON SW & EX - BEHALF OF STATE
COUNT: 11:28
EVIDENCE - STATE EXHIBIT #28 PHOTO - OUTSIDE VIEW OF
ARBY'S. PHOTO SHOWS VIEW OF PARKING LOT, MARKED OFFERED AND
RECEIVED.
COUNT: 11:47
EVIDENCE - STATE EXHIBIT #32 PHOTO - ENTRANCE INTO ARBY'S,
MARKED OFFERED AND RECEIVED.
COUNT: 11:51
EVIDENCE - STATE EXHIBIT #33 PHOTO - A CUT ON ERIC
FULLERTON'S NECK, MARKED OFFERED AND RECEIVED.
COUNT: 11:51
EVIDENCE - STATE EXHIBIT #34 PHOTO - CLOSE-UP SHOT OF THE
CUTS ON ERIC FULLERTON'S NECK, MARKED OFFERED AND RECEIVED.
COUNT: 11:51
EVIDENCE - STATE EXHIBIT #35 PHOTO - CLOSE-UP SHOT OF CUT
ON ERIC FULLERTON'S NECK, MARKED OFFERED AND RECEIVED.

COUNT: 11:51
EVIDENCE - STATE EXHIBIT #36 PHOTO - RIGHT SIDE VIEW OF ERIC FULLERTON'S FACE, MARKED OFFERED AND RECEIVED.

COUNT: 11:51
EVIDENCE - STATE EXHIBIT #37 PHOTO - CLOSER-UP SHOT OF THE TOP OF ERIC FULLERTON'S HEAD, MARKED OFFERED AND RECEIVED.

COUNT: 11:51
EVIDENCE - STATE EXHIBIT #38 PHOTO - CLOSE-UP SHOT OF THE TOP OF ERIC FULLERTON'S HEAD, MARKED OFFERED AND RECEIVED.

COUNT: 1:07
EVIDENCE - DEFENDANT EXHIBIT #B DIAGRAM OF THE ARBY'S INTERIOR WITH NUMBERS 5 AND 11, MARKED OFFERED AND RECEIVED.

COUNT: 2:06
EVIDENCE - STATE EXHIBIT #61 PHOTO - ERIC FULLERTON, MARKED OFFERED AND RECEIVED.

COUNT: 2:08
MARCOS GARAYCOCHEA SW & EX - BEHALF OF STATE

COUNT: 2:17
EVIDENCE - STATE EXHIBIT #46 PHOTO - HANDGUN AND MAGAZINE, MARKED OFFERED AND RECEIVED.

COUNT: 2:17
EVIDENCE - STATE EXHIBIT #47 PHOTO - CLOSE-UP SHOT OF THE END OF THE HANDGUN AND THE TOP OF THE MAGAZINE, MARKED OFFERED AND RECEIVED.

COUNT: 2:18
EVIDENCE - STATE EXHIBIT #48 PHOTO - CLOSE-UP OF THE SIDE OF THE HANDGUN, MARKED OFFERED AND RECEIVED.

COUNT: 2:44
BRIAN JEWKES SW & EX - BEHALF OF STATE

COUNT: 2:57
SCOTT SCRIVEN SW & EX - BEHALF OF STATE

COUNT: 2:59
EVIDENCE - STATE EXHIBIT #45 PHOTO - A KNIFE WITH SOME BLOOD ON IT, MARKED OFFERED AND RECEIVED.

COUNT: 3:03
DAN WENDELBOTH (CALLED OUT OF ORDER) SW & EX - BEHALF OF DEFENDANT

COUNT: 3:18
KAREN KIDO SW & EX - BEHALF OF STATE

COUNT: 3:24
EVIDENCE - STATE EXHIBIT #2 PHOTO - STEPHEN ANDERSON'S EMPTY GUN HOLSTER AND LAW ENFORCEMENT BADGE, MARKED OFFERED AND RECEIVED.

COUNT: 3:24
EVIDENCE - STATE EXHIBIT #4 PHOTO - STEPHEN ANDERSON'S BLOODY BADGE, MARKED OFFERED AND RECEIVED.

COUNT: 3:26
EVIDENCE - STATE EXHIBIT #A ROOM 1456 - HOSPITAL CRIME SCENE DIAGRAM, MARKED OFFERED AND RECEIVED.

COUNT: 3:29
BONNIE STEWART SW & EX - BEHALF OF STATE

COUNT: 3:35
OFFICER WORSENCROFT SW & EX - BEHALF OF STATE

COUNT: 3:40
EVIDENCE - STATE EXHIBIT #40 PHOTO OF ORANGE JUMPSUIT IN FORENSIC EVIDENCE CABINET, MARKED OFFERED AND RECEIVED.

COUNT: 3:40
EVIDENCE - STATE EXHIBIT #41 PHOTO - BACK OF THE ORANGE JUMPSUIT. CRIME SCENE TECH MEASURING JUMPSUIT, MARKED OFFERED AND RECEIVED.
COUNT: 3:40
EVIDENCE - STATE EXHIBIT #42 PHOTO OF THE FRONT OF THE ORANGE JUMPSUIT. CRIME SCENE TECH MEASURING JUMPSUIT, MARKED OFFERED AND RECEIVED.
COUNT: 3:42
MARK KNIGHTON SW & EX - BEHALF OF STATE
COUNT: 3:51
EVIDENCE - STATE EXHIBIT # I WAKEFIELD BALLISTIC REPORT 11/1/07 "1102" MARKED OFFERED AND RECEIVED
COUNT: 3:51
EVIDENCE - STATE EXHIBIT # J WAKEFIELD BALLISTIC REPORT 11/20/08 "1102" MARKED OFFERED AND RECEIVED.
COUNT: 3:52
EVIDENCE - STATE EXHIBIT # H MEDICAL EXAMINER REPORT "1102" (DEFENDANT OBJECTED), MARKED OFFERED AND RECEIVED.
COUNT: 3:57
EVIDENCE - STATE EXHIBIT # K JUDGMENT SENTENCE AND COMMITMENT BURGLARY, 3/26/01 - STIPULATION, MARKED OFFERED AND RECEIVED.
COUNT: 3:57
EVIDENCE - STATE EXHIBIT # L FEDERAL JUDGMENT, SENTENCE AND COMMITMENT - POSSESSION BY RP, STIPULATION, MARKED OFFERED AND RECEIVED.
COUNT: 4:05
STATE RESTS
COUNT: 4:29

COURT ORDERED CONTINUE TO 4/1/10 AT 9:00 A.M.

04-01-2010 ARRAIGNMENT scheduled on April 12, 2010 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

04-01-2010 Note: Case Bound Over

04-01-2010 Minute Entry - Minutes for PRELIMINARY HEARING

Judge: ROBIN W. REESE

PRESENT

Clerk: marlened
Prosecutor: STOTT, ROBERT L
Defendant Present
Defendant's Attorney(s): DAVID P S MACK
Defendant's Attorney(s): RALPH DELLAPIANA
Defendant's Attorney(s): HEATHER A BRERETON
Defendant's Attorney(s): RUDY BAUTISTA
Video

Tape Number: S-32 Tape Count: 9:30

HEARING

COUNT: 9:30
COURT REPORTER - SUSAN SPROUSE
COUNT: 9:31
DEFENDANT'S MOTION FOR COURT TO DEFER RULING TO CONTACT WITNESSES
COUNT: 9:37
STATE RESPONDED
COUNT: 9:41
DEFENDANT RESPONDED

COUNT: 9:43
COURT ORDERED MOTION DENIED
COUNT: 9:45
RICHARD FARNSWORTH SW & EX - BEHALF OF DEFENDANT
COUNT: 9:54
EVIDENCE - STATE EXHIBIT #44 PHOTO - CLOSE-UP VIEW TO THE
ENTRANCE OF ARBY'S, MARKED OFFERED AND RECEIVED.
COUNT: 9:56
JOSEPH CYR SW & EX - BEHALF OF DEFENDANT
COUNT: 10:01
CARY TURNER SW & EX - BEHALF OF DEFENDANT
COUNT: 10:03
EVIDENCE - DEFENDANT EXHIBIT #A INCIDENT REPORT, MARKED
OFFERED AND RECEIVED.
COUNT: 10:21
JEFFREY CLARK SW & EX - BEHALF OF DEFENDANT
COUNT: 10:24
EVIDENCE - DEFENDANT EXHIBIT #C FIRE DEPARTMENT REPORT,
MARKED OFFERED AND RECEIVED.
COUNT: 10:34
EVIDENCE - STATE EXHIBIT #62 PHOTO - ALEJANDRO GOMEZ,
MARKED NOT RECEIVED.
COUNT: 10:38
DEFENDANT ADVISED OF HIS RIGHTS TO MAKE A STATEMENT UNDER
OATH
DEFENDANT WAIVED HIS RIGHTS
COUNT: 11:06
DEFENDANT'S CLOSING - DEFENDANT'S MOTION MERGE COUNTS 2-3-8
WITH COUNT 1 / COUNTS 5-6-7 AMEND TO AGGRAVATED ASSAULT
COUNT: 11:08
CLOSING BY STATE
COUNT: 1:12
COURT ORDERED DEFENDANT'S MOTION TO MERGE COUNTS 2-3-8
DENIED IT IS TOO PREMATURE / DEFENDANT'S MOTION AMEND
COUNTS 5-6-7 COURT DENIED
COURT ORDERED CASE BOUND OVER ON ALL COUNTS 1-2-3-4-5-6-7-8

CASE BOUNDOVER
This case is bound over. An Arraignment hearing has been
set on 4/12/2010 at 9:00 AM in courtroom W37 before Judge
PAUL G. MAUGHAN.

- 04-02-2010 Note: Cert/Copy of First Supplemental Record Index forwarded to Supreme Court of Utah
- 04-02-2010 Note: Record Returned with Cert Copy of First Supplemental Record Index Files 3, Transcripts 13
- 04-06-2010 Note: Binder of Media Intervenor's Motion to Unseal "The Cobb Letter" copies is held with Third District Appellate Clerk
- 04-12-2010 Minute Entry - Minutes for Initial Appearance
Judge: PAUL G. MAUGHAN
PRESENT
Clerk: cheril
Reporter: SUSAN SPROUSE
Prosecutor: MEISTER, VINCENT B
Defendant Present
Defendant's Attorney(s): DAVID P S MACK
Defendant's Attorney(s): HEATHER A BRERETON
Defendant's Attorney(s): RALPH DELLAPIANA

Video

Tape Number: DVR W37 Tape Count: 9:40-10:00

INITIAL APPEARANCE

Defendant waives reading of Information.

HEARING

TAPE: DVR W37 COUNT: 9:40-10:00

Counsel enter their Appearance

Defendant pleads Not Guilty to all 8 counts of the 2nd Amended Information.

Defendant waives any speedy trial issues.

Defense counsel motions the court to set this matter for a Scheduling Conference, to allow them time to obtain the transcript from the Preliminary Hearing, as they will be filing a Motion to Quash.

Defense counsel will also be filing an Amended Motion and Order for Double Cuffing Ruling.

Court sets this matter for a Scheduling Conference on 5-7-2010, at that time the double cuffing issue will be addressed.

Court orders defense counsel to provide the court with an update on the mitigation report and a list of any additional motions besides the Motion to Quash.

SCHED CONF/HRG ON DOUBLE CUF is scheduled.

Date: 05/07/2010

Time: 02:00 p.m.

Location: Third Floor - W37

Before Judge: PAUL G. MAUGHAN

THIRD DISTRICT COURT

450 SOUTH STATE STREET

SLC, UT 84114-1860

04-12-2010 SCHED CONF/HRG ON DOUBLE CUF scheduled on May 07, 2010 at 02:00 PM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

04-30-2010 Filed return: Subpoena Duces Tecum - Attn: Prisoner Funds-Teresa

Party Served: Adult Detention Center

Service Type: Personal

Service Date: April 29, 2010

Garnishee:

05-02-2010 Filed: TRANSCRIPT for Hearing of 04-01-2010

05-02-2010 Filed: TRANSCRIPT for Hearing of 03-30-2010

05-05-2010 Filed: Motion for Handcuffing Order for Future Court Hearings

Filed by: DAVID P S MACK

05-07-2010 Filed: Subpoena Duces Tecum on Return (Served DCFS Sue Taylor)

05-07-2010 Minute Entry - Minutes for SCHED CONF/HRG ON DOUBLE CUF

Judge: PAUL G. MAUGHAN

PRESENT

Clerk: cheril

Reporter: SUSAN SPROUSE

Prosecutor: VINCENT B MEISTER

Defendant Present

Defendant's Attorney(s): RALPH DELLAPIANA

Defendant's Attorney(s): HEATHER A BRERETON

Defendant's Attorney(s): RUDY J BAUTISTA

Video

Tape Number: Reporter Tape Count: 2:28-

HEARING

TAPE: Reporter COUNT: 2:28-
Counsel enter their appearance.
Defense Motion for double cuff is addressed.
Court will allow the defendant to be cuffed in front at all appearances up until the time of trial.
The issue of transportation will be left up to the Sherriff.
Defendant waive his right to any speedy trial issues.
Court sets this matter for a Status Conference on 9-1-2010 @ 9:00. At that time counsel is to have Discovery Issues Resolved, any pretrial motions, further clarification of the Cobb letter, update on appeallate court .
2nd Status Conference is set on 11-3-2010 @ 9:00. Counsel is to have Jury Instructions and advise the court if they intend to use jury questionnaire. If jury Questionnaire is used it will be prepared by the court.

STATUS HEARING is scheduled.

Date: 9/1/2010
Time: 09:00 a.m.
Location: Third Floor - W37
Before Judge: PAUL G. MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE STREET
SLC, UT 84114-1860

- 05-07-2010 Cancelled: STATUS REPORT scheduled on September 01, 2010 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN
- 05-07-2010 STATUS HEARING scheduled on November 03, 2010 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN
- 05-07-2010 Modified: STATUS REPORT scheduled on September 01, 2010 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN
- 05-07-2010 Note: SCHED CONF/HRG ON DOUBLE CUFF minutes modified.
- 05-07-2010 STATUS HEARING scheduled on September 01, 2010 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN
- 05-10-2010 Filed: TRANSCRIPT for Hearing of 03-31-2010
- 05-10-2010 Note: SCHED CONF/HRG ON DOUBLE CUFF minutes modified.
- 05-17-2010 Filed: Subpoena Duces Tecum - Adult Detention Center, ATT: Prisoner Funds - Teresa
- 05-20-2010 Filed: Motion to Cover Tattoos for Trial and Memorandum
Filed by: DAVID P S MACK
- 05-20-2010 Filed: Motion for Hearings and Orders on Pending Motions
Filed by: DAVID P S MACK
- 05-24-2010 Filed: Transcript, Preliminary Hearing, March 30, 2010; Katie Harmon, CSR/RPR
- 05-24-2010 Filed: Transcript, Preliminary Hearing, Volume II, March 31, 2010, Brad Young
- 05-26-2010 Filed: Supplemental Request for Discovery
- 05-28-2010 Filed: Subpoena Duces Tecum - Salt Lake County Adult Detention Center
- 06-01-2010 Filed: Transcript, Preliminary Hearing, Volume III, April 1, 2010; Susan S Sprouse, RPR, CSR
- 06-03-2010 Filed: Request to Schedule Additional Hearing Date for Pending Motions
- 06-03-2010 Filed: Subpoena Duces Tecum - DCFS - Northern Regional Administration
- 06-03-2010 Filed: Subpoena Duces Tecum - DCFS, Bountiful Office
- 06-03-2010 Filed: DCFS, Clearfield Offices

06-07-2010 Note: Clerk notified Atty Bob Stott, Atty Vincent Meister and Atty Ralph Dellapiana of Hearing on Motions 8-18-2010.

06-07-2010 Cancelled: HRG ON OUTSTANDING MOTIONS scheduled on August 18, 2010 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

06-07-2010 Note: Due to the Attys and Courts Calender, Motion Hearings will be heard on 9-1-2010.

06-07-2010 Cancelled: HRG ON OUTSTANDING MOTIONS scheduled on August 18, 2010 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN
Reason: For Calendaring Purposes

06-08-2010 Filed: Motion To Withdraw Evidence Submitted During The Preliminary Hearing
Filed by: VINCENT B MEISTER

06-08-2010 Filed: Stipulation to Withdraw Evidence Submitted During The Preliminary Hearing.

06-08-2010 Filed order: Order Granting The Evidence To Be Withdraw.
Judge PAUL G MAUGHAN
Signed June 08, 2010

06-11-2010 Filed: Objection to Subpoena Duces Tecum Delivered to the Salt Lake County Sheriff's Office

06-11-2010 Filed: Objection to Subpoena Duces Tecum Delivered to the Salt Lake County Sheriff's Office

06-14-2010 Filed: Affidavit of Ron Adams

06-16-2010 Filed: Notice to Submit for Decision

06-16-2010 Filed: Motion to Preserve Evidence
Filed by: DAVID P S MACK

06-28-2010 Filed: Motion to Compel Compliance with Subpoena Duces Tecum
Filed by: DAVID P S MACK

06-28-2010 Filed: Notice to Submit for Decision

06-28-2010 Filed: Memorandum in Support of Motino to Compel Compliance with Subpoena Duces Tecum

06-29-2010 Filed: State's Response to Defendant's Notice to Submit for Decision

06-30-2010 Filed: Objection to Deft's Motion to Preserve Evidence

07-06-2010 Filed: Supplemental Request for Discovery

07-06-2010 Filed: Reply to State's Objection to Defendant's Motion to Preserve Evidence

07-07-2010 Filed: State's Reply and Memorandum in Opposition to Defendant's Motion to Cover Tattoos for Trial

07-13-2010 Note: **EVIDENCE RELEASED TO INVESTIGATOR WITH THE DISTRICT ATTORNEY'S OFFICE

07-15-2010 Filed: Response to Defendant's Motion to Compel Compliance With Subpoena Duces Tecum

08-17-2010 Filed: Motion for Extension of Time to File Additional Pretrial Motions Until Discovery is Complete
Filed by: DAVID P S MACK

08-17-2010 Filed: Reply to State's Opposition to Defendant's Motion to Cover Tattoos for Trial

08-17-2010 Filed: Motion to Compel Discovery
Filed by: DAVID P S MACK

08-27-2010 Filed: Motion in Limine to Exclude Any Evidence Regarding Gang Affiliation
Filed by: DAVID P S MACK

08-30-2010 Filed: State's Response to Defendant's Motion for Toxicological Testing of Blood

09-01-2010 Filed: Notice of Intent to File Additional Motions

09-01-2010 Filed: Motion for Vest Order During Transportation to and from Future Court Hearings

09-01-2010 Filed by: DAVID P S MACK
09-01-2010 Filed: Motion And Memorandum to Suppress Gruesome Photographs
Filed by: DAVID P S MACK
09-01-2010 Filed: Motion for Right to Argue Last at Penalty Phase Hearing
Filed by: DAVID P S MACK
09-01-2010 Filed: Motion for Disclosure of Exculpatory Evidence Regarding the Impact of Defendant's Execution on the Victim's Family
Filed by: DAVID P S MACK
09-01-2010 Filed: Demand for Production of Witnesses at Trial
09-01-2010 Filed: Motion for Bill of Particulars Concerning Penalty Phase and Memo in Support
Filed by: DAVID P S MACK
09-01-2010 Filed: Motion for Jury View of the Execution Process and Memo in Support Thereof
Filed by: DAVID P S MACK
09-01-2010 Filed: Request for Notice of Intent to Present 404(b) Evidence
09-01-2010 Filed: Motion for Daily and/or Simultaneous Transcripts
Filed by: DAVID P S MACK
09-01-2010 Filed: Motion to Allow Defense Mitigation Specialists to Sit At or Directly Behind Counsel Table During Trial
Filed by: DAVID P S MACK
09-01-2010 Filed: Motion to Allow Defense Investigators to Sit At or Directly Behind Counsel Table During Trial
Filed by: DAVID P S MACK
09-01-2010 Filed: Motion For Jury View of Uinta I at the Utah State Prison
Filed by: DAVID P S MACK
09-01-2010 Filed: Motion for Adequate Juror Compensation and Memorandum in Support
Filed by: DAVID P S MACK
09-01-2010 Filed: Motion to Require the Prosecution to Respond in Writing to Every Written Motion Filed by the Defense
Filed by: DAVID P S MACK
09-01-2010 Filed: Motion to Suppress or Limit Victim Impact Evidence at Sentencing Hearing
Filed by: DAVID P S MACK
09-01-2010 Filed: Formal Request for Discovery of All Brady/Giglio Material
09-01-2010 Filed: Motion to Exclude Witnesses Prior to and During Trial
Filed by: DAVID P S MACK
09-01-2010 Filed: Motion and Memorandum to Preclude Mr. Allgier from Being Shackled at Trial
Filed by: DAVID P S MACK
09-01-2010 Cancelled: HEARING scheduled on September 15, 2010 at 08:30 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN
09-01-2010 Filed: Motion to Allow Mr. Allgier to Appear at Public Proceedings in Civilian Clothing and Request for Funds to Purchase Clothing
Filed by: DAVID P S MACK
09-01-2010 Filed: Supplemental Discovery Request Regarding Penalty Phase
09-01-2010 Filed: Motion to Preclude Uniformed Police Officers from Attending Proceedings and Limit the Show of Force in the Courtroom
Filed by: DAVID P S MACK
09-01-2010 Filed: Motion to Enjoin Prosecution from Informing Witnesses as to What Other Witnesses Have Said and/or from Preparing Witnesses Together
Filed by: DAVID P S MACK

09-01-2010 Filed: Motion to Preclude Death Qualification of Jury
Filed by: DAVID P S MACK

09-01-2010 Filed: Motion to Preclude Creation of Snitch Testimony and Memorandum in Support
Filed by: DAVID P S MACK

09-01-2010 Filed: Supplemental Request to Discover Which Portions of Defendant's Statements the State Intends to Use At Trial

09-01-2010 Filed: Motion to Deem Defense Counsels' Objections as Being Based on Both State and Federal Constitutional Grounds
Filed by: DAVID P S MACK

09-01-2010 Filed: Motion For Pre-Instruction, Instruction, Voire Dire, and to Present Evidence Concerning the Penalty of Life In Prison Without the Possibility of Parole and Memorandum in Support
Filed by: DAVID P S MACK

09-01-2010 Minute Entry - Minutes for MOTION HEARING
Judge: PAUL G. MAUGHAN

PRESENT

Clerk: cheril
Prosecutor: ROBERT L STOTT
Defendant Present
Defendant's Attorney(s): HEATHER A BRERETON
Defendant's Attorney(s): DAVID P S MACK
Video
Tape Number: W37 Tape Count: 9:04

HEARING

TAPE: W37 COUNT: 9:04
Mr. Dellipiano addresses motions presented to the court this morning and also additional 50 to 60 motions that they will be filing.
Mr. Meister responds to motions filed.
Court will allow the State 45 days to respond to motions defense motions.
Defense motion to cover tattoos is addressed
Defense Motion for Toxicology testing and the chain of custody is addressed. State has no objection.
Letters to and from the deft are addressed. State will provide any letters to the defense. Defense is requesting the jail provide copies of the videotapes to them from the jail.
Authoritative position from the Civil Department at the jail is needed before ruling is made regarding videotapes.
Defense argues and motions the court to order the Civil Division at the jail to provide them with all videotapes.
Defense argue.
State to speak with Mr. Johnson in the Civil Dept at the jail and have him respond to Defense request for videotapes within 5 days.
Court will allow the Defense to view the videotapes at the jail and earmark the ones that they need if request is approved.
State responds
Recess
COUNT: 10:00
Court again in session.
Defense addresses Tattoo Motion and advises the court that the make-up can be applied within 10 minutes. State objects to defense tattoo motion and requests the court set oral arguments on this issue.

Defense re-addresses their request for all videotapes.
State responds.
State is requesting the court allow David Wakefield's testimony be heard prior to him leaving the Country on 10-1-2010 for one year .
Testimony will be heard on 9-15-2010, along with the arguments regarding defense motion to cover tattoos.
Court advises counsel that jury instructions, update on midigation and any non-discovery motions
Mr. Meisner to prepare order regarding videotapes.
Defense address interlocutory appeal regarding the Cobb letter. This matter will be addressed at a later date.
Suzanne Sprouse-Court Reporter

HEARING is scheduled.

Date: 09/15/2010
Time: 08:30 a.m.
Location: Third Floor - W37
Before Judge: PAUL G. MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE STREET
SLC, UT 84114-1860

- 09-01-2010 Filed: Motion to Quash Bindover and Supporting Memorandum
Filed by: DAVID P S MACK
- 09-01-2010 Filed: Eleventh Supplemental Response to Request for Discovery
- 09-02-2010 Note: MOTION HEARING minutes modified.
- 09-02-2010 Modified: HEARING scheduled on September 15, 2010 at 08:30 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN
- 09-02-2010 TRIAL DEPOSITION scheduled on September 15, 2010 at 08:30 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN
- 09-08-2010 Filed: Motion to Stay Pending Resolution of Motion to Dismiss for Violation of Defendant's Reight to Counsel or in the Alternative to Enjoin Officials from Interfering with Defendant's Attorney-Client Communication
Filed by: DAVID P S MACK
- 09-08-2010 Filed: Motion to Dismiss for Violations of Defendant's Right to Counsel or in the Alternative to Enjoin Officials from Interfering with defendant's Attorney-Client Communication
Filed by: DAVID P S MACK
- 09-08-2010 Filed: Memorandum in Support of Plaintiff's Motion for Second Protective Order
- 09-09-2010 Filed: Motion to Declare Utah's Death Penalty Statute Unconstitutional and Memorandum in Support
- 09-09-2010 Filed: Motion Requesting Court to Make Written Findings of Fact and Conclusions of Law and Issue Written Orders on all Motions
- 09-09-2010 Filed: Letter from David A. Johnson at the District Attorneys Office regarding 726 copies of videos of defendant at ADC
- 09-10-2010 Filed order: Minute Entry
Judge PAUL G MAUGHAN
Signed September 09, 2010
- 09-13-2010 Filed: Notice that all Defense Motions and Objections are Supported by Federal and State Constitutional Guarantees
- 09-13-2010 Filed: Motion to Record all Legal Discussions and Procedures During Trial
Filed by: DAVID P S MACK
- 09-13-2010 Filed: Motion to Provide Equal Privileges to All Witnesses
Filed by: DAVID P S MACK
- 09-13-2010 Filed: Motion to Cover Tatoos in Sentencing Phase and Exclude

Evidence About Tattos or Gang Membership
Filed by: CURTIS ALLGIER

09-14-2010 Filed: Motion to Declare Utah's Death Penalty Statute Unconstitutional for Failure to Narrow the Class of Death-Eligible Offenders
Filed by: DAVID P S MACK

09-14-2010 Filed: Motion to Declare Death Penalty Unconstitutional as Applied and Memorandum in Support
Filed by: DAVID P S MACK

09-14-2010 Filed: Motion to Inform Venire Panel of Their Civic Duty to Sit as Jurors and Memo in Support Thereof
Filed by: DAVID P S MACK

09-14-2010 Filed: Motion for Individual Attorney-Conducted Voir Dire and Memorandum in Support Thereof
Filed by: DAVID P S MACK

09-14-2010 Filed: Motion to Apply Consitutional Standards in Excluding Jurors for Cause
Filed by: DAVID P S MACK

09-14-2010 Filed: Motion to Instruct the Jury
Filed by: DAVID P S MACK

09-14-2010 Filed: Ruling

09-14-2010 Filed: Motion to Cover Tattoos in Sentencing Phase and Exclude any Evidence About Tattoos or Gang Membership
Filed by: DAVID P S MACK

09-14-2010 Filed: Supplement to Motion to Cover Tattoos at Trial and to Exclude any Evidence About Tattoos or Alleged Gang Membership

09-15-2010 Cancelled: JURY QUESTIONNAIRE scheduled on April 15, 2011 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

09-15-2010 Cancelled: JURY SELECTION scheduled on April 25, 2011 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

09-15-2010 Cancelled: JURY SELECTION scheduled on April 26, 2011 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

09-15-2010 Cancelled: JURY SELECTION scheduled on April 27, 2011 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

09-15-2010 Cancelled: JURY SELECTION scheduled on April 28, 2011 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

09-15-2010 Cancelled: JURY SELECTION scheduled on April 29, 2011 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

09-15-2010 Cancelled: JURORS WILL BE SELECTED scheduled on May 02, 2011 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

09-15-2010 Cancelled: JURORS WILL BE SELECTED scheduled on May 03, 2011 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

09-15-2010 Cancelled: JURY TRIAL scheduled on May 09, 2011 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

09-15-2010 Cancelled: JURY TRIAL scheduled on May 10, 2011 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

09-15-2010 Cancelled: JURY TRIAL scheduled on May 11, 2011 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

09-15-2010 Filed: Motion to Declare Utah Code Ann. 76-3-207(5)(C) Unconstitutional in Violation of Mr. Allgier's Right to Jury Trial
Filed by: DAVID P S MACK

09-15-2010 Minute Entry - Minutes for TRIAL DEPOSITION
Judge: PAUL G. MAUGHAN
PRESENT
Clerk: cheril
Prosecutor: ROBERT L STOTT
Defendant Present

Defendant's Attorney(s): HEATHER A BRERETON

Defendant's Attorney(s): DAVID P S MACK

Video

Tape Number: W37 Tape Count: 8:48

HEARING

TAPE: W37 COUNT: 8:48

State advises the Court that Mr. Wakefield who was to be present for deposition this morning is unavailable. Due to Defense counsel filing additional motions this morning, the State will need to review them to see how they want to proceed with testimony.

Motion to Cover Tattoos is the Motion now before the Court.

Defense argues

State argues

Discovery issues are addressed. Defense argues that they have not seen all discovery as addressed by the State.

Pending Discovery is the videos and the letters.

Defense Motion to Stay Proceedings is Denied.

Dates for Jury Trial is addressed.

Dates for Jury Questionnaire and Jury Trial is addressed.

Jurors will be called in to fill out Jury Questionnaire on 4-15-2011.

Counsel will be allowed one week to review Questionnaires 4-25-2011-4-29-2011 will be for Voir Dire and Jury Selection.

5-2-2011 - 5-3-2011 - Jurors will be picked.

5-9-2011 to 5-27-2011 - This will be the time for the Jury Trial and Guilt and Penalty Phase.

JURORS WILL BE SELECTED is scheduled.

Date: 05/02/2011

Time: 09:00 a.m.

Location: Third Floor - W37

Before Judge: PAUL G. MAUGHAN

THIRD DISTRICT COURT

450 SOUTH STATE STREET

SLC, UT 84114-1860

JURORS WILL BE SELECTED.

Date: 05/03/2011

Time: 09:00 a.m.

Location: Third Floor - W37

Before Judge: PAUL G. MAUGHAN

THIRD DISTRICT COURT

450 SOUTH STATE STREET

SLC, UT 84114-1860

JURY TRIAL.

Date: 05/09/2011

Time: 09:00 a.m.

Location: Third Floor - W37

Before Judge: PAUL G. MAUGHAN

THIRD DISTRICT COURT

450 SOUTH STATE STREET

SLC, UT 84114-1860

JURY TRIAL.

Date: 05/10/2011

Time: 09:00 a.m.
Location: Third Floor - W37
Before Judge: PAUL G. MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE STREET
SLC, UT 84114-1860

JURY TRIAL.

Date: 05/11/2011
Time: 09:00 a.m.
Location: Third Floor - W37
Before Judge: PAUL G. MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE STREET
SLC, UT 84114-1860

JURY TRIAL.

Date: 05/12/2011
Time: 09:00 a.m.
Location: Third Floor - W37
Before Judge: PAUL G. MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE STREET
SLC, UT 84114-1860

JURY TRIAL.

Date: 05/13/2011
Time: 09:00 a.m.
Location: Third Floor - W37
Before Judge: PAUL G. MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE STREET
SLC, UT 84114-1860

JURY TRIAL.

Date: 05/16/2011
Time: 09:00 a.m.
Location: Third Floor - W37
Before Judge: PAUL G. MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE STREET
SLC, UT 84114-1860

JURY TRIAL.

Date: 05/17/2011
Time: 09:00 a.m.
Location: Third Floor - W37
Before Judge: PAUL G. MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE STREET
SLC, UT 84114-1860

JURY TRIAL.

Date: 05/18/2011
Time: 09:00 a.m.
Location: Third Floor - W37
Before Judge: PAUL G. MAUGHAN
THIRD DISTRICT COURT

450 SOUTH STATE STREET
SLC, UT 84114-1860

JURY TRIAL.

Date: 05/19/2011
Time: 09:00 a.m.
Location: Third Floor - W37
Before Judge: PAUL G. MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE STREET
SLC, UT 84114-1860

JURY TRIAL.

Date: 05/20/2011
Time: 09:00 a.m.
Location: Third Floor - W37
Before Judge: PAUL G. MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE STREET
SLC, UT 84114-1860

JURY TRIAL.

Date: 05/23/2011
Time: 09:00 a.m.
Location: Third Floor - W37
Before Judge: PAUL G. MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE STREET
SLC, UT 84114-1860

JURY TRIAL.

Date: 05/24/2011
Time: 09:00 a.m.
Location: Third Floor - W37
Before Judge: PAUL G. MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE STREET
SLC, UT 84114-1860

JURY TRIAL.

Date: 05/25/2011
Time: 09:00 a.m.
Location: Third Floor - W37
Before Judge: PAUL G. MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE STREET
SLC, UT 84114-1860

JURY TRIAL.

Date: 05/26/2011
Time: 09:00 a.m.
Location: Third Floor - W37
Before Judge: PAUL G. MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE STREET
SLC, UT 84114-1860

JURY TRIAL.

Date: 05/27/2011

Time: 09:00 a.m.
Location: Third Floor - W37
Before Judge: PAUL G. MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE STREET
SLC, UT 84114-1860

JURY TRIAL.

Date: 05/31/2011
Time: 09:00 a.m.
Location: Third Floor - W37
Before Judge: PAUL G. MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE STREET
SLC, UT 84114-1860

JURY TRIAL.

Date: 06/01/2011
Time: 09:00 a.m.
Location: Third Floor - W37
Before Judge: PAUL G. MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE STREET
SLC, UT 84114-1860

JURY TRIAL.

Date: 06/02/2011
Time: 09:00 a.m.
Location: Third Floor - W37
Before Judge: PAUL G. MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE STREET
SLC, UT 84114-1860

09-15-2010 Filed: Motion Objecting to Deposition of State's Witness David Wakefield

Filed by: DAVID P S MACK

09-15-2010 Note: TRIAL DEPOSITION minutes modified.

09-15-2010 Filed: Request for Leave to File Additional Motions

09-15-2010 Filed: Motion in Limine to Exclude Expert Evidence of Firearm Identification and Related Testimony and Request for Hearing

Filed by: DAVID P S MACK

09-22-2010 Note: TRIAL DEPOSITION minutes modified.

09-30-2010 Filed: Ex Parte Motion for Order to Transport Client for Testing

10-01-2010 Filed: State's Formal Request for Discovery Pursuant to Rule 16 of the Rules of Criminal Procedure

10-06-2010 Filed: Order to Transport Defendant - filed unsigned

10-07-2010 Filed: County's Memorandum Supporting Its Motion Objection to Defendant's Ex Parte Motion for Orders to Transport Client for Testing

10-07-2010 Filed: County's Objection to Defendant's Ex Parte Motion for Orders to Transport Client for Testing

10-07-2010 Filed: County's Motion for Leave to Intervene In Defendant's Ex Parte Motion for Orders to Transport Client for Testing

Filed by: DAVID A JOHNSON

10-07-2010 Filed: County's Memorandum Supporting Its Motion for Leave to Intervene In the Ex Parte Motion for Order to Transport Client for Testing

10-07-2010 Filed: County's Motion for Leave to Intervene in Deft's Ex Parte Motion for Orders to Transport Client for Testing

10-07-2010 Filed: County's Memorandum Supporting Its Motion for Leave to Intervene in the Ex Parte Motion for Order to Transport Client for Testing

10-07-2010 Filed: County's Objection to Deft's Ex Parte Motion for Orders to Transport Client for Testing

10-07-2010 Filed: County's Memorandum Supporting Its Motion Ojection to Deft's Ex Parte Motion for Orders to Transport Client for Testing

10-12-2010 Filed: Twelfth Supplemental Response to Request for Discovery

10-12-2010 Filed: Memorandum Decision RE: Motion to Cover Tattoos for Trial

10-13-2010 Fee Account created Total Due: 10.00

10-13-2010 AUDIO TAPE COPY Payment Received: 10.00

10-13-2010 Filed: State's Answer to Defendant's Motion to Provide Equal Privileges to all Witnesses

10-13-2010 Filed: State's Response to Defendant's Motion to Preclude Death Qualification of Jury

10-13-2010 Filed: State's Answer to Defendant's Motion to Declare Utah Code Ann. 76-3-207(5)(C) Unconstitutional in Violation of Mr. Allgier's Right to Jury Trial
Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Answer to Defendant's Motion for Adequate Juror Compensation
Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Answer to Defendant's Motion to Exclude any Evidence Regarding Gang Affiliation

10-13-2010 Filed: State's Answer to Defendant's Motion to Instruct the Jury
Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Answer to Defendant's Motion to Ap;;y Constitutional Standards in Excluding Jurors for Cause
Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Answer to Defendant's Motion for Individual Attorney-Conducted Voir Dire
Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Answer to Defendant's Motion to Preclude Creation of Snitch Testimony
Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Answer to Defendant's Motion to Cover Tattoos in Sentencing Phase and Exclude any Evidence About Tattoos or Gang Membership
Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Answer to Defendant's Demand for Production of Witnesses at Trial
Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Answer Defendant's Motion for Bill of Particulars Concerning Penalty Phase Evidence
Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Answer to Defendant's Supplemental Request to Discover Which Protions of Defendant's Statements the State Intends to Use at Trial
Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Answer to Defendant's Motion to Suppress or Limit Victim Impact Evidence at Sentencing Hearing
Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Answer to Defendant's Request for Notice of Intent to Present 404(b) Evidence

Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Response to Defendant's Motion For Pre-Instruction, Instruction, Voir Dire, and to Present Evidence Concerning the Penalty of Life in Prison Without the Possibility of Parole

10-13-2010 Filed: State's Answer to Defendant's Motion for Disclosure of Exculpatory Evidence Regarding the Impact of Defendant's Execution on the Victim's Family

Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Answer to Defendant's Motion for Jury View of Uinta 1 at the Utah State Prison

Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Response to Defendant's Motion for Vest Order During Transporation to and From Future Court Hearings

10-13-2010 Filed: State's Answer to Defendant's Motion Requesting Court to Make Written Findings of Fact and Conclusions of Law and Issue Written Orders on All Motions

Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Answer to Defendant's Motion for Jury View of the Execution Process

Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Answer to Defendant's Motion for Right to Argue Last at Penalty Phase Hearing

Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Response to Defendant's Motion to Deem Defense Counsel's Objections as Being Based on Both Utah and Federal Constitutional Grounds

10-13-2010 Filed: State's Answer to Defendant's Request for Leave to File Additional Motions

Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Answer to Defendant's Motion to Sequester Witnesses Prior to and During the Trial of This Case

Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Answer to Defendant's Motion to Enjoin Prosecution from Informing Witnesses as to What Other Witnesses as to What Other Witnesses Have Said and/or From Preparing Witnesses Together

Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Answer to Defendant's Motion to Preclude Uniformed Police Officers From Attending the Proceedings and Limit the Show of Force in the Courtroom

Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Answer to Defendant's Motion to Declare Utah's Death Penalty Statute Unconstitutional for Failure to Narrow the Class of Death-Eligible Offenders

Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Answer to Defendant's Formal Request for Discovery of All Brady/Giglio Material

Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Response to Defendant's Supplemental Discovery Request Regarding Penalty Phase

10-13-2010 Filed: State's Answer to Defendant's Motion to Require the Prosecution to Respond in Writing to Every Written Motion Filed by the Defense

Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Answer to Defendant's Motion for Daily and/or Simultaneous Transcripts

Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Answer to Defendant's Motion to Allow Mr. Allgier to Appear at Public Proceedings in Civilian Clothing

and Request for Funds to Purchase Clothing.
Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Answer to Defendant's Motion to Declare Utah's Death Penalty Scheme Unconstitutional
Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Answer to Defendant's Supplement Motion to Cover Tattoos at Trial, and to Exclude any Evidence About Tattoos or Alleged Gang Membership
Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Answer to Defendant's Motion to Record all Legal Discussion and Procedures During Trial
Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Answer to Defendant's Motion to Allow Defense Mitigation Specialists to Sit at or Directly Behind Counsel Table During Trial
Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Answer to Defendant's Motion to Allow Defense Investigators to Sit at Or Directly Behind Counsel Table During Trial
Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Answer to Defendant's Motion to Prevent Mr. Allgier From Being Shackled in Public
Answer Party: STATE OF UTAH

10-13-2010 Filed: State's Response to Defendant's Notice of Intent to File Additional Motions

10-15-2010 Fee Account created Total Due: 10.00

10-15-2010 AUDIO TAPE COPY Payment Received: 10.00
Note: Mail Payment;

10-18-2010 Filed: TRANSCRIPT for Hearing of 09-15-2010

10-21-2010 Filed: Transcript of Trial Disposition September 15, 2010

10-28-2010 Filed: Subpoena Duces Tecum

10-29-2010 Filed: State's Memorandum In Opposition to Defendant's Motion to Quash

10-29-2010 Filed: State's Notice of Intent to Introduce Victim Photographs As Evidence

11-02-2010 Filed: State's Answer to Defendant's Motion to Declare Death Penalty Unconstitutional As Applied and Memorandum In Support

11-03-2010 Cancelled: MOTION HEARING scheduled on January 12, 2011 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

11-03-2010 Minute Entry - Minutes for STATUS HEARING
Judge: PAUL G. MAUGHAN
PRESENT
Clerk: cheril
Reporter: SUSAN SPOUSE
Prosecutor: ROBERT L STOTT
Defendant Present
Defendant's Attorney(s): DAVID P S MACK
Defendant's Attorney(s): HEATHER A BRERETON
Video
Tape Number: W37 Tape Count: Reporter

HEARING
TAPE: W37 COUNT: Reporter
Counsel address outstanding motions.
Defense advises the court that they have paid for the videotapes, but the jail has not yet released the them.

State is to contact the jail to find out what the hold up is and why videotapes have not yet been released to defense.

Counsel stipulate that a court order may be required in order to have videotapes released. Defense and State are to agree on an order and submit for Judge Maughan, for signature.

Defense Motion for Attorney Client Priviledge is addressed

Agenda is addressed regarding Jury Instructions

Counsel advises the court that they have not yet prepared the Jury Instructions or Elements, as they have been working on the Jury Questionnaire. Counsel anticipate that by the first week of December, Jury Questionnaire will be completed.

Defense advises the court of what they still need to do regarding investigation, interviews, viewing the videotapes and finding an expert witness.

Court sets this matter for a Status Conference on 2-9-2010.

Court will rule on pending motions prior to hearings

Defense requests an earlier hearing date to address outstanding motions.

Hearing to address oustanding motions is scheduled on 1-12-2010 @ 9:00. Defense Motion for Atty Client Priviledge, Motion to Quash, Motion for Constitutionality and States Motion for Discovery.

STATUS CONFERENCE is scheduled.

Date: 02/09/2011
Time: 09:00 a.m.
Location: Third Floor - W37
Before Judge: PAUL G. MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE STREET
SLC, UT 84114-1860

- 11-03-2010 STATUS CONFERENCE scheduled on February 09, 2011 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN
- 11-18-2010 Filed return: Subpoena Duces Tecum
 - Party Served: Pennington County Sherriff's Office
 - Service Type: Mail
 - Service Date: November 16, 2010
 - Garnishee:
- 11-24-2010 Fee Account created Total Due: 10.00
- 11-24-2010 AUDIO TAPE COPY Payment Received: 10.00
- 12-03-2010 Filed: Memorandum In Opposition to Motion to Exclde Expert Evidence of Firearm Identification and Related Testimony
- 12-10-2010 Filed: Motion for Order of Transportation to Matheson Professional Testing Area
 - Filed by: CURTIS ALLGIER
- 12-14-2010 Filed: Request to Submit for Decision Defendant's Motion to Dismiss for Violations of Defendant's Right to Counsel or in the Alternative to Enoin Officials from Interfering With Defendant's Attorney-Client Communications
- 12-14-2010 Filed: Motion to Ensure Same Appearance as on Offense Date
 - Filed by: DAVID P S MACK
- 12-15-2010 Filed order: Order of Transportation to Matheson Professional Testing Area
 - Judge PAUL G MAUGHAN
 - Signed December 15, 2010
- 12-22-2010 Filed: Salt Lake County's Motion for Leave to Intervene in

Defendant's Motion to Ensure Same Appearance as on Offense Date
Filed by: STATE OF UTAH

12-22-2010 Filed: Memorandum in Support of Salt Lake County's Motion for Leave to Intervene in Defendant's Motion to Ensure same Appearance as on Offense date

12-27-2010 Filed: Reply to State's Answer to Defendant's Supplemental Request to Discover which portions of defendant's statements the State intends to use at Trial

12-27-2010 Filed: Reply to State's Answer to Defendant's Motion for Bill of Particulars Concerning Penalty Phase

12-29-2010 Filed: Third Motion to Withdraw as Court-Appointed Counsel
Filed by: DAVID P S MACK

12-29-2010 Filed: State's Response to Defendant's Motion to Ensure same appearance as on Offense date

01-03-2011 Filed: Memorandum in Support of Third Motion to Withdraw as Court-Appointed Counsel

01-07-2011 Filed order: Minute Entry
Judge PAUL G MAUGHAN
Signed January 07, 2011

01-07-2011 Cancelled: MOTION HEARING scheduled on January 12, 2011 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN
Reason: Stipulation of counsel

01-13-2011 Note: STATUS HEARING minutes modified.

01-13-2011 Filed: Request to Submit for Decision

01-21-2011 Ruling Entry - MINUTE ENTRY
Judge: PAUL G. MAUGHAN
Before the Court is the Salt Lake County's Motion to Intervene. The county is requesting permission to intervene and represent the Salt Lake County Sheriff's Office as it relates to the issues raised by the defendant in this criminal action. There being no opposition filed by the defendant and good cause appearing therefor, the Court hereby grants the county's motion.
Date: _____

Judge PAUL G. MAUGHAN

02-01-2011 Filed: Position of defendant regarding conflict with counsel and request for appointment of new counsel

02-03-2011 Fee Account created Total Due: 10.00

02-03-2011 AUDIO TAPE COPY Payment Received: 10.00
Note: Mail Payment;

02-04-2011 Filed: Salt lake County's Memorandum in Opposition to Defendant's Motion to Ensure Same Appearance as on Offense Date

02-08-2011 **** PRIVATE **** Filed: Motion to Seal the Affidavit of Todd Wilcox, M.D., as a Private Judicial Record

02-09-2011 Minute Entry - Minutes for INCOURT NOTE
Judge: PAUL G. MAUGHAN
PRESENT
Clerk: cheril
Prosecutor: ROBERT L STOTT
Defendant Present
Defendant's Attorney(s): DELLAPIANA, RALPH
Video
Tape Number: Reporter Tape Count: 9:16
HEARING
TAPE: Reporter COUNT: 9:16
Counsel enter their appearance.

Parties present to address defense 3rd motion to withdraw as court appointed counsel based on incamera review that was held at the jail.
Judge Maughan addresses the defendant regarding his ability to communicate with his counsel.
Recess
COUNT: 9:52
Court again in session. Defendant addresses the court regarding the conflict he feels with his court appointed attorneys and with the jail.
Court addresses defense motion regarding jail conditions; monitoring mail and visits.
State responds
Mr. Dellipiana addresses the issue of attorney client privilege violation, but does not want to proceed with this motion before the conflict issue is addressed.
Mr. Delicino addresses the court about Mr. Allgier's position regarding conflict in counsel.
Atty Heather Brererton addresses the court regarding the issue of conflict and the states previous statement during an in chambers conference that they would be calling defense counsel as witnesses during the penalty phase.
State addresses this issue and will file something in writing.
Side bar
State and LDA have have no other issues at this time.
Defendant address the court
Court will take this matter under advisement.
Court finds Jeremy Delicino appeared not as conflict counsel but as a friend of the court.

- 02-09-2011 Note: INCOURT NOTE minutes modified.
- 02-14-2011 Fee Account created Total Due: 10.00
- 02-14-2011 AUDIO TAPE COPY Payment Received: 10.00
Note: Mail Payment;
- 02-24-2011 Filed order: Memorandum Decision Re: Third Motion to Withdraw as Court-Appointed Counsel
Judge PAUL G MAUGHAN
Signed February 23, 2011
- 02-24-2011 NOTICE for Case 071904711 ID 13604625
Judge: PAUL G. MAUGHAN
MOTION HRG/SCHED CONF is scheduled.
Date: 03/23/2011
Time: 09:00 a.m.
Location: Third Floor - W37
Before Judge: PAUL G. MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE STREET
SLC, UT 84114-1860
- 02-24-2011 Cancelled: MOTION HRG/SCHED CONF scheduled on March 23, 2011 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN
- 02-28-2011 Filed: TRANSCRIPT for Hearing of 02-09-2011
- 03-01-2011 Filed: Objection to State's Motion to Discover
- 03-02-2011 Filed: Notice of Unavailability and Motion to Continue Hearing
- 03-02-2011 Filed: Thirteenth Supplemental Response to Request for Discovery
- 03-04-2011 Cancelled: MOTION HRG/SCHED CONF scheduled on March 23, 2011 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

Reason: Conflict in attorney schedule

03-04-2011 STATUS CONFERENCE scheduled on March 07, 2011 at 09:00 AM in
THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

03-07-2011 Minute Entry - Minutes for STATUS CONFERENCE

Judge: PAUL G. MAUGHAN

PRESENT

Clerk: amyb

Prosecutor: STOTT, ROBERT L

Defendant not present

Defendant's Attorney(s): MACK, DAVID P S

Audio

Tape Number: W 39 Tape Count: 9:12-9:25

HEARING

TAPE: W 39 COUNT: 9:12

Defendant is not present. Attorney's are present and state
their appearances.

COUNT: 9:16

The Court declines the signing of the Order and finds that
there is no reason to withdraw counsel.

COUNT: 9:18

Defense counsel produces a Motion to Continue the Trial.

COUNT: 9:21

The Court schedules a Hearing as to the Motion to Continue
the Trial for 03/21/2011 at 9:30 am.

MOTION TO CONTINUE TRIAL is scheduled.

Date: 3/21/2011

Time: 09:30 a.m.

Location: Third Floor - W39

Before Judge: PAUL G. MAUGHAN

THIRD DISTRICT COURT

450 SOUTH STATE

SLC, UT 84114-1860

03-07-2011 Cancelled: MOTION TO CONTINUE TRIAL scheduled on March 21, 2011
at 09:30 AM in THIRD FLOOR - W39 with Judge PAUL G MAUGHAN

03-07-2011 Note: STATUS CONFERENCE minutes modified.

03-07-2011 Note: STATUS CONFERENCE minutes modified.

03-07-2011 MOTION TO CONTINUE TRIAL scheduled on March 21, 2011 at 09:30
AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

03-07-2011 Note: STATUS CONFERENCE minutes modified.

03-07-2011 Filed: Motion and Order to Stay Proceedings in Trial Court
pending disposition of petition for Interlocutory Review

Filed by: DAVID P S MACK

03-07-2011 Filed order: Order staying proceedings in Trial Court pending
disposition of petition for Interlocutory Review

Judge PAUL G MAUGHAN

Signed March 07, 2011

03-07-2011 Note: Order staying proceedings in Trial Court pending
disposition of petition for Interlocutory Review DENIED by
Judge Maughan

03-07-2011 Filed: Motion to Continue Jury Trial

Filed by: DAVID P S MACK

03-09-2011 Filed: Transcript, Motion Hear, February 09, 2011

03-11-2011 Filed: TRANSCRIPT for Hearing of 03-07-2011

03-14-2011 Filed: Transcript, Status Conference, March 7, 2011

03-14-2011 Filed: Supreme Court of Utah-Letter to Salt Lake Legal

Defenders Assoc-Petition for Interlocutory Appeal was filed March 11, 2011, case number 20110216-SC should be indicated on any future filings

03-14-2011 Filed: Supreme Court of Utah-Letter to Ms Dupaix-Copy of Petition for Interlocutory Appeal filed in the Utah Supreme Court, if you choose to respond, the answer is due to be filed no later than March 28, 2011

03-15-2011 Fee Account created Total Due: 2.75

03-15-2011 COPY FEE Payment Received: 2.75

03-16-2011 Filed: State's Answer to Defendant's Motion to Continue Jury Trial

03-21-2011 Note: MOTION TO CONTINUE TRIAL calendar modified.

03-21-2011 Filed: TRANSCRIPT for Hearing of 03-21-2011

03-21-2011 Minute Entry - Minutes for MOTION TO CONTINUE TRIAL
Judge: PAUL G. MAUGHAN

PRESENT

Clerk: cheril

Prosecutor: VINCENT B MEISTER

Defendant Present

Defendant's Attorney(s): HEATHER A BRERETON

Defendant's Attorney(s): DAVID P S MACK

Video

Tape Number: W37 Tape Count: 9:52-10:02

HEARING

TAPE: W37 COUNT: 9:52-10:02

Counsel enter their appearance

Judge Maughan addresses the automatic stay that has been put on this case, due to the Interlocutory appeal that has been filed with the Supreme Court.

Judge Maughan advises counsel that this court will be sending a minute entry to the Supreme Court to reconsider this courts ruling regarding withdrawal of counsel.

Court sets this matter for a status conference on 3-23-2011 @ 10:00, to address Legal Defenders position on how they want to proceed with interlogatory appeal.

Court Reporter - Katie Harmon

STATUS CONFERENCE is scheduled.

Date: 03/23/2011

Time: 10:00 a.m.

Location: Third Floor - W37

Before Judge: PAUL G. MAUGHAN

THIRD DISTRICT COURT

450 SOUTH STATE STREET

SLC, UT 84114-1860

03-21-2011 STATUS CONFERENCE scheduled on March 23, 2011 at 10:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

03-21-2011 Note: MOTION TO CONTINUE TRIAL minutes modified.

03-21-2011 Note: MOTION TO CONTINUE TRIAL minutes modified.

03-21-2011 Filed return: Subpoena Duces Tecum - Adult Detention Center - Records Dept

Party Served: Jodi Smith - Records Dept

Service Type: Personal

Service Date: March 18, 2011

Garnishee:

03-21-2011 Filed return: Subpoena Duces Tecum - Adult Detention Department - Records Dept

Party Served: Jodi Smith
Service Type: Personal
Service Date: March 18, 2011
Garnishee:

03-21-2011 Filed return: Subpoena Duces Tecum
Party Served: Jodi Smith - Records Dept
Service Type: Personal
Service Date: March 18, 2011
Garnishee:

03-21-2011 Filed: Supreme Court of Utah-ORDER-Motion to Stay the District Court's Proceedings is GRANTED

03-23-2011 Minute Entry - Minutes for STATUS CONFERENCE
Judge: PAUL G. MAUGHAN

PRESENT

Clerk: cheril
Prosecutor: ROBERT L STOTT
Prosecutor: VINCENT B MEISTER
Defendant Present
Defendant's Attorney(s): HEATHER A BRERETON
Defendant's Attorney(s): RALPH DELLAPIANA
Video
Tape Number: W37 Tape Count: 10:04

HEARING

TAPE: W37 COUNT: 10:04
The Court presented it's proposed Memorandum to the Supreme Court to the parties for review. The Memorandum was supported by the State, but not the defendant. The Court indicated that it would be filed with the Supreme Court.
Based on defense counsel not joining in this motion, court

03-23-2011 Filed: Copy of Order from the Utah Appellate Court

03-29-2011 Filed: Supreme Court of Utah-Order-Motion to Modify Prior Order Staying Proceedings issued March 18, 2011, Motion is Granted-Stay Shall not Apply to Reconsideration of the February 23, 2011 decision from which the pending petition was brought

03-29-2011 Filed order: Ruling and Order
Judge PAUL G MAUGHAN
Signed March 29, 2011

04-04-2011 Filed: Motion to exercise Utah and United States Constitutional rights

Filed by: CURTIS ALLGIER

04-04-2011 Note: Copy of Motion received by the defendant dated 4-4-2011, was emailed to the State (Vince Meister and Robert Stott)

04-05-2011 Filed: Objection to Subpoena Duces Tecum Delivered to the Salt Lake County Sheriff's Office

04-06-2011 Cancelled: JURY TRIAL scheduled on May 27, 2011 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN
Reason: Case in on stay

04-06-2011 Cancelled: JURORS WILL BE SELECTED scheduled on May 03, 2011 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN
Reason: Case in on stay

04-06-2011 Cancelled: JURY SELECTION scheduled on April 29, 2011 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN
Reason: Case in on stay

04-06-2011 Cancelled: JURY QUESTIONNAIRE scheduled on April 15, 2011 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN
Reason: Case in on stay

04-13-2011 Fee Account created Total Due: 10.00

04-13-2011 AUDIO TAPE COPY Payment Received: 10.00
Note: Mail Payment;

04-15-2011 Ruling Entry - MINUTE ENTRY
Judge: PAUL G. MAUGHAN
This Court has recently received correspondence from the defendant requesting certain action be taken in his case. The Court notes that this matter continues to be stayed by the Utah Supreme Court, thereby precluding this Court from taking any action on any matter pending in this case. In light of this Court's ruling granting the defendant's attorneys Motion to Withdraw, which this Court intended to be a final order of the Court, either party may wish to consider filing a Suggestion of Mootness with the Utah Supreme Court regarding the defendant's Interlocutory Appeal.
Date: _____

Judge PAUL G. MAUGHAN

04-15-2011 Filed: Transcript of Motion Hearing - March 21, 2011

04-15-2011 Filed: Motion to Compel for a Hearing, Ruling and Order on Defendant's Motion to Protect my Utah and United States Constitutional Right as well as Hearing on Said Motion
Filed by: CURTIS ALLGIER

04-15-2011 Filed order: Minute Entry
Judge PAUL G MAUGHAN
Signed April 15, 2011

04-15-2011 Filed: Motion for No Belly Chains or Handcuffs in the Courtroom
Filed by: CURTIS ALLGIER

04-18-2011 Filed: Letter from the defendant

04-27-2011 Filed: Discovery Request

04-27-2011 Filed: Motion to Make this Aware of and Place on Record James and Bruce Whitman Staying on as Advisory Investigation/Mitication Specialists
Filed by: CURTIS ALLGIER

05-02-2011 Filed: Request from Defendant

05-03-2011 Filed: Copy of Notice of Decision

05-03-2011 STATUS CONFERENCE scheduled on May 11, 2011 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

05-03-2011 NOTICE for Case 071904711 ID 13756531
Judge: PAUL G. MAUGHAN
STATUS CONFERENCE is scheduled.
Date: 05/11/2011
Time: 09:00 a.m.
Location: Third Floor - W37
Before Judge: PAUL G. MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE STREET
SLC, UT 84114-1860

05-04-2011 Filed: Motion for an Immediate and Binding Court Order to have the Salt Lake Legal Defenders Association fully, completely, zealously, timely and professionally cooperate with Me to Transition and work with me as they would do with new attorneys.
Filed by: CURTIS ALLGIER

05-06-2011 Filed: Supreme Court of Utah-Notice of Decision-Order-Petition for Permission to Appeal from an Interlocutory Order is Dismissed as Moot- Court Previously imposed a stay of the

05-11-2011 District Court Proceedings pending Disposition-Stay is lifted
Minute Entry - Minutes for STATUS CONFERENCE
Judge: PAUL G. MAUGHAN
PRESENT
Clerk: cheril
Reporter: KATIE HARMON
Prosecutor: VINCENT B MEISTER
Defendant Present
Defendant's Attorney(s): RICHARD P GALE
Defendant's Attorney(s): DUSTY KAWAI
Audio
Tape Number: W37 Tape Count: 9:01-9:22
HEARING
Counsel enter their appearance.
Attorney Richard Gale and Attorney Dusty Kawai are present
addressing their qualifications to represent the defendant.
Court is satisfied with crudentials of this team and
appoint them to represent the defendant
State has no objection
Defendant is introduced to his counsel. Defendant advises
the court that he wants to represent himself and proceed
Pro-se. Judge Maughan strongly advises Mr. Allgier to
proceed with counsel.
Court sets this matter over for a Scheduling Conference on
5-25-2011, to allow the defendant to meet with new counsel
and address his concerns.

05-12-2011 Filed order: Order Appointing Counsel*****Richard P. Gale and
R. Paul Kawai*****
Judge PAUL G MAUGHAN
Signed May 12, 2011

05-19-2011 SCHEDULING CONFERENCE scheduled on May 25, 2011 at 01:30 PM in
THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

05-24-2011 Filed: Fourteenth Supplemental Response to Request for
Discovery

05-25-2011 Minute Entry - Minutes for SCHEDULING CONFERENCE
Judge: PAUL G. MAUGHAN
PRESENT
Clerk: cheril
Reporter: SUSAN SPROUSE
Prosecutor: ROBERT L STOTT
Defendant Present
Defendant's Attorney(s): RICHARD P GALE
Defendant's Attorney(s): RUSSEL-PAUL H KAWAI
Video
Tape Number: W37 Tape Count: 1:41-2:47
HEARING
Todays hearing is before the Court fora Scheduling
Conference.
Counsel enter their appearance.
Mr. Gale advices the court that he and Atty Russel-Paul
Kawai had previously met with he defendant at the Salt Lake
County Jail and addresses the Motions that the defendant
filed before counsel was appointed.
Judge Maughan addresses the defendant regarding appointment
of Counsel

Do to some outstanding issues, the defendant was unable to meet with the investigator and so before he makes a decision regarding appointment of counsel, he would like to speak with the Investigator and the attorneys.

The State advises the court that a copy of discovery, a electronic copy of States file and copies of videotapes that they have have been given to defense counsel.

COUNT: 1:51

Court takes recess to allow the defendant to speak with the investigator, Mr. Gale and Mr. Kawai.

COUNT: 2:34

Court again in session

Mr. Algier agrees to Appointment of Counsel.

On stipulation of Counsel, Status Conference is scheduled. Counsel is advised to file any outstanding motions with the Court.

Pursuant to the Scheduling Conference held on 05/25/2011, the following dates and times were set and matters discussed:

STATUS CONFERENCE is scheduled.

Date: 08/16/2011

Time: 09:00 a.m.

Location: Third Floor - W37

Before Judge: PAUL G. MAUGHAN

THIRD DISTRICT COURT

450 SOUTH STATE STREET

SLC, UT 84114-1860

05-25-2011 STATUS CONFERENCE scheduled on August 16, 2011 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

05-25-2011 Note: SCHEDULING CONFERENCE minutes modified.

05-25-2011 Note: SCHEDULING CONFERENCE minutes modified.

06-23-2011 Filed: Formal request for discovery from Salt Lake Legal Defender's Association

08-08-2011 Filed: TRANSCRIPT for Hearing of 03-23-2011

08-15-2011 Filed: Transcript - Proceedings 03/23/2010 - Judge Maughan - Katie Harmon RPR, CSR

08-15-2011 Filed: Supreme Court of Utah-Opinion-Affirm the District Court's Letter that the Cobb letter qualifies for presumptive Right of Access, We hold District Court Correctly concluded Mr Allgier failed to over come presumptive Right of Public Access

08-16-2011 Minute Entry - Minutes for STATUS CONFERENCE

Judge: PAUL G MAUGHAN

PRESENT

Clerk: cheril

Reporter: KATIE HARMON

Prosecutor: ROBERT L STOTT

Defendant Present

Defendant's Attorney(s): RUSSEL-PAUL H KAWAI

Sheriff Office#: 305157

Video

Tape Number: W37 Tape Count: 10:09-10:28

HEARING

TAPE: W37 COUNT: 10:09-10:28

Parties are before the Court for a Status Conference

Mr. Gale addresses outstanding Motion filed by prior counsel to allow the defendant additional nutrition at the jail to gain weight and appear the same as at the time of the crime.

State does not appose the motion but will need to consult with the jail and medical staff.

Counsel to work with one another to stipulate on this issue.

In case there is an issue with this motion, the court sets this matter for a hearing regarding the nutrition issues on 8-30-211 @ 1:00.

Defense counsel is to have a list of expert witnesses and their reports to the State by 1-2-2012, to allow the State sufficient time to review and respond.

Defense counsel advises the court that they have atleast 10 motions that will need to be scheduled for an evidentiary hearing and any supplemental motions will by filed by 9-30-2011.

Defense will advise the court which motions will be submitted for decision and the motions which will be withdrawn on the 9-30-201, this will allow the State time to respond.

Evidentiary Hearing on Motions will be held on 10-27-2011 @ 9:00

Counsel has stipulated to the potential jurors picking up jury questionnaire on 5-25-2012 to allow counsel time to review and sets Voir Dire on 6-4-2012.

State is to prepare scheduling order.

EVIDENTIARY HEARING is scheduled.

Date: 10/27/2011

Time: 09:00 a.m.

Location: Third Floor - W37

Before Judge: PAUL G MAUGHAN

THIRD DISTRICT COURT

450 SOUTH STATE STREET

SLC, UT 84114-1860

08-16-2011 Cancelled: HRG ON NUTRITION ISSUES scheduled on August 30, 2011 at 01:00 PM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

08-16-2011 EVIDENTIARY HEARING scheduled on October 27, 2011 at 09:00 AM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

08-16-2011 Note: STATUS CONFERENCE minutes modified.

08-16-2011 Note: STATUS CONFERENCE minutes modified.

08-16-2011 Note: ***Clerk emailed Peyton requesting a Court Reporter for 8-30-2011 and 10/27/2011.*****

08-16-2011 Filed: Notice of Compliance With Request for Discovery

08-18-2011 Note: STATUS CONFERENCE minutes modified.

08-29-2011 Filed: Motion to designate the second affidavit of Todd Wilcox, M.D., as a Private Judicial Record

Filed by: DAVID A JOHNSON

08-29-2011 ***** PRIVATE ***** Filed: Motion to supplement Salt Lake County's Memorandum with second Affidavit of Todd Wilcox, M.D.

08-30-2011 Minute Entry - Minutes for HRG ON NUTRITION ISSUES

Judge: PAUL G MAUGHAN

PRESENT

Clerk: cheril

Prosecutor: VINCENT B MEISTER

Prosecutor: ROBERT L STOTT

Defendant Present

Defendant's Attorney(s): RICHARD P GALE
Defendant's Attorney(s): RUSSEL-PAUL H KAWAI
Sheriff Office#: 305157
Video
Tape Number: W37 Tape Count: 1:32

CONTINUANCE

Whose Motion: The Stipulation of counsel.
Reason for continuance:
More time
The motion is granted.

HEARING

TAPE: W37 COUNT: 1:32
State and Defenes counsel met with Judge Maughan in
Chambers.
Defense addresses the issues previously discussed.
Counsel has stipulated to continuing this matter out two
weeks, as the State is working on issues regarding
defendant's diet.

HRG ON NUTRITION ISSUES.

Date: 09/12/2011
Time: 02:00 p.m.
Location: Third Floor - W37
Before Judge: PAUL G MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE STREET
SLC, UT 84114-1860

- 08-30-2011 Continued: HRG ON NUTRITION ISSUES scheduled on September 12, 2011 at 02:00 PM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN
- 09-01-2011 Filed: Supreme Court of Utah-Remittitur-No Record-Opinion-Affirm the District Court's Conclusion that the Cobb Letter Qualifies for a presumptive right of access under UCJA. Affirm the Order Granting Media's Motion to Unseal the Cobb Letter
- 09-02-2011 Filed: Salt Lake County's Motion to Dismiss Intervention
Filed by: STATE OF UTAH
- 09-12-2011 Minute Entry - Minutes for MOTION HEARING
Judge: PAUL G MAUGHAN

PRESENT

Clerk: amyb
Prosecutor: VINCENT B MEISTER
Defendant Present
Defendant's Attorney(s): RUSSEL-PAUL H KAWAI
Sheriff Office#: 305157
Audio
Tape Number: W 37 Tape Count: 2:14-2:58

HEARING

TAPE: W 37 COUNT: 2:15
This matter is before the Court on the defendant's Motion for Medical and Mental Health expert to have access to the defendant at the prison for interviewing purposes. The State stipualates to the Order being entered for the Mental and Medical Health.
COUNT: 2:17

Defendants attorney indicates to the Court that the nutrition issues within the jail are mute at this point since the defendant has been moved to the prison. Defense is requesting a Order be entered regarding nutrition at the prison.

The State opposes the Motion.

COUNT: 2:19

The defense re-addresses the issues that have previously been addressed such as the defendant being handcuffed in the front as opposed to in the back. The issue of the defendants appearance on the day of the offense.

COUNT: 2:21

The State responds to the defense as to the issues that are still in question and indicates that there may be a need to have the Office of the Attorney General involved.

COUNT: 2:22

The Court addresses the defendants concern about being moved to the prison. The Court reminds the defendant that he requested to be moved to the prison at a previous hearing.

COUNT: 2:23

The defendant addresses the Court stating that he is being jerked around and he will fire these attorneys and represent himself.

COUNT: 2:24

Defendants attorney responds to the defendants statement.

The State indicates to the Court that some of the defendants issues need to be addressed by the prison attorneys.

COUNT: 2:25

The Court reminds the defendant that there has been no ruling ordering the jail and/or the prison on how to proceed with the day to day routine and the inmates.

COUNT: 2:26

The defendant is still indicating to the Court that he will fire the attorneys and proceed Pro Se again.

COUNT: 2:27

The defendants attorney requests a brief recess to speak with their client. The Court takes a recess.

COUNT: 2:58

Court is back in session. During the recess a meeting was held in chambers with the Judge and the attorneys. The Court asks the defendants attorney to revise an order and submit it to the Court for review which addresses the defendants nutritional issues.

COUNT: 2:59

Defendants attorney is to draft the Order and submit it to the Court.

Defendant is present in the custody of the Utah State Prison.

09-12-2011 Filed: Stipulation Regarding Access to Defendant for Defense Medical and Mental Examinations

09-12-2011 Filed order: Order Regarding Access to Defendant for Defense Medical and Mental Examinations

Judge PAUL G MAUGHAN

Signed September 12, 2011

09-12-2011 Note: MOTION HEARING minutes modified.

09-13-2011 Note: MOTION HEARING minutes modified.

09-13-2011 Filed order: Order granting Salt Lake County's Motion to Dismiss Intervention

Judge PAUL G MAUGHAN
Signed September 12, 2011

09-26-2011 Filed: Motion to Quash or Modify Subpoena
Filed by: TERE

09-26-2011 Filed: Memorandum in Support of Motion to Quash or Modify Subpoena

09-27-2011 Fee Account created Total Due: 10.00

09-27-2011 Fee Account created Total Due: 1.39

09-27-2011 AUDIO TAPE COPY Payment Received: 10.00

09-27-2011 POSTAGE-COPIES Payment Received: 1.39
Note: POSTAGE-COPIES, 12.00 cash tendered. 0.61 change given.

09-30-2011 Note: Copy of 8-16-2011 Status Conference requested by Gale & Kawai Law Group was mailed.

10-03-2011 Filed: Motions which defendant requests the Court set for Hearing and Argument

10-03-2011 Filed: Motions which defendant withdraws from consideration by the Court

10-03-2011 Filed: Supplemental Motion to ensure same appearance as on offense date

10-03-2011 Filed: Notice to Submit Motions for Decision by the Court on Briefing without further argument

10-24-2011 Filed order: Order Regarding Access to Defendant for Defense Medical and Mental Examinations
Judge PAUL G MAUGHAN
Signed October 24, 2011

10-24-2011 Filed: State's Amended Answer to Defendant's Motion to Declare Death Penalty Unconstitutional as Applied and Memorandum in Support
Answer Party: STATE OF UTAH

10-24-2011 Filed: Affidavit in Support of State's Amended Answer to Defendant's Motion to Declare Death Penalty Unconstitutional as Applied.

10-26-2011 Filed: Motion and Order for Reimbursement of Extraordinary Expenses
Filed by: RICHARD P GALE

10-26-2011 Filed: Motion for Court Order for Disclosure of Corrections Policies and Procedures
Filed by: RICHARD P GALE

10-27-2011 Cancelled: MOTIONS HEARING scheduled on November 09, 2011 at 01:30 PM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

10-27-2011 Note: ****Deft represented by counsel - Ex Parte Communication received from the defendant was not docketed or scanned****

10-27-2011 Minute Entry - Minutes for EVIDENTIARY HEARING
Judge: PAUL G MAUGHAN
PRESENT
Clerk: amyb
Prosecutor: VINCENT B MEISTER
Prosecutor: ROBERT L STOTT
Defendant Present
Defendant's Attorney(s): RICHARD P GALE
Defendant's Attorney(s): RUSSEL-PAUL H KAWAI
Sheriff Office#: 305157
Audio
Tape Number: CR W37 Tape Count: 9:19-9:49
HEARING

TAPE: W 37 COUNT: 9:19

The attorneys meet with the Judge in Chambers and address the matter on the record.

COUNT: 9:38

Court is back on the record. The defense is requesting that the defendant be hand cuffed in the front as opposed to the back. The USP states that is against their policy however the Court orders that he be hand cuffed in the front.

The parties are requesting further dates be scheduled.

COUNT: 9:40

The defendant addresses the Court requesting the Judge to be removed from the case. The Judge indicates to the defendant that he is out of line and orders the officers to place the defendant back in the holding cell for the rest of the hearing.

The Court proceeds with the scheduling of the Motions Hearings.

Defendant is present in the custody of the USP.

MOTIONS HEARING is scheduled.

Date: 11/30/2011

Time: 01:00 p.m.

Location: Third Floor - W37

Before Judge: PAUL G MAUGHAN

THIRD DISTRICT COURT

450 SOUTH STATE STREET

SLC, UT 84114-1860

The reason for the change is Correct Calendar

MOTIONS HEARING.

Date: 11/9/2011

Time: 01:30 p.m.

Location: Third Floor - W37

Before Judge: PAUL G MAUGHAN

THIRD DISTRICT COURT

450 SOUTH STATE STREET

SLC, UT 84114-1860

- 10-27-2011 Cancelled: MOTIONS HEARING scheduled on November 09, 2011 at 01:30 PM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN
- 10-27-2011 Cancelled: MOTIONS HEARING scheduled on November 30, 2011 at 01:30 PM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN
- 10-27-2011 Rescheduled: MOTIONS HEARING rescheduled to November 30, 2011 at 01:00 PM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN
Reason: Computer error.
- 10-27-2011 Modified: MOTIONS HEARING scheduled on November 09, 2011 at 01:30 PM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN
Reason: Computer error.
- 10-27-2011 Filed: State's Supplemental Answer to Defendant's Motion for Bill of Particulars Concerning Penalty Phase Evidence
- 10-27-2011 Filed: State's Response to Defendant's Supplemental Motion to Ensure Same Appearance as on Offense Date
- 10-27-2011 Filed: State's Amended Answer to Defendant's Supplemental Request for Discover Which Portions of Defendant's Statements the State Intends to Use at Trial
- 10-27-2011 Fee Account created Total Due: 10.00
- 10-27-2011 AUDIO TAPE COPY Payment Received: 10.00
Note: 20.00 cash tendered. 10.00 change given.
- 10-27-2011 Note: EVIDENTIARY HEARING minutes modified.
- 10-27-2011 Modified: MOTIONS HEARING scheduled on November 09, 2011 at

01:30 PM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN
Reason: Computer error.

10-27-2011 Cancelled: MOTIONS HEARING scheduled on November 09, 2011 at 01:30 PM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

10-27-2011 Modified: MOTIONS HEARING scheduled on November 30, 2011 at 01:00 PM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN
Reason: Computer error.

10-27-2011 Cancelled: MOTIONS HEARING scheduled on November 30, 2011 at 01:00 PM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

10-27-2011 Cancelled: MOTIONS HEARING scheduled on November 09, 2011 at 01:30 PM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

10-27-2011 Cancelled: MOTIONS HEARING scheduled on November 30, 2011 at 01:30 PM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

10-27-2011 Rescheduled: MOTIONS HEARING rescheduled to November 30, 2011 at 01:00 PM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

10-27-2011 Modified: MOTIONS HEARING scheduled on November 09, 2011 at 01:30 PM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

10-27-2011 Note: EVIDENTIARY HEARING minutes modified.

10-27-2011 Cancelled: MOTIONS HEARING scheduled on November 09, 2011 at 01:30 PM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

10-27-2011 Modified: MOTIONS HEARING scheduled on November 09, 2011 at 01:30 PM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

10-27-2011 Note: EVIDENTIARY HEARING minutes modified.

10-27-2011 Cancelled: MOTIONS HEARING scheduled on November 09, 2011 at 01:30 PM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN

10-28-2011 Fee Account created Total Due: 10.00

10-28-2011 AUDIO TAPE COPY Payment Received: 10.00

11-03-2011 Filed: UDC's Response to Defendant's Motion for Disclosures of Corrections Policies

11-07-2011 Filed: Motion to Disqualify Judge
Filed by: RICHARD P GALE

11-07-2011 Filed: Affidavit and Certificate of Good Faith

11-08-2011 Filed: Salt Lake County's Motion to Intervene
Filed by: SALT LAKE COUNTY AUDITOR

11-08-2011 Filed: Intervenor Salt Lake County's Memorandum in Opposition to Defendant's Motion for Reimbursement of Extraordinary Expenses

11-08-2011 Filed order: Minute Entry (Disqualification of assigned Judge)
Judge PAUL G MAUGHAN
Signed November 08, 2011

11-08-2011 Cancelled: MOTIONS HEARING scheduled on November 09, 2011 at 01:30 PM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN
Reason: Case in on stay

11-09-2011 Filed: Minute Entry

11-10-2011 Filed order: Affidavit of the Honorable Paul G Maughan
Judge PAUL G MAUGHAN
Signed November 10, 2011

11-15-2011 Filed: Minute Entry

11-15-2011 NOTICE for Case 071904711 ID 14153361
Judge: PAUL G MAUGHAN
MOTIONS HEARING is scheduled.
Date: 11/30/2011
Time: 01:00 p.m.
Location: Third Floor - W37
Before Judge: PAUL G MAUGHAN
THIRD DISTRICT COURT

450 SOUTH STATE STREET
SLC, UT 84114-1860

Due to the case being on a Stay 11-9-2011, the motions that were scheduled to be heard on that day will now be heard on 11-30-2011 and a hearing date for additional motions will be scheduled.

- 11-15-2011 Modified: MOTIONS HEARING scheduled on November 30, 2011 at 01:00 PM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN
- 11-15-2011 MOTIONS HEARING scheduled on November 30, 2011 at 01:00 PM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN
- 11-30-2011 Minute Entry - Minutes for MOTION HEARING
Judge: PAUL G MAUGHAN
PRESENT
Clerk: cheril
Reporter: BRAD YOUNG
Prosecutor: ROBERT L STOTT
Prosecutor: VINCENT B MEISTER
Prosecutor: ERIC D PETERSEN
Defendant Present
Defendant's Attorney(s): RUSSEL-PAUL H KAWAI
Defendant's Attorney(s): RICHARD P GALE
Sheriff Office#: 305157
Video
Tape Number: W37 Tape Count: 1:19
HEARING
Counsel enter their appearance
Defendant transported from the USP for todays hearing.
Todays hearing is to address 6 of the 15 outstanding motions now pending before the court.
Motion for Court Order for Disclosure of Corrections Policies and Procedures
Mr. Peterson present from the Attorney Generals Office arguing this motion.
Court grants order for release of policy and procedure records (Disiplinary records). The Court orders that there ba a protective order placed on the release which only allows access to the records by defense counsel and expert witnesses.
Defense to prepare order.
Additional motion being addressed:
Motion for Individual Attorney-Conducted Voir Dire and Memorandum in Support Thereof
Motion to Preclude Uniformed Police Officers from Attending Proceedings and Limit the Show of Force in the Courtroom
Supplemental Request to Discover Which Protions of Defendant's Statements the State Intends to Use at Trial
Motion to Suppress or Limit Victim Impact Evidence at Sentencing Hearing
Motion to quash Bindover and Supporting Memorandum
Judge Maughan takes matters under advisment.
- 11-30-2011 Note: MOTION HEARING minutes modified.
- 12-01-2011 Filed order: Minute Entry
Judge PAUL G MAUGHAN
Signed November 30, 2011
- 12-01-2011 Note: MOTION HEARING minutes modified.
- 12-02-2011 Ruling Entry - MINUTE ENTRY

Judge: HANSEN, ROYAL I
Defendant has failed a Motion and Order for Reimbursement of Extraordinary Expenses. Pursuant to the request of counsel, the motion has been referred to the Presiding Judge for reassignment or consideration. For the purpose of the Motion for Reimbursement of Extraordinary Relief only, the motion is referred to the Honorable Judy Atherton, District Court Judge. After ruling on the Defendant's motion, the file should be returned to Judge Maughan who shall preside at all further proceedings in the case.
Date: _____

- Judge HANSEN, ROYAL I
- 12-05-2011 Cancelled: MOTION HEARING scheduled on January 04, 2012 at 01:00 PM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN
- 12-07-2011 Filed: Supreme Court of Utah-Letter to Mr Gale and Mr Kawai-Petition for Interlocutory Appeal was filed 12/05/11, Case number 20111054-SC should be indicated on any future filing or correspondence
- 12-16-2011 Fee Account created Total Due: 10.00
- 12-16-2011 AUDIO TAPE COPY Payment Received: 10.00
Note: Mail Payment;
- 12-16-2011 Note: Appealed: Case #20111054
- 12-19-2011 Filed: Reply to Intervener Salt Lake County's Motion In Opposition to Defendant's Motion for Extraordinary Expenses
- 01-03-2012 Cancelled: MOTION HEARING scheduled on January 04, 2012 at 01:00 PM in THIRD FLOOR - W37 with Judge PAUL G MAUGHAN
Reason: Defense appealed
- 01-06-2012 Filed order: Minute Entry
Judge JUDITH S. ATHERTON
Signed January 05, 2012
- 01-17-2012 Filed: Supplemental Information Regarding Defendant's Motion for Extraordinary Expenses
- 01-24-2012 Filed: Supreme Court of Utah-Notice of Decision-Petition for Permission to Appeal from and Interlocutory Order is DENIED
- 02-07-2012 NOTICE for Case 071904711 ID 14314755
Judge: PAUL G MAUGHAN
MOTION HEARING is scheduled.
Date: 02/29/2012
Time: 01:00 p.m.
Location: Fourth Floor - N42
Before Judge: PAUL G MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE
SLC, UT 84114-1860
All original motions that were to be heard on 1-4-201, will now be heard on 2-29-2012.
- 02-07-2012 NOTICE for Case 071904711 ID 14314920
Judge: PAUL G MAUGHAN
MOTION HEARING is scheduled.
Date: 02/29/2012
Time: 01:30 p.m.
Location: Fourth Floor - N42
Before Judge: PAUL G MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE
SLC, UT 84114-1860

All original motions that were to be heard on 1-4-2012, will now be heard on 2-29-2012.

- 02-07-2012 MOTION HEARING scheduled on February 29, 2012 at 01:30 PM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN
- 02-14-2012 Filed: Request For Hearing
- 02-16-2012 SCHEDULING CONF scheduled on February 24, 2012 at 09:00 AM in FOURTH FLOOR-S45 with Judge JUDITH S. ATHERTON
- 02-16-2012 Filed: Motion To Submit For Decision: Defendant's Motion For Reimbursement Of Extraordinary Expenses.
- 02-24-2012 Minute Entry - Minutes for SCHEDULING CONF

Judge: JUDITH S. ATHERTON

PRESENT

Clerk: shantec
Prosecutor: ADAM K MILLER
Defendant not present
Defendant's Attorney(s): RUSSEL-PAUL H KAWAI
Sheriff Office#: 305157
Audio
Tape Number: S45-11.53 Tape Count: 11.55

HEARING

TAPE: S45-11.53 COUNT: 11.55
Parties have a stipulated order that will be file on 2/29/12.

- 02-29-2012 Note: INCOURT NOTE minutes modified.
- 02-29-2012 STATUS/SCHEDULING CONFERENC scheduled on March 21, 2012 at 01:30 PM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN
- 02-29-2012 Note: INCOURT NOTE minutes modified.
- 02-29-2012 Minute Entry - Minutes for MOTION HEARING

Judge: PAUL G MAUGHAN

PRESENT

Clerk: cheril
Prosecutor: VINCENT B MEISTER
Defendant Present
Defendant's Attorney(s): RICHARD P GALE
Defendant's Attorney(s): RUSSEL-PAUL H KAWAI
Sheriff Office#: 305157
Video
Tape Number: N42 Tape Count: 1:54-2:42

HEARING

TAPE: N42 COUNT: 1:54-2:42
Counsel enter their appearance.Mr. Gale addresses the Court regarding Jury Trial now scheduled, and advises the Court that they have just been approved for County funding and are waiting for Judge Atherton to sign the order so that they can pay their expe
rts and at this point he does not think that the experts reports will be completed in time for trial and motions the Court to Continue.State advises the Court that they are ready to proceed with trial, but they do agree with defense counsel that it will t
ake longer to be ready for trial due to funding just being granted and the experts still needing to complete their reports.Counsel stipulate to Motions 4, 7 and 8.Counsel address #9 motion for Exculpatory Evidence. The state advises the Court that they d

ue not have any exculpatory evidence at this time to provide to defense. Defense counsel motions the Court to hold off on motion #2 addressing the defendant's appearance until they find out what long term results will be. State responds. Motions #11, #12 and #13 are submitted to the Court without argument. State responds to Motion #14 regarding 404B - Mr. Gale counsel for the defendant accepts notice of what the State will be addressing the 404B and will discuss if it will be admissable at a later date

Motion #15 will be granted allowing counsel to file additional motions.

Recess

Court again in session. Judge Maughan addresses counsel regarding additional issues.

Court sets this matter for a hearing on 3-21-2012 @ 1:30. Court advises counsel to get together and prepare a stipulated scheduling order and address alternate trial dates, time to complete discovery, provide disclosure of witnesses and what they will t

estify to. Counsel is also to file a new motion supported by Memorandum as to why jury trial should be continued.

Pursuant to the Scheduling Conference held on 2/29/2012, the following dates and times were set and matters discussed:

STATUS/SCHEDULING CONFERENCE is scheduled.

Date: 03/21/2012

Time: 01:30 p.m.

Location: Fourth Floor - N42

Before Judge: PAUL G MAUGHAN

THIRD DISTRICT COURT

450 SOUTH STATE

SLC, UT 84114-1860

03-01-2012 Filed order: Stipulated Order For Reimbursement Of Defense Expenses

Judge JUDITH S. ATHERTON

Signed March 01, 2012

03-13-2012 Filed: Memorandum Decision RE: Defendant's Motion 1, 3, 5, 6, and 10

03-13-2012 Filed: Memorandum Decision RE: Defendant's Motions 2, 4, 7, 8, 9, 11, 12, 13, 14, and 15

03-13-2012 Filed: Memorandum Decision RE: Defendant's Motions Submitted Without Oral Argument

03-16-2012 Filed: Motion to Continue Jury Trial

Filed by: RICHARD P GALE

03-21-2012 Note: SCHEDULING CONFERENCE minutes modified.

03-21-2012 Note: SCHEDULING CONFERENCE minutes modified.

03-21-2012 Minute Entry - Minutes for SCHEDULING CONFERENCE

Judge: PAUL G MAUGHAN

PRESENT

Clerk: cheril

Reporter: BRAD YOUNG

Prosecutor: STOTT, ROBERT L

Defendant Present

Defendant's Attorney(s): RUSSEL-PAUL H KAWAI

Sheriff Office#: 305157

Video

Tape Number: N42 Tape Count: 1:40-2:14

HEARING

TIME: 1:44 PM Counsel enter their appearance.

Defense motions the Court to allow the defendant to be cuffed in the front to take notes

Court denies defense request to have Mr. Allgier cuffed in the front or have one arm released to take notes for the purpose of this hearing.

Mr.

Gale addresses their motion to continue jury trial and also addresses the issue of expert witnesses and the length of time it will take for them to be ready for trial, he also addresses the funds that will be placed in an account to allow them to pay thei

r experts so that they can proceed in this case.

Mr. Stott responds and finds that the defense has presented enough grounds to continue the jury trial now scheduled for June.

State is requesting a couple of months to respond to the defense experts reports in case they need to call their own experts/witnesses.

Counsel address perimeters of how Dr.Watson will be able to complete psychological testing. Defense counsel is to file the appropriate motion and order for the testing which they are wanting to have completed on May 1, 2 and 3.

State advises the Court that there will be some additional witnesses that they will be calling for the Guilt phase, defense counsel advises the Court that they will need 1 week on the Guilt Phase and will need so speak with the experts to see what witness

they will be calling.

Counsel advise the court that they will try and stipulate to chain of witnesses and exhibits to try and expedite the trial.

Defense counsel advises the court that the only outstanding motion that may be filed is a possible motion for a change of venue.

State advises the court that once they receive the reports from the experts they may most likely will be filing some Motions in Limine.

Court grants defense motion for continuance of the trial

Counsel stipulate that Status Conference be set on 6-6-2012 @ 1:30, at that time the Court will be wanting an update from defense counsel regarding their experts, an update from the state and defense regarding their witnesses, counsel to stipulate and agr

ee to the time of trial and what they are going to present at the penalty phase and how long they will need.

Defense counsel is to provide the Court with a Disclosure of Department of Corrections records and provide a Memorandum along with the Order to allow Dr. Watson to complete a psychological evaluation on the defendant at the USP.

- 04-17-2012 Filed: Memorandum In Support of Defendant's Motion for Unencumbered Contract With Defendant During Psychological Testing
- 04-24-2012 Note: ****Ex Parte Communication received by the clerk, but not presented to the Court and not filed.*****Copy was mailed to the state and defense counsel.
- 04-27-2012 Filed: Utah Department of Corrections' Objection to Proposed Order Allowing Defendant's Expert Unencumbered Contact with Defendant During Psychological Testing
- 04-27-2012 Note: ****At the request of Judge Maughan, Order Allowing

Defendant's Expert Unencumbered Contact with Defendant During Psychological Testing is placed in file unsigned.****

05-02-2012 Filed: Reply to State's Objection to Defendants Motion for Unencumbered Contact with Defendant During Psychological Testing are Request for a Hearing.

05-10-2012 STATUS CONFERENCE scheduled on June 06, 2012 at 01:30 PM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN

05-11-2012 Filed: Reply in Support of Utah Department of Corrections' Objection to Proposed Order Allowing Defendant's Expert Unencumbered Contact with Defendant During Psychological Testing

06-06-2012 Filed order: Order In RE: Release of Evidence
Judge PAUL G MAUGHAN
Signed June 06, 2012

06-06-2012 Filed order: Order to Release UDC Records
Judge PAUL G MAUGHAN
Signed June 06, 2012

06-06-2012 Minute Entry - Minutes for STATUS CONFERENCE
Judge: PAUL G MAUGHAN
PRESENT
Clerk: cheril
Prosecutor: VINCENT B MEISTER
Prosecutor: ROBERT L STOTT
Defendant Present
Defendant's Attorney(s): RICHARD P GALE
Defendant's Attorney(s): RUSSEL-PAUL H KAWAI
Sheriff Office#: 305157
Video
Tape Number: N42 Tape Count: 1:49-2:25
HEARING
Today's hearing is before the Court for a status conference.
Defendant is present from the Utah State Prison
Status Conference was continued.
Defense Motion for access was taken under advisement.
Parties were ordered to meet and confer.
If counsel are unable to resolve they may request hearing.
STATUS CONFERENCE.
Date: 08/29/2012
Time: 01:30 p.m.
Location: Fourth Floor - N42
Before Judge: PAUL G MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE
SLC, UT 84114-1860

06-06-2012 STATUS CONFERENCE scheduled on August 29, 2012 at 01:30 PM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN

06-11-2012 Filed order: Amended Order to Release UDC Records
Judge PAUL G MAUGHAN
Signed June 07, 2012

07-13-2012 Fee Account created Total Due: 90.50

07-13-2012 COPY FEE Payment Received: 90.50
Note: 100.00 cash tendered. 9.50 change given.

08-21-2012 Filed: Supplemental Brief in Support of Utah Department of Corrections' Objection to Proposed Order Allowing Defendant's Expert Unencumbered Contact with Defendant During Psychological

Testing

08-29-2012 Filed: Motion to Protect My Utah and United States Constitutionally Protected Rights by Representing Myself Attorney

Filed by: CURTIS ALLGIER

08-29-2012 MOTION HEARING scheduled on September 11, 2012 at 09:00 AM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN

08-29-2012 Minute Entry - Minutes for INCOURT NOTE

Judge: PAUL G MAUGHAN

PRESENT

Clerk: julier

Prosecutor: ROBERT L STOTT

Prosecutor: VINCENT B MEISTER

Defendant Present

Defendant's Attorney(s): RICHARD P GALE

Sheriff Office#: 305157

Audio

Tape Number: CR N42 Tape Count: 1:32

HEARING

Court hears argument regarding the need for evidentiary hearing regarding Defendant's request for testing and the need for defendant's expert unencumbered contact during psychological testing.

1:50 - Court finds the State has made reasonable proposals to accomodate testing and denies Defense Motion for Evidentiary Hearing. Counsel Matthew Anderson to prepare the appropriate order.

2:01 - Jury trial to be scheduled starting April 22, 2013 for 3 weeks. Jury to be brought in the week of April 15, 2013 for questionnaires.

2:13 - Defendant's Motion to be allowed to represent himself is scheduled for September 11, 2012 at 9:00 am.

2:36 End

JURY TRIAL is scheduled.

Date: 04/22/2013

Time: 08:00 a.m.

Location: Fourth Floor - N42

Before Judge: PAUL G MAUGHAN

THIRD DISTRICT COURT

450 SOUTH STATE

SLC, UT 84114-1860

JURY TRIAL.

Date: 04/23/2013

Time: 08:00 a.m.

Location: Fourth Floor - N42

Before Judge: PAUL G MAUGHAN

THIRD DISTRICT COURT

450 SOUTH STATE

SLC, UT 84114-1860

JURY TRIAL.

Date: 04/24/2013

Time: 08:00 a.m.

Location: Fourth Floor - N42

Before Judge: PAUL G MAUGHAN

THIRD DISTRICT COURT

450 SOUTH STATE
SLC, UT 84114-1860
JURY TRIAL.
Date: 04/25/2013
Time: 08:00 a.m.
Location: Fourth Floor - N42
Before Judge: PAUL G MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE
SLC, UT 84114-1860

JURY TRIAL.
Date: 04/26/2013
Time: 08:00 a.m.
Location: Fourth Floor - N42
Before Judge: PAUL G MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE
SLC, UT 84114-1860

JURY TRIAL.
Date: 04/29/2013
Time: 08:00 a.m.
Location: Fourth Floor - N42
Before Judge: PAUL G MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE
SLC, UT 84114-1860

JURY TRIAL.
Date: 04/30/2013
Time: 08:00 a.m.
Location: Fourth Floor - N42
Before Judge: PAUL G MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE
SLC, UT 84114-1860

JURY TRIAL.
Date: 05/01/2013
Time: 08:00 a.m.
Location: Fourth Floor - N42
Before Judge: PAUL G MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE
SLC, UT 84114-1860

JURY TRIAL.
Date: 05/02/2013
Time: 08:00 a.m.
Location: Fourth Floor - N42
Before Judge: PAUL G MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE
SLC, UT 84114-1860

JURY TRIAL.
Date: 05/03/2013

Time: 08:00 a.m.
Location: Fourth Floor - N42
Before Judge: PAUL G MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE
SLC, UT 84114-1860

JURY TRIAL.

Date: 05/06/2013
Time: 08:00 a.m.
Location: Fourth Floor - N42
Before Judge: PAUL G MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE
SLC, UT 84114-1860

JURY TRIAL.

Date: 05/07/2013
Time: 08:00 a.m.
Location: Fourth Floor - N42
Before Judge: PAUL G MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE
SLC, UT 84114-1860

JURY TRIAL.

Date: 05/08/2013
Time: 08:00 a.m.
Location: Fourth Floor - N42
Before Judge: PAUL G MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE
SLC, UT 84114-1860

JURY TRIAL.

Date: 05/09/2013
Time: 08:00 a.m.
Location: Fourth Floor - N42
Before Judge: PAUL G MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE
SLC, UT 84114-1860

JURY TRIAL.

Date: 05/10/2013
Time: 08:00 a.m.
Location: Fourth Floor - N42
Before Judge: PAUL G MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE
SLC, UT 84114-1860

MOTION HEARING.

Date: 09/11/2012
Time: 09:00 a.m.
Location: Fourth Floor - N42
Before Judge: PAUL G MAUGHAN
THIRD DISTRICT COURT

450 SOUTH STATE
SLC, UT 84114-1860

09-04-2012 Filed: State's Response to Defendant's Pro Se Motion

09-06-2012 Filed: States Request for Additional Potential Ramification Factors to be Included in the Court's Frampton Colloquy with the Defendant

09-11-2012 Minute Entry - Minutes for MOTION HEARING
Judge: PAUL G MAUGHAN
PRESENT
Clerk: cheril
Prosecutor: VINCENT B MEISTER
Prosecutor: ROBERT L STOTT
Defendant not present
Defendant's Attorney(s): RICHARD P GALE
Defendant's Attorney(s): RUSSEL-PAUL H KAWAI
Sheriff Office#: 305157
Audio
Tape Number: N42 Tape Count: 9:04-9:06
HEARING
In Camera Conference is held.
Counsel has stipulated to continue todays hearing until 10-3-2012 @ 9:00.
MOTION FOR PRO-SE REPRESENTT is scheduled.
Date: 10/03/2012
Time: 09:00 a.m.
Location: Fourth Floor - N42
Before Judge: PAUL G MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE
SLC, UT 84114-1860

09-11-2012 MOTION FOR PRO-SE REPRESENTT scheduled on October 03, 2012 at 09:00 AM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN

10-03-2012 Charge 1 Disposition is Guilty

10-03-2012 Charge 2 Disposition is Guilty

10-03-2012 Charge 3 Disposition is Guilty

10-03-2012 Charge 4 Disposition is Guilty

10-03-2012 Charge 5 Disposition is No Contest

10-03-2012 Charge 6 Disposition is No Contest

10-03-2012 Charge 7 Disposition is No Contest

10-03-2012 Charge 8 Disposition is Guilty

10-03-2012 SENTENCING scheduled on December 05, 2012 at 02:00 PM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN

10-03-2012 Fee Account created Total Due: 10.00

10-03-2012 AUDIO TAPE COPY Payment Received: 10.00

10-03-2012 Fee Account created Total Due: 10.00

10-03-2012 AUDIO TAPE COPY Payment Received: 10.00

10-03-2012 Filed: AP&P Referral Form

10-03-2012 Cancelled: JURY TRIAL scheduled on April 24, 2013 at 08:00 AM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN

10-03-2012 Cancelled: JURY TRIAL scheduled on April 26, 2013 at 08:00 AM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN

10-03-2012 Cancelled: JURY TRIAL scheduled on April 29, 2013 at 08:00 AM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN

10-03-2012 Cancelled: JURY TRIAL scheduled on April 30, 2013 at 08:00 AM

in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN

10-03-2012 Cancelled: JURY TRIAL scheduled on May 01, 2013 at 08:00 AM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN

10-03-2012 Cancelled: JURY TRIAL scheduled on May 02, 2013 at 08:00 AM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN

10-03-2012 Cancelled: JURY TRIAL scheduled on May 03, 2013 at 08:00 AM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN

10-03-2012 Cancelled: JURY TRIAL scheduled on May 06, 2013 at 08:00 AM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN

10-03-2012 Cancelled: JURY TRIAL scheduled on May 07, 2013 at 08:00 AM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN

10-03-2012 Cancelled: JURY TRIAL scheduled on May 08, 2013 at 08:00 AM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN

10-03-2012 Cancelled: JURY TRIAL scheduled on May 09, 2013 at 08:00 AM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN

10-03-2012 Minute Entry - Minutes for Change of Plea

Judge: PAUL G MAUGHAN

PRESENT

Clerk: cheril

Reporter: BRAD YOUNG

Prosecutor: VINCENT B MEISTER

Prosecutor: ROBERT L STOTT

Prosecutor: SIMARJIT S GILL

Defendant Present

Defendant's Attorney(s): RICHARD P GALE

Defendant's Attorney(s): RUSSEL-PAUL H KAWAI

Sheriff Office#: 305157

Tape Number: DVR Tape Count: 9:41-10:25

The Information is read.

Court advises defendant of rights and penalties.

Defendant waives time for sentence.

A pre-sentence investigation was ordered.

The Judge orders Adult Probation & Parole to prepare a Pre-sentence report.

Change of Plea Note

As part of the plea agreement, the defendant will enter a GP to Counts 1,2,3,4 and 8 and No Contest to Counts 5, 6 and 7.

HEARING

Motion pending before the Court is the defendant's motion to waive his right to counsel and represent himself pro-se.

At this time the defendant withdraws his motion to waive his right to counsel and represent himself pro-se and will continue to be represented by counsel.

Atty Richard Gale advises the Court that there has been a resolution reached in this matter and the state has stipulated to a sentence of life without the possibility of parole.

Atty Bob Stott addresses the Court and advises the Court that he has spoken with the victims in this case and they are aware of offer that has been made by the state.

Defendant enters his change of plea

Defendant is advised of his rights

Statement of Defendant is signed by counsel and the defendant

Court orders a Presentence Report from AP&P and sets this matter for Sentencing on 12-5-2012 @ 2:00.

Mr. Stott addresses the Court regarding the feelings of the victims family and the length of time this case has been pending.
Mr. Kawai responds
Court is in recess.

10-03-2012 Fee Account created Total Due: 10.00
10-03-2012 AUDIO TAPE COPY Payment Received: 10.00
10-03-2012 Fee Account created Total Due: 10.00
10-03-2012 AUDIO TAPE COPY Payment Received: 10.00
10-03-2012 Filed order: Statement of Defendant Before Pleading Guilty/No Contest
Judge PAUL G MAUGHAN
Signed October 03, 2012

10-03-2012 Filed order: Order
Judge PAUL G MAUGHAN
Signed October 02, 2012

10-12-2012 Fee Account created Total Due: 10.00
10-12-2012 AUDIO TAPE COPY Payment Received: 10.00
Note: Mail Payment;

11-29-2012 ***** PROTECTED ***** Filed: AP&P Presentence Report

12-05-2012 Minute Entry - Minutes for SENTENCING
Judge: PAUL G MAUGHAN
PRESENT
Clerk: julier
Prosecutor: ROBERT L STOTT
Prosecutor: VINCENT B MEISTER
Prosecutor: SIMARJIT S GILL
Defendant Present
Defendant's Attorney(s): RICHARD P GALE
Defendant's Attorney(s): RUSSEL-PAUL H KAWAI
Sheriff Office#: 305157
Audio
Tape Number: N42 Tape Count: 2:24

HEARING
2:29 Deft's Counsel Kawai addresses Court
2:39 Defendant Allgier addresses Court
3:14 Family members of Mr. Anderson address the Court
3:23 Pltf's Counsel Meister addresses the Court
3:30 Deft's re-addresses the Court
3:34 Court review Defendant's Plea Statement regarding the first count and the scratched out part and hand written interlineation. Counsel agrees that it does not make difference as to the punishment.

SENTENCE PRISON
Based on the defendant's conviction of AGGRAVATED MURDER a Capital, the defendant is sentenced to life in prison without parole.
Based on the defendant's conviction of DISARMING A PEACE OFFICER a 1st Degree Felony, the defendant is sentenced to an indeterminate term of not less than five years and which may be life in the Utah State Prison.
Based on the defendant's conviction of AGGRAVATED ESCAPE a 1st Degree Felony, the defendant is sentenced to an indeterminate term of not less than six years and which may be life in the Utah State Prison.

Based on the defendant's conviction of AGGRAVATED ROBBERY a 1st Degree Felony, the defendant is sentenced to an indeterminate term of not less than six years and which may be life in the Utah State Prison.

Based on the defendant's conviction of ATTEMPTED AGGRAVATED MURDER a 1st Degree Felony, the defendant is sentenced to an indeterminate term of not less than six years and which may be life in the Utah State Prison.

Based on the defendant's conviction of ATTEMPTED AGGRAVATED MURDER a 1st Degree Felony, the defendant is sentenced to an indeterminate term of not less than six years and which may be life in the Utah State Prison.

Based on the defendant's conviction of ATTEMPTED AGGRAVATED MURDER a 1st Degree Felony, the defendant is sentenced to an indeterminate term of not less than six years and which may be life in the Utah State Prison.

Based on the defendant's conviction of PURCH/POSS DANGEROUS WEAPON a 2nd Degree Felony, the defendant is sentenced to an indeterminate term of not less than one year nor more than fifteen years in the Utah State Prison.

To the SALT LAKE County Sheriff: The defendant is remanded to your custody for transportation to the Utah State Prison where the defendant will be confined.

SENTENCE PRISON CONCURRENT/CONSECUTIVE NOTE

All Sentences are CONSECUTIVE as Defendant was Incarcerated at the time of offense and multiple victims involved.

12-05-2012 Fee Account created Total Due: 10.00

12-05-2012 AUDIO TAPE COPY Payment Received: 10.00

12-05-2012 Filed order: Sentence, Judgment, Commitment
Judge PAUL G MAUGHAN
Signed December 05, 2012

12-05-2012 Fee Account created Total Due: 10.00

12-05-2012 AUDIO TAPE COPY Payment Received: 10.00

12-05-2012 Fee Account created Total Due: 10.00

12-05-2012 AUDIO TAPE COPY Payment Received: 10.00
Note: 20.00 cash tendered. 10.00 change given.

12-05-2012 Fee Account created Total Due: 10.00

12-05-2012 AUDIO TAPE COPY Payment Received: 10.00
Note: 20.00 cash tendered. 10.00 change given.

12-05-2012 Cancelled: JURY TRIAL scheduled on April 22, 2013 at 08:00 AM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN
Reason: Case settled

12-05-2012 Cancelled: JURY TRIAL scheduled on April 24, 2013 at 08:00 AM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN
Reason: Case settled

12-05-2012 Cancelled: JURY TRIAL scheduled on April 25, 2013 at 08:00 AM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN
Reason: Case settled

12-05-2012 Cancelled: JURY TRIAL scheduled on April 26, 2013 at 08:00 AM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN
Reason: Case settled

12-05-2012 Cancelled: JURY TRIAL scheduled on April 29, 2013 at 08:00 AM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN
Reason: Case settled

12-05-2012 Cancelled: JURY TRIAL scheduled on April 30, 2013 at 08:00 AM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN
Reason: Case settled

12-05-2012 Cancelled: JURY TRIAL scheduled on May 01, 2013 at 08:00 AM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN

Reason: Case settled
12-05-2012 Cancelled: JURY TRIAL scheduled on May 02, 2013 at 08:00 AM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN
Reason: Case settled
12-05-2012 Cancelled: JURY TRIAL scheduled on May 03, 2013 at 08:00 AM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN
Reason: Case settled
12-05-2012 Cancelled: JURY TRIAL scheduled on May 06, 2013 at 08:00 AM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN
Reason: Case settled
12-05-2012 Cancelled: JURY TRIAL scheduled on May 07, 2013 at 08:00 AM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN
Reason: Case settled
12-05-2012 Cancelled: JURY TRIAL scheduled on May 08, 2013 at 08:00 AM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN
Reason: Case settled
12-05-2012 Cancelled: JURY TRIAL scheduled on May 09, 2013 at 08:00 AM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN
Reason: Case settled
12-05-2012 Case Closed
Disposition Judge is PAUL G MAUGHAN
12-07-2012 Filed order: Amended Sentence, Judgment, Commitment
Judge PAUL G MAUGHAN
Signed December 07, 2012
01-03-2013 Filed: Notice of Withdraw all pleas from case for, but not limited to exorbiant and very extraordinary circumstances, illegal and unconstitutional action, Extremem Ineffective Assistance, Judicial Misconduct, Prosecutorial Misconduct Fraud, Decept
01-03-2013 Filed: Motion to have another judge who's not produciced, biased, and conflict free, other that judge paul g. maughan, to hear the enclosed motions
Filed by: CURTIS ALLGIER
01-03-2013 Filed: Motion to Fire Attorney and ge given competent, conflict free attorney's to assist me on appeal of sentence and withdrawing all pleas, and request for a time extension on both issues, as well as a hearing as soon as possible on these matter
Filed by: CURTIS ALLGIER
01-03-2013 Filed: Notice of Appeal of Sentence on Case, for, but not limited to: Forgery Fraud, Illigal Actions, Unconstitutional actions, Extreme ineffective assistance, Prosechtorial misconduct, judicial misconduct and more
01-14-2013 Filed: Supreme Court of Utah Letter dated 1/11/13 to Defendant (Appeal filed - Case #20130021 should be indicated on future filings - rules/info etal)
02-08-2013 Filed: Letter from Supreme Court - Determination as to Appointment of Counsel
02-11-2013 Filed: Supreme Court of Utah Order dated 2/6/13 (Matter remanded to district court for purposes of determining appointment of counsel for the Appellant)
02-20-2013 Cancelled: HRT ON APPOINTMENT OF COUNSL scheduled on March 06, 2013 at 09:00 AM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN
02-20-2013 NOTICE for Case 071904711 ID 15059809
Judge: PAUL G MAUGHAN
HRT ON APPOINTMENT OF COUNSL is scheduled.
Date: 03/06/2013
Time: 09:00 a.m.
Location: Fourth Floor - N42

Before Judge: PAUL G MAUGHAN
THIRD DISTRICT COURT
450 SOUTH STATE
SLC, UT 84114-1860
The hearing will only be continued upon stipulation of counsel.

02-28-2013 Note: Clerk notified Atty Laura Dupaix from the AG's Office, Atty Bob Stott Atty Vince Meister an Darlene at the USP transportation of hearing date on 3-6-2013 @ 1:30.

02-28-2013 Cancelled: HRT ON APPOINTMENT OF COUNSL scheduled on March 06, 2013 at 01:30 PM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN

02-28-2013 Modified: HRT ON APPOINTMENT OF COUNSL scheduled on March 06, 2013 at 01:30 PM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN

02-28-2013 HR ON APPOINTMENT OF COUNSL scheduled on March 06, 2013 at 01:30 PM in FOURTH FLOOR-N42 with Judge PAUL G MAUGHAN

03-07-2013 Minute Entry - Minutes for INCOURT NOTE
Judge: PAUL G MAUGHAN
PRESENT
Clerk: cheril
Prosecutor: VINCENT B MEISTER
Prosecutor: THOMAS B BRUNKER
Defendant Present
Sheriff Office#: 305157
Audio
Tape Number: N42 Tape Count: 1:36-1:40
HEARING
Case has been remanded to the District Court for purposes of determining appointment of counsel for the appellant
Mr. Allgier is transported from the Utah State Prison
State present motioning the Court to appoint Legal Defenders Office
Court orders Legal Defenders Office to be apponted either to defend the appeal or to appoint conflict counsel.

03-11-2013 Filed order: Minute Entry
Judge PAUL G MAUGHAN
Signed March 11, 2013

05-18-2013 Filed: TRANSCRIPT for Hearing of 08-29-2012

05-18-2013 Filed: TRANSCRIPT for Hearing of 10-03-2012

05-19-2013 Filed: TRANSCRIPT for Hearing of 12-05-2012

05-22-2013 Filed: TRANSCRIPT for Hearing of 03-06-2013

05-22-2013 Filed: TRANSCRIPT for Hearing of 09-11-2012

05-31-2013 Filed: Transcript - Status Conference -- August 29, 2012 before Judge Paul Maughan (Reported by Brad Young)

05-31-2013 Filed: Transcript - Motion Hearing -- September 11, 2012 before Judge Paul Maughan (Noteworthy Reporting)

05-31-2013 Filed: Transcript - Change of Plea -- October 3, 2012 before Judge Paul Maughan (Reported by Brad Young)

05-31-2013 Filed: Transcript - Sentencing -- December 5, 2012 before Judge Paul Maughan (Reported by Susan S. Srouse, RPR, CSR)

05-31-2013 Filed: Transcript - Motion Hearing -- March 6, 2014 before Judge Paul Maughan (Noteworthy Reporting)

06-10-2013 Filed order: Order on Appointment of Counsel
Judge PAUL G MAUGHAN
Signed June 07, 2013

06-14-2013 Filed: Appearance of Counsel

06-14-2013 Filed: Return of Electronic Notification

06-17-2013 Filed: Notice of Referral To Conflict Counsel
07-02-2013 Note: Record checked out David M Corbett - Files-8, Transcripts-20, jr
09-11-2013 Note: Called attorney David Corbett's office to return file. Spoke with Katherine and she said they would try to bring that back today.
09-16-2013 Note: David Corbett's Office returned record to COA. 8-Files, 20-Transcripts, 0-Exhibits
09-25-2013 Filed: Clerk's Certificate & Judgment Roll and Index
09-25-2013 Note: Record request sent to COA - 8-Files, 25-Transcripts, 1-Defendant's Exhibit - Also sent a certified copy of record index.
10-21-2013 Filed: Supreme Court of Utah Order dated 10/15/13 (Granted in part/Deferred in Part)
10-22-2013 Filed: Letter from the Supreme Court
10-24-2013 Filed order: Notification of Result of Inquiry Into Record
Judge PAUL G MAUGHAN
Signed October 24, 2013
01-23-2015 Filed: Supreme Court of Utah Opinion filed 1/23/2015
01-23-2015 Filed: Supreme Court of Utah Certificate of Mailing of Opinion filed 1/23/2015
02-17-2017 Judge KENT HOLMBERG assigned.
06-02-2017 Judge PAIGE PETERSEN assigned.
11-22-2017 Filed: Supreme Court of Utah Opinion Filed 11-22-2017
11-24-2017 Judge KARA PETTIT assigned.
01-23-2018 Note: Record RETURNED from Court of Appeals - Files - 8, Transcripts - 25, Exhibits - 0, ca
01-24-2018 Filed: Supreme Court of Utah Remittitur dated 1/23/18 (Re: Opinion issued 11/22/17)
09-03-2025 Judge AMANDA MONTAGUE assigned.
11-26-2025 Judge ROTATION JUDGE assigned.
11-28-2025 Judge RANDALL SKANCHY assigned.